

CHAPTER 14.

An Act to consolidate the enactments relating to the Relief of the Poor in England and Wales.

[29th July 1927.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

CENTRAL AND LOCAL ADMINISTRATION.

CENTRAL AUTHORITY.

1. The Minister of Health (hereinafter in this Act referred to as the Minister) is, subject to the provisions of this Act, charged with the direction and control of all matters relating to the administration of relief to the poor throughout England and Wales, according to the law in force for the time being : Central authority.

Provided that nothing in this Act shall be construed as enabling the Minister to interfere in any individual case for the purpose of ordering relief.

POOR LAW AREAS AND AUTHORITIES.

Poor Law Unions.

2.—(1) The law relating to the relief of the poor shall be administered locally by boards of guardians, and a guardian shall not (save as otherwise expressly provided by this Act and any rules, orders or regulations of the Minister made thereunder) be capable of acting by virtue of his office except as a member of a board of guardians and at a meeting of the board. Local administration and constitution of unions.

(2) The Minister may by order constitute any parish or combination of parishes as an area in which the relief of the poor is to be so administered, and every area so constituted shall for the purposes of this Act be a poor law union, but until dissolved or altered in accordance with

the provisions of this Act, every parish or combination of parishes for which, at the commencement of this Act, a board of guardians is constituted shall continue to be a poor law union.

(3) Upon the coming into operation of an order of the Minister forming a union of two or more parishes, for which separate boards of guardians were constituted, the last acting guardians for those parishes shall continue to administer relief in those parishes until the guardians for the new union come into office.

Combina-
tion of
unions for
particular
purposes.

3.—(1) Where on any representation it appears to the Minister that the combination of two or more poor law unions, not in London, for any purpose connected with the administration of the relief of the poor would tend to diminish expense, or would otherwise be of public or local advantage, the Minister may, with the consent of the boards of guardians of the unions to be so combined, make an order for combining the unions for the purposes named therein, and for constituting for the execution of those purposes a joint committee of the several boards of guardians.

(2) The order shall define the powers, rights, duties, liabilities, and obligations of the joint committee, and regulate the election, meetings, and officers of the joint committee, the mode of defraying the expenses of the joint committee, and any other matter or thing (including the adjustment of present and future liabilities and property) which it appears necessary or proper to regulate for the better carrying into effect of the order.

(3) The board of guardians of a poor law union included in such a combination shall, save as otherwise provided by the order, cease to exercise any powers and rights, and to be subject to any duties, liabilities and obligations, vested by the order in the joint committee.

(4) All property acquired by the joint committee shall be vested in the boards of guardians of the poor law unions included in the combination.

Boards of Guardians.

Constitution
of boards of
guardians.

4.—(1) The rural district councillors of any parish or other area in a rural district shall be the representatives of that parish or area on the board of guardians

and when acting in that capacity shall be deemed to be guardians of the poor, and guardians as such shall not be elected for that parish or area.

(2) Subject as aforesaid, a board of guardians shall consist of such number of guardians, to be elected in manner hereinafter provided, as the Minister may determine, and the Minister may fix the number of guardians to be elected for the several parishes comprised in the poor law union and may from time to time, having regard to the relative population or circumstances of any such parish, alter the number of guardians to be elected therefor.

5.—(1) Every board of guardians shall be a body corporate by the name of “The guardians of the poor of _____,” and shall have perpetual succession and a common seal, and have power (without licence in mortmain) to hold land for any of their powers and duties under this Act. Incorporation of boards of guardians.

(2) The Minister may by order change the name of any poor law union consisting of more than one parish and direct how such change of name shall be published:

Provided that no such change of name shall affect any rights or obligations of or securities given by or to the board of guardians or affect the continuance of any pending legal proceedings by or against the board.

(3) The addition to or separation of a parish from a poor law union under this Act shall not affect the corporate existence, property or privileges of the board of guardians.

Qualifications and Disqualifications.

6. A person shall not be qualified to be elected or to be a guardian of a poor law union unless he is registered as a local government elector of the union, or has during the whole of the twelve months preceding the election resided in the union, or is the owner of a freehold or leasehold interest in land within the union, or in the case of a guardian for a parish wholly or partly situate within a borough is qualified to be elected a councillor for that borough. Qualifications of guardians.

Disqualifi-
cations of
guardians.

7.—(1) A person shall be disqualified for being elected or being a member of a board of guardians if he—

- (a) is an infant or an alien; or
- (b) has within twelve months before his election, or since his election, received relief; or
- (c) has, within five years before his election or since his election, been convicted either on indictment or summarily of any crime and sentenced to imprisonment with hard labour without the option of a fine, or to any greater punishment, and has not received a free pardon, or has, within or during the time aforesaid, been adjudged bankrupt or made a composition or arrangement with his creditors; or
- (d) holds any paid office under the board of guardians; or
- (e) is concerned in any bargain or contract entered into with the board, or participates in the profit of any such bargain or contract or of any work done under the authority of the board:

Provided that a person shall not be disqualified for being elected or being a member of a board of guardians by reason of being interested—

- (i) in the sale or lease of any lands; or
- (ii) in any loan of money to the board; or
- (iii) in any newspaper in which any advertisement relating to the affairs of the board is inserted; or
- (iv) in any contract with the board as a shareholder in any joint stock company; but he shall not vote at any meeting of the board on any question in which the company is interested, except that in the case of a water company or other company established for the carrying on of works of a like public nature, this prohibition may be dispensed with by the county council.

(2) Where a person is disqualified by being adjudged bankrupt or making a composition or arrangement with his creditors, the disqualification shall cease, in case of

bankruptcy, when the adjudgment is annulled, or when he obtains his discharge with a certificate that his bankruptcy was caused by misfortune without any misconduct on his part, and, in case of composition or arrangement, on payment of his debts in full.

(3) If a member of a board of guardians is absent from meetings of the board for more than six months consecutively, except in case of illness or for some reason approved by the board, he shall vacate his seat on the expiration of that period.

(4) Where a member of a board of guardians becomes disqualified for holding office, or vacates his seat by absence, the board shall forthwith declare the office to be vacant, and signify the same by notice signed by three members and countersigned by the clerk of the board and notified in such manner as the board direct, and the office shall thereupon become vacant.

(5) If any person acts when disqualified, or votes when prohibited under this section, he shall for each offence be liable on summary conviction to a fine not exceeding twenty pounds.

8.—(1) No paid officer engaged in the administration of the laws for the relief of the poor, nor any person who, having been a paid officer, has been dismissed within five years previously from office under the provisions of this Act, or of any Act repealed by this Act, shall be capable of serving as a guardian.

Paid officers, &c., incapable of serving as guardians.

(2) No person receiving any fixed salary or emolument from so much of the general rate levied within a poor law union as is applicable to the relief of the poor shall be capable of serving as a guardian for that union.

Elections.

9.—(1) The electors of the guardians of a parish shall be the persons registered and entitled to vote as local government electors of the poor law union in respect of qualifications arising in that parish, and, if the parish is divided into wards for the election of guardians, the electors of the guardians for each ward shall be such of those persons as are registered and entitled to vote in respect of qualifications arising within the ward.

Election of guardians.

(2) Each elector may give one vote and no more for each of any number of persons not exceeding the number to be elected.

(3) The election shall, subject to the provisions of this Part of this Act, be conducted in accordance with rules framed by the Secretary of State.

Constitution
of electoral
districts.

10.—(1) The Minister may, by order, divide any parish into wards for the election of guardians, and determine the number of guardians to be elected for every such ward, having due regard to the net annual value of the property therein according to the valuation list for the time being in force, and may from time to time alter any such wards.

(2) The Minister may, by order, add to any parish for the purposes of the election of guardians any adjoining parish in the same poor law union, being a parish the population of which, according to the last census for the time being, does not exceed three hundred and the net annual value of the property in which does not exceed the average net annual value of the property in the parishes of the union.

Powers of
county
council.

11.—(1) A county council may, from time to time, by order, fix or alter the number of guardians to be elected for each parish within their county, and for those purposes may exercise powers of adding parishes to each other and dividing parishes into wards, similar to those which by this Part of this Act are for the purpose of the election of guardians vested in the Minister.

(2) Where a poor law union is situate in more than one county, the power under this section of fixing or altering the number of guardians shall be exercised by a joint committee of the councils of the counties concerned, but if any of those councils do not, within two months after request from any other of them, appoint members of such joint committee, the members of the committee actually appointed shall act as the joint committee :

Provided that, if any order under this subsection is, within six weeks after the making thereof, objected to by any of the county councils concerned, or by any committee of any of those councils authorised in that

behalf, it shall be of no effect unless and until confirmed by the Minister.

12.—(1) Rules framed by the Secretary of State in relation to elections of guardians shall have effect as if enacted in this Act, and shall provide, amongst other things—

Election rules and supplemental provisions.

- (a) For every candidate being nominated in writing by two local government electors as proposer and seconder and no more;
- (b) For preventing an elector at an election from subscribing a nomination paper or voting in more than one parish or other area in a poor law union;
- (c) For fixing, or enabling the county council to fix, the day of the poll and the hours during which the poll is to be kept open, so, however, that the poll shall always be open between the hours of six and eight in the evening;
- (d) For the polls at elections held under this Act and the Local Government Act, 1894, at the same date, and in the same area being taken together except where this is impracticable;
- (e) For the appointment of returning officers for the elections.

56 & 57 Vict. c. 73.

(2) At every election regulated by rules framed under this Act, the poll shall be taken by ballot, and the Ballot Act, 1872, the Municipal Elections (Corrupt and Illegal Practices) Act, 1884, and sections seventy-four and seventy-five and Part IV. of the Municipal Corporations Act, 1882, as respectively amended by any subsequent enactment (including the penal provisions of those Acts) shall, subject to adaptations, alterations, and exceptions made by the rules, apply in like manner as in the case of a municipal election:

35 & 36 Vict. c. 33.
47 & 48 Vict. c. 70.
45 & 46 Vict. c. 50.

Provided that—

- (a) Section six of the Ballot Act, 1872, shall apply in the case of such elections, and the returning officer may, in addition to using the schools and public rooms therein referred to free of charge for taking the poll, use them, free of charge, for hearing objections to nomination papers and for counting votes; and

47 & 48 Vict.
c. 70.

(b) Section thirty-seven of the Municipal Elections (Corrupt and Illegal Practices) Act, 1884, shall apply as if the election were an election mentioned in the First Schedule to that Act.

45 & 46 Vict.
c. 50.

(3) The provisions of the Municipal Corporations Act, 1882, as amended by any subsequent enactment, with respect to the expenses of elections of councillors of a borough, and with respect to the acceptance of office, re-eligibility of holders of office, and the filling of casual vacancies, and section fifty-six of that Act shall, subject to the adaptations, alterations and exceptions made by the said rules, apply in the case of guardians :

Provided that—

(a) Nothing in the enactments applied by this section shall authorise or require a returning officer to hold an election to fill a casual vacancy which occurs within six months before the ordinary day of retirement from the office in which the vacancy occurs, and the vacancy shall be filled at the next ordinary election; and

(b) The rules may provide for the incidence of the charge for the expenses of the elections of guardians being the same as before the commencement of the Local Government Act, 1894.

56 & 57 Vict.
c. 73.

(4) If any difficulty arises as respects the election of any individual guardian, and there is no provision for holding another election, the county council may order a new election to be held and give such directions as may be necessary for the purpose of holding the election.

(5) Any ballot boxes, fittings, and compartments provided by or belonging to any public authority, for any election (whether parliamentary, county council, municipal or other) shall, on request, and if not required for immediate use by that authority, be lent to the returning officer for an election under this Act, upon such conditions and either free of charge or, except in cases prescribed by the Minister, for such reasonable charge as he may prescribe.

(6) The expenses of any election under this Act shall not exceed the scale fixed by the county council.

13.—(1) If any difficulty arises with respect to an election of guardians, or to the first meeting after any ordinary election of guardians, or if, from an election not being held or being defective, or otherwise, the board has not been properly constituted, the county council may, by order, make any appointment or do anything which appears to them necessary or expedient for the proper holding of any such election or meeting, and properly constituting the board, and may, if it appears to them necessary, direct the holding of an election or meeting, and fix the dates for any such election or meeting.

Removal of difficulties.

(2) Any such order may modify the provisions of this Part of this Act relating to elections and the enactments applied by, or rules framed under, this Part of this Act, so far as may appear to the county council necessary or expedient for carrying the order into effect.

(3) A county council may delegate their powers under this section to a committee.

Term of Office, &c.

14.—(1) The term of office of a guardian shall be three years, and one third, as nearly as may be, of every board of guardians shall go out of office on the fifteenth day of April in each year, and their places shall be filled by the newly-elected guardians :

Term of office and mode of retirement.

Provided that—

- (a) where the county council on the application of the board of guardians of any poor law union in their county consider that it would be expedient to provide for the simultaneous retirement of the whole of the members of that board, they may direct that the members of that board shall retire together on the fifteenth day of April in every third year ;
- (b) where at the passing of this Act the whole of the guardians, in pursuance of an order made by the Local Government Board before the fifth day of March, eighteen hundred and ninety-four, or by a county council since that date, retire together at the end of every third year, they shall continue so to retire, unless the county council, on the application of the board

or of any district council of a district wholly or partly within the poor law union, otherwise direct.

(2) The council of each county may, for the purpose of regulating the retirement of guardians in cases where they retire by thirds, and in order that as nearly as may be one third of the persons elected as guardians shall retire in each year, direct in which year or years of each triennial period the guardians for each parish, ward, or other area in the union shall retire.

(3) Subject to the provisions of this section, where a poor law union is situate in more than one county, the power under this section of regulating the retirement of guardians shall be exercised by a joint committee of the councils of the counties concerned, but if any of those councils do not, within two months after request from any other of them, appoint members of such joint committee, the members of the committee actually appointed shall act as the joint committee.

(4) Where an order or direction has, whether before or after the passing of this Act, been made or given by the council of a county or a joint committee of any such councils, as the case may be, with respect to the retirement of members of a board of guardians, the council or joint committee may, on the like application or request, by order rescind such first-mentioned order or direction, and any such order shall provide for all matters necessary or proper for carrying its objects into effect, and, in particular, shall require all the guardians in office at the date thereof to go out of office, and their places to be filled by the newly-elected guardians on the fifteenth day of April next following that date.

(5) Where under this section an order is made by a joint committee, or rescinds an order made by a joint committee, and the order or the rescinding order is within six weeks after the making thereof objected to by any of the county councils concerned or by any committee of any of those councils authorised in that behalf, it shall be of no effect unless and until confirmed by the Minister.

Resigna-
tion of
guardians.

15. The Minister may accept the resignation of any guardian tendered for any cause which the Minister may deem reasonable.

Chairman : Vice-Chairman : Additional Members.

16.—(1) A board of guardians shall at their annual meeting appoint a chairman for the ensuing year, and if the chairman so appointed dies, resigns or becomes incapable of acting, another person shall be appointed for the period during which the person so dying, resigning, or becoming incapable would have been entitled to continue in office, and no longer. Chairman and vice-chairman.

(2) A board of guardians may appoint a vice-chairman who shall hold office during the term of office of the chairman, and the vice-chairman shall, in the absence or during the inability of the chairman, have the powers and authority of the chairman.

(3) The person appointed chairman or vice-chairman by a board of guardians may be appointed from outside their own body, but in such case shall be appointed from persons qualified to be guardians of the union, and shall be an additional guardian and a member of the board.

17. A board of guardians may (in addition to the chairman and vice-chairman) appoint not more than two persons from outside their own body, but from persons qualified to be guardians of the union, and any person so appointed shall be an additional guardian and member of the board. Additional guardians.

Meetings and Proceedings.

18.—(1) Every board of guardians shall hold an annual meeting, and other meetings for the transaction of business under this Act once at least in each month and at such other times as may be necessary for properly executing their powers and duties under this Act. Meetings of guardians.

(2) Meetings of boards of guardians shall be held and the proceedings thereat shall be conducted in accordance with the rules contained in the First Schedule to this Act.

(3) No meeting of a board of guardians shall be held in premises licensed for the sale of intoxicating liquor, except in cases where no other suitable room is available for such meeting either free of charge or at a reasonable cost.

District
commit-
tees.

19. Where the whole of any one or more parishes comprised in a poor law union is situated at a greater distance than four miles from the place of meeting of the board of guardians of the union, the Minister may, on the application of the board of guardians, form the parish or parishes into a district and direct the board to appoint a committee of their members to receive applications from persons requiring relief in that district, to examine into such cases, and to report thereon to the board.

School Districts.

Combina-
tion of
unions into
school
districts.

20. The Minister may, by order, combine poor law unions into school districts for the management of any class or classes of children not above the age of sixteen years, but the Minister shall not include in any such district any parish, any part of which would be more than fifteen miles from any other part of the district, unless the majority of the guardians of each of the several unions proposed to be combined consent.

Constitution
of boards of
manage-
ment.

21.—(1) A board of management shall be constituted for every such school district, and shall have power to accept, take and hold, on behalf of their district, any lands, buildings, goods, effects or other property, as a corporation, and in all cases to sue and be sued as a corporation, by the name of “the Board of Management of the School District.”

(2) The chairman of the board of guardians of every poor law union forming part of a school district shall, if he consent thereto, be ex officio a member of the board of management, and in addition the board shall consist of such number of elective members as the Minister may determine.

(3) The elective members shall be elected in such manner as the Minister may determine, by the boards of guardians of the several poor law unions comprised in the school district in such proportions as the Minister may determine.

(4) The qualification for being an elective member shall consist in being assessed to rates within the school district on property of such net annual value as the Minister may fix, so, however, that the value so fixed shall not exceed forty pounds :

Provided that any person who would under this Act be disqualified for being a guardian of any poor law union forming part of a school district by reason of being or having been a paid officer, or being in receipt of a salary or emolument payable out of the general rate, shall be disqualified for being an elective member.

(5) The term of office of an elective member shall be such period not exceeding three years as the Minister may determine.

(6) The provisions set forth in the Second Schedule to this Act shall apply with respect to the election and resignation of members of boards of management and to the acts of such boards and the supply of vacancies therein.

(7) The Minister shall have power to regulate the proceedings of boards of management or of committees thereof.

Alteration and Dissolution of Unions and Districts.

22.—(1) If it appears to the Minister that it is expedient for the better administration of the relief of the poor that any poor law union should be dissolved, he may, after inquiry held in the union to be dissolved, by order dissolve the union.

Power to
dissolve or
alter
unions.

(2) The Minister may by order declare any parish to be separated from or added to any poor law union, but no alteration of the parishes constituting a union, nor any addition thereto, shall in any manner prejudice, vary or affect the rights or interests of third persons, unless such third persons, by themselves or their agents, consent in writing to the proposed alteration or addition.

(3) Where a poor law union is dissolved or added to another poor law union, the board of guardians thereof shall be dissolved as from the date of the dissolution or addition.

(4) A poor law union altered in pursuance of an order under this section shall, subject to such rules, orders and regulations as the Minister may make for adapting the constitution, management and government thereof to the altered circumstances, be constituted, managed and governed as if it had been originally formed in such altered state.

(5) Where any poor law union is dissolved, the parishes constituting the union, or where a poor law union is altered the parishes separated from the union, shall thenceforth be subject to be re-united, or united with other parishes or unions, or otherwise dealt with according to the provisions of this Part of this Act as the Minister shall think fit.

Additional powers of Minister as to unions.

23. Where a poor law union is situate in more than one county, the Minister may, without dissolving the union, provide, by order, that the union shall continue to be one union for the purposes of indoor relief or any of those purposes, and shall be divided into two or more poor law unions for the purpose of outdoor relief, and may, by the order, make such provisions as seem expedient for determining all other matters in relation to which the union is to be one union or two or more unions.

Power to alter and dissolve school districts.

24. The Minister may by order dissolve any school district, or may alter any such district by adding thereto or taking therefrom any poor law union, and upon the dissolution of any such district or the formation of the component parts thereof into one poor law union, the board of management thereof shall be dissolved.

Adjustments on alteration of areas or authorities.

25. Where any alteration of areas or authorities is effected under this Act, agreements may be made by any boards of guardians or other authorities affected thereby for the adjustment of any property, income, debts, liabilities and expenses, so far as they are affected by the alteration, and section sixty-two of the Local Government Act, 1888, as set out and modified with respect to any such adjustment in the Third Schedule to this Act shall apply.

51 & 52 Vict. c. 41.

Property and liabilities of dissolved boards.

26.—(1) On the dissolution of a board of guardians of any poor law union, or the board of management of any school district, their property and liabilities shall vest in the successors of the board as hereinafter defined, without any conveyance or other instrument or the authority of any court, and such successors shall continue in office for the purpose of discharging the debts and liabilities of, and recovering any property due to, the union or district in like manner as if no dissolution had taken place, and shall have

power to make any agreements, and carry out any agreements or awards in relation to the adjustment under this Act of any property, income, debts, liabilities and expenses affected by the alteration of any areas or authorities by reason of the dissolution :

Provided that the successors of the board shall not be empowered to act in manner aforesaid for a longer period than twelve months from the date of the dissolution unless the Minister by order authorises them to continue to act.

(2) For the purpose of disposing otherwise than in pursuance of an agreement or award of adjustment of property so vested in them the successors of the board shall have the like powers of disposal as are by this Act conferred on boards of guardians.

(3) The provisions contained in the Fourth Schedule to this Act shall have effect with respect to the successors of the board.

(4) For the purposes of this section and the said schedule, the expression "successors of the board" means the persons, or the survivors of the persons, acting as members of the board at the time of the dissolution, and any persons who may be added to or substituted for those persons by an order of the Minister.

27.—(1) Where any poor law union or school district is dissolved, or any poor law union has been added to another poor law union, or any parish has been added to or separated from a poor law union, and any person is, by reason of such dissolution, addition or separation deprived of any office or employment, or suffers any diminution of salary or emoluments, the Minister may award compensation to be paid to that person, either in a capital sum or by way of annuity.

Compensation for loss of office, &c.

(2) Any compensation awarded under this section shall, if and so far as provision for the purpose is not made by any agreement or award of adjustment under this Act, be payable by such persons and out of such fund as the Minister may direct.

28.—(1) All deeds, bonds, covenants, indentures, orders of justices, or other matters affecting any persons, apprentices, or officers entered into by or made upon or in favour of the board of guardians of a poor law union comprising a parish which is added to a poor law union,

Transfer of deeds, &c.

shall vest in and enure to the benefit of and shall be a charge upon the board of guardians of the union to which the parish is added without any assignment, transfer or other act.

(2) All securities, deeds, orders, books of account, and other documents relating thereto, shall, when required by the last-mentioned board of guardians be delivered to them by the persons having the custody thereof, and all such deeds (other than the title deeds to property), bonds, indentures, orders of justices, or other documents and matters as aforesaid belonging to any dissolved union or district shall be preserved in such custody and be open to inspection in such manner as the Minister may, by order, direct

(3) An alteration of the district for which an officer acts shall not affect any bond or security which may have been given in respect of him.

Officers.

Appoint-
ment of
officers.

29.—(1) The Minister may, by order, direct the board of guardians of any poor law union, or of so many poor law unions as he may by the order declare to be united for the purpose only of appointing and paying officers, to appoint such paid officers, with such qualifications as the Minister thinks necessary, for superintending or assisting in the administration of the relief of the poor in the union or united unions, and for otherwise carrying the provisions of this Act into execution.

(2) The Minister may define the duties to be performed by officers, and the limits within which officers are to act in the performance of their duties, and direct the mode of appointment and determine the continuance in office or dismissal of officers, and the amount and nature of the security to be given by such of them as the Minister thinks ought to give security, and may, if he thinks fit, regulate the amount of their salaries and the time and mode of payment thereof.

(3) The salaries of officers shall be paid by the board of guardians or the respective boards of guardians in the manner and proportions fixed by the Minister.

(4) No person who has been convicted of felony, fraud or perjury shall be eligible to hold any office under any board of guardians.

30.—(1) If a board of guardians fail for a period of twenty-eight days after receipt of a requisition from the Minister in that behalf to appoint, either originally or on a vacancy, any officer whom they are lawfully required to appoint, the Minister may, at any time after the expiration of that period, by order, appoint a fit person to be such officer, and determine the salary or remuneration to be paid to him by the board.

Power of Minister to appoint officers in default of appointment by guardians.

(2) The person so appointed shall be entitled to recover such salary or remuneration from the board of guardians, and shall have all the powers, rights, and privileges, and shall discharge all the same duties and incur the same responsibilities, as if the appointment had been duly made by the board.

31.—(1) The Minister may, by order, either upon or without any suggestion or complaint in that behalf from the board of guardians, remove or suspend any paid officer of the board whom he considers unfit for or incompetent to discharge his duties, or who at any time refuses or wilfully neglects to obey and carry into effect any rules, orders, and regulations made by the Minister, and may require the board to appoint a fit and proper person in his place.

Power of Minister to remove or suspend officers.

(2) Any person so removed or suspended shall not be competent to be appointed to or to fill any paid office connected with the relief of the poor in any poor law union except with the consent of the Minister.

(3) An order made by the Minister under subsection (1) of this section in which the Minister declares that the urgency of the case requires that the order shall take effect within a period of fourteen days, shall come into force at such time as the Minister by the order directs, notwithstanding that fourteen days have not expired since a copy of the same has been sent by the Minister as required by this Act.

32. A board of guardians may pay to or reimburse any of their officers any expense necessarily incurred in repairing or restoring property belonging to the officer which may have been maliciously damaged or destroyed by any person applying or having applied for relief, and any costs and expenses incurred in the prosecution of the offender not allowed by the court.

Reimbursement of damage to property of officers.

Officers of
school
districts.

33.—(1) The board of management of every school district shall have such of the powers of boards of guardians for the appointment, payment and control of officers as the Minister may direct, and the Minister shall have the same powers for directing and regulating the appointment, duties, remuneration and removal of officers of any such board as he has with respect to the officers of a board of guardians.

(2) Every such board of management shall with the consent of the bishop of the diocese appoint at least one chaplain of the established church as a paid officer of the board.

(3) All the provisions of this Act relating to officers of boards of guardians shall apply to officers of boards of management.

PART II.

RELIEF OF THE POOR.

General.

Relief of
the poor.

34.—(1) It shall be the duty of every board of guardians—

- (a) To set to work or put out as apprentices all children whose parents are not, in the opinion of the board, able to keep and maintain their children;
- (b) To set to work all such persons, whether married or unmarried, as have no means to maintain themselves, and use no ordinary and daily trade of life to get their living by;
- (c) To provide such relief as may be necessary for the lame, impotent, old, blind and such other persons as are poor and not able to work; and
- (d) To do and execute all other things concerning the matters aforesaid as to the board may seem convenient.

(2) Subject to the provisions of this Act as to orders of removal, the duties of a board of guardians under this section shall apply to all persons within their poor law union.

Relief in
sudden or
urgent
cases.

35.—(1) Every relieving officer, in cases of sudden or urgent necessity, shall give such relief otherwise than in money as may be requisite, and whether or not the applicant for relief is settled in a parish in the poor

law union; but save as provided by this section or by any rules, orders or regulations made by the Minister under this Act, it shall not be lawful for any relieving officer or any other person concerned with the relief of the poor to give any relief to any poor person except such as may be ordered by the board of guardians.

(2) If any relieving officer refuses or neglects to give relief in any case of sudden or urgent necessity to any person not settled nor usually residing in a parish in the poor law union, any justice of the peace may, by order in writing under his hand and seal, require the relieving officer to give such temporary relief, otherwise than in money, as the case may require.

(3) Any justice of the peace may give a similar order for medical relief where any case of sudden and dangerous illness may require it.

(4) If any relieving officer disobeys any order of a justice of the peace under this section he shall on summary conviction be liable to a fine not exceeding five pounds.

(5) Except as in this section provided, it shall not be lawful for a justice of the peace to order relief to any person.

36.—(1) Where any person having a fixed place of abode in a poor law union requires relief by reason of accident or sudden illness occurring to him while in a parish in some other poor law union in which he has no legal settlement, the cost of all relief lawfully given to him, medical or otherwise, shall—

Liability for relief in case of accident or illness.

- (a) if he is then in receipt of relief be paid or reimbursed in like manner and by the same board of guardians as that other relief; but
- (b) if he is not then in receipt of relief, be paid or reimbursed by the board of guardians of the poor law union in which he has his place of abode.

(2) A board of guardians may pay for any medical or other assistance which may be rendered to any poor person on the happening of any accident or sudden illness, although no order has been given for the relief by them or any of their officers.

Relief to
widows in
certain
cases.

37. In the case of a widow who has a legitimate child dependent on her for support, and no illegitimate child born after the commencement of her widowhood, and who at the time of her husband's death was resident with him in some place other than in the poor law union comprising the parish of her legal settlement, the board of guardians of the union comprising the parish of her legal settlement may grant relief to her although she is not residing in that union :

Provided that the board of guardians of the union in which the widow may be resident or may require relief shall be liable to relieve her in the same manner as any other person requiring relief in that union.

Subscrip-
tions to
hospitals,
&c.

38. A board of guardians may, with the consent of the Minister, contribute by way of an annual subscription towards the support and maintenance of—

- (a) any public hospital or infirmary for the reception of sick or infirm persons; or
- (b) any institution for blind or deaf and dumb persons or for persons suffering from any permanent or natural infirmity; or any association for aiding such persons; or
- (c) any association for providing nurses or for aiding boys and girls in service; or
- (d) any society for the prevention of cruelty to children; or
- (e) any other institution which appears to the board with the approval of the Minister to be calculated to render useful aid in the administration of the relief of the poor :

Provided that nothing in this section shall authorise any subscription to any institution unless the Minister is satisfied that the persons receiving relief from the board have, or could have, assistance therein in case of necessity.

Power to
employ
poor
persons on
cultivation
of land.

39. A board of guardians may employ and set to work in the cultivation of land acquired by them for the purpose such persons as the board are by this Act required to set to work, and may pay to the persons so employed by them who are not in receipt of other relief

reasonable wages for their work, and the persons so employed shall have the like remedies for the recovery of their wages as other agricultural labourers.

40. If any person for the purpose of obtaining relief for himself or for any other person wilfully gives a false name, or makes or uses a false statement to any board of guardians or any of their officers, he shall be deemed an idle and disorderly person within the meaning of section three of the Vagrancy Act, 1824.

Obtaining relief by false statement.

5 Geo. 4.
c. 83.

Liability for Maintenance, and Recovery of Relief.

41.—(1) It shall be the duty of the father, grandfather, mother, grandmother, husband or child, of a poor, old, blind, lame and impotent person, or other poor person not able to work, if possessed of sufficient means, to relieve and maintain such person.

Liability to relieve and maintain relatives.

(2) The mother of an illegitimate child, so long as she is unmarried or a widow, shall be bound to maintain such child as part of her family until the child attains the age of sixteen, or, if a female, marries under that age.

(3) A man who marries a woman having a child (whether legitimate or illegitimate) at the time of the marriage shall be liable to maintain the child as part of his family, and shall be chargeable with all relief granted to or on account of the child until the child attains the age of sixteen, or until the death of the mother of the child, and the child shall, for the purposes of this Act, be deemed a part of the husband's family accordingly.

(4) A married woman having separate property shall be subject—

- (a) to all such liability for the maintenance of her husband, children and grandchildren as her husband is by law subject to for the maintenance of herself, her children and grandchildren;
- (b) to the same liability for the maintenance of her parent or parents as an unmarried woman:

Provided that nothing in this subsection shall relieve her husband from any liability imposed on him by law to maintain her children and grandchildren.

Relief to
wife or
child
treated as
relief to
husband or
parent.

42. All relief given to or on account of a wife shall be considered as given to her husband, and all relief given to or on account of any child under the age of sixteen, not being blind or deaf and dumb, shall be considered as given to the father of the child, or to the husband of the mother, or, if the mother of the child is unmarried or a widow, to the mother of the child, as the case may be :

Provided that—

- (a) nothing in this section shall discharge the father, grandfather, mother and grandmother of any child from liability to relieve and maintain the child in pursuance of the provisions of this Act; and
- (b) where the husband of a woman is beyond the seas, or in legal custody, or in confinement in a licensed house or asylum as a lunatic or idiot, or is living apart from her, all relief given to her or to her child shall, notwithstanding her coverture, be considered as given to her in the same manner and subject to the same conditions as if she were a widow, without prejudice, however, to the liability of her husband in respect of such relief.

Power to
obtain
mainten-
ance
orders.

43.—(1) Where a married woman requires relief without her husband, or, being a lunatic, is removed to any institution for lunatics, the board of guardians of the poor law union to which she becomes chargeable may complain to a petty sessional court having jurisdiction in the union, and upon any such complaint the court may make an order upon the husband to pay such sum, weekly or otherwise, towards the cost of the relief of his wife, as, having regard to all the circumstances of the case, appears to them to be proper, and shall by the order determine how and to whom the payments shall from time to time be made.

(2) A board of guardians shall be entitled, on complaint to a petty sessional court having jurisdiction in the poor law union, to obtain orders of maintenance upon the relatives liable under this Act to maintain any person whose relief would be chargeable to them in such manner and according to such rate as the court may order.

44.—(1) Where any person in receipt of relief has in his possession or belonging to him any money or valuable security for money, the board of guardians of the poor law union to which he is chargeable may take and appropriate, or recover as a debt, so much of the money or the produce of the security as will reimburse the board for the amount expended by them in the relief of that person during the period of twelve months prior to such taking and appropriation, or to the institution of the proceedings for the recovery thereof, as the case may be. Appropriation and disclosure of property.

(2) In the event of the death of any person in receipt of relief having in his possession or belonging to him any money or property, the board of guardians of the poor law union in which he dies may reimburse themselves therefrom the expenses incurred by them in and about his burial, and in and about his maintenance at any time during the twelve months previous to his death.

(3) Every person who applies for relief having at the time of application in his possession and under his immediate control any money or other property of which, on inquiry made by the board of guardians or their officers, he does not make correct and complete disclosure, shall be taken to be an idle and disorderly person within the meaning of the Vagrancy Act, 1824.

45. Any relief, or the cost thereof, which is given to or on account of any person above the age of twenty-one, or to his wife, or to any member of his family under the age of sixteen, and which the Minister by any rule, order, or regulation directs to be given or considered as given by way of loan, and whether or not any receipt for such relief, or engagement to repay the same or the cost thereof, or any part thereof, has been given by the person to or on account of whom the relief was given, shall be considered a loan to such person. Relief by way of loan.

46.—(1) Any relief granted by way of loan to any person may be recovered in the county court or other court for the recovery of small debts for the district wherein the poor law union or the greater part thereof is comprised, on the plaint of the board of guardians. Recovery of relief by way of loan.

(2) Where any relief has been given by way of loan, or where any relief or the cost thereof is treated

as a loan in accordance with the provisions of this Act or any rules, orders or regulations made thereunder, any justice of the peace may, upon the application of the board of guardians providing the relief, and upon proof that the relief was given to or on account of any person, and that the sum due or any part thereof remains unpaid, issue a summons to such person requiring him and his employer to appear before a court of summary jurisdiction, at a time and place to be named in the summons, to show cause why any wages due to him, or which may from time to time become due to him, from his employer should not be paid over, in whole or in part, to the board.

(3) If no sufficient cause is shown to the contrary, or if the person does not appear on the return of the summons, the court shall, by order, direct the employer for the time being from whom any wages are due or may from time to time become due or payable to such person to pay out of the wages to the board, either in one sum or by such weekly or other instalments as the court may think fit, having regard to the circumstances of such person and his family, the amount of the relief, or so much thereof as may from time to time be due or unpaid.

(4) The payment to, and receipt of, the board of guardians shall be a good discharge to the employer for so much of the wages as are paid by virtue of any such order.

(5) If any employer refuses or neglects to pay to the board of guardians producing any such order the money thereby directed to be paid according to the terms of the order, and at the periods thereby fixed, the money shall from time to time be recoverable summarily as a civil debt.

Recovery of
relief by
way of loan
out of
annuity or
benefit.

47.—(1) Where any person in receipt of relief which has been declared by the board of guardians or their relieving officer to be by way of loan, is entitled whether as a member of a friendly society or otherwise to any annuity or periodical payment, the trustee or other person bound to make the payment may, except as hereinafter in this section provided, from time to time pay to the board of guardians, out of the instalments which have become due, the cost incurred in the relief of that person since the last instalment, and the

payment shall be a good discharge to the trustee or other person for the money so paid.

(2) Where the expenses of any such relief have been incurred in respect of a lunatic who is a member of a friendly society, and is as such entitled to receive any payment, the board of guardians may, except as hereinafter in this section provided, recover, as a debt, from him, or in case of his death from his executors, administrators or assigns, the sum so expended by them, and the managing body of the society, if before the money is paid over notice is served on them by the clerk to the board of guardians, shall pay the sum to the board, and shall thereupon be discharged from any further liability in respect thereof.

(3) Where the person entitled to receive such payment is entitled thereto as a member of a friendly society, then—

- (a) if he has a wife or other relative dependent upon him for maintenance the foregoing provisions of this section shall not apply, but the money to which he is so entitled shall, subject to any deductions for keeping up his membership required by the rules of the society, be paid or applied by the managing body of the society to or for the maintenance of his wife or relative;
- (b) if he has no wife or relative dependent upon him, a claim shall not be made under the foregoing provisions of this section unless the board or the relieving officer have, within thirty days of declaring the relief to be by way of loan, sent notice in writing thereof to the secretary or trustees of the society.

For the purposes of this section the expression “society” includes a branch of a society.

(4) Where any trustee or other person declines to make any payment in accordance with this section, the board of guardians may apply to a petty sessional court, and the court may, if satisfied that it is right in all the circumstances to do so, make an order upon him to pay to the guardians the required amounts—

- (a) immediately so far as they are then due; and
- (b) from time to time thereafter as the liability in respect of the relief arises.

(5) This section shall not have effect in respect of any relief granted contrary to the rules, orders and regulations made under this Act.

14 & 15
Geo. 5. c. 38.

(6) Nothing in this section shall affect section seventeen of the National Health Insurance Act, 1924.

Institutional Relief.

Power to
regulate
workhouses.

48.—(1) The Minister may make rules, orders and regulations for the government of workhouses and the preservation of order therein, for the classification of persons to be relieved in the several workhouses of the same poor law union, and for the nature and amount of the relief to be given to, and the labour to be exacted from, the persons relieved in workhouses.

(2) Subject to such rules, orders and regulations as aforesaid, a board of guardians may prescribe a task of work to be done by any person relieved in a workhouse in return for the food and lodging afforded to him:

Provided that, save as otherwise expressly provided by this Act, no person shall be detained in a workhouse by reason only of his failure to perform a task of work later than the expiration of four hours after the hour of breakfast on the day following that of his admission into the workhouse.

Power to
require pro-
vision of
workhouse
accommo-
dation.

49.—(1) The Minister may, with the consent in writing of a majority of the board of guardians of any poor law union, order the board to provide workhouse accommodation or additional workhouse accommodation of such size and description and in accordance with such plans and in such manner as the Minister may deem most proper for carrying this Act into effect.

(2) For the purposes aforesaid, the order may authorise the board either to acquire land by purchase or hire and erect buildings thereon, or to acquire by purchase or hire any workhouse, or other building capable of being converted into a workhouse, and to enlarge or alter the same.

Power to
order work-
houses to be
altered, &c.

50.—(1) The Minister may, without any such consent as is mentioned in the last preceding section, order a board of guardians to enlarge or alter a workhouse, or a building belonging to them capable of being converted into a workhouse, according to such plan and in such manner as the Minister considers most proper for carrying the provisions of this Act into execution, or to

provide proper drainage, ventilation, fixtures, furniture, surgical and medical appliances and other conveniences at any workhouse.

(2) Where a board of guardians consider it expedient to make any enlargement, alteration or improvement of their workhouse, or the premises, drainage or other appurtenances belonging thereto, at a cost not exceeding five hundred pounds, and the Minister gives his consent, they shall not require any order of the Minister to enable them to execute the work.

51.—(1) Where a husband and wife, both being above the age of sixty years, are received into a workhouse, they shall not whilst in the workhouse be compelled to live apart from one another. Husbands and wives in workhouses.

(2) Where a husband and wife are admitted into a workhouse, and either of them is infirm, sick or disabled by any injury, or above the age of sixty years, the board of guardians may permit them to live together, but any such case shall be reported forthwith to the Minister.

52. A board of guardians may direct that any inmate, or any class of inmates, shall be detained in a workhouse, after giving notice to quit, for times not exceeding the limited periods hereinafter mentioned; that is to say, Detention in workhouse for limited periods.

- (a) if the inmate has not previously discharged himself from the workhouse within one month before giving the notice, twenty-four hours ;
- (b) if he has discharged himself once or oftener within such month, forty-eight hours ;
- (c) if he has discharged himself more than twice within two months before giving the notice, seventy-two hours ;
- (d) if he has, in the opinion of the board, discharged himself frequently without sufficient reason, one hundred and sixty-eight hours ;

and every such inmate shall be detained in the workhouse for the time specified accordingly :

Provided that—

- (i) the board may from time to time alter or rescind any such direction, and they or, in the interval between their meetings, the visiting committee (whose direction shall be entered in

the visitors' book), may exempt, either wholly or partially, any inmate from the operation of this section ;

- (ii) the master or other person having charge of the workhouse may, if the board of guardians are not sitting or the visiting committee are not in attendance, discharge any person to whom this section applies before the expiration of any such period as aforesaid if any circumstances in his opinion so require, and shall report the facts of the case to the board at their next meeting ;
- (iii) this section shall not apply to casual poor ;
- (iv) a direction requiring a longer notice than seventy-two hours to be given must be entered in the minutes, and must specify the name of the person to whom it applies.

Detention of
inmate
suffering
from
disease, &c.

53. If an inmate of a workhouse is suffering from delirium tremens or from bodily disease of an infectious or contagious character, and the medical officer of the workhouse upon examination reports in writing that the inmate is not in a proper state to leave the workhouse without danger to himself or others, the board of guardians may direct the master to detain him therein, or, if the board are not sitting, the master may, until the next meeting of the board, detain him therein, and the inmate shall not be discharged from the workhouse until the medical officer certifies in writing that discharge may take place :

Provided that nothing in this section shall prevent the removal of any inmate after his parent or next-of-kin has given to the board such an undertaking as they consider satisfactory to provide for the removal, charge and maintenance of the inmate with due care and attention while the malady continues.

Workhouse
registers.

54. The master of every workhouse, or such other officer as the Minister may direct, shall register in a book to be provided by the board of guardians in such form as the Minister may appoint and kept specially for that purpose, the name of every person in receipt of relief in the workhouse, together with such particulars respecting the family and settlement of every such person, and his and their relief and employment as the Minister thinks fit.

55.—(1) A board of guardians shall cause all goods capable of being marked, and belonging to them, to be marked, stamped, or branded with such mark as they think proper for identifying the board by whom the goods have been provided; so however that no such mark or stamp shall be placed on any article of wearing apparel so as to be publicly visible. Marking of goods, &c.

(2) Any such mark, stamp, or brand as aforesaid on any article (being duly authenticated) shall be taken to be sufficient evidence, without further proof, of the property of the board in the article.

56. If a board of guardians do not appoint a visiting committee for the purpose of visiting their workhouse, or if three months have elapsed during which a visiting committee have not visited the workhouse, the Minister shall appoint a visitor, not being a member of the board, at a salary to be fixed by him to be paid by the board: Visitation of work-houses.

Provided that the appointment of any such paid visitor shall cease at the expiration of three months next after the appointment of a visiting committee by the board, subject nevertheless to his re-appointment in case of any repetition of such failure of the board or visiting committee as aforesaid.

57.—(1) Any justice of the peace having jurisdiction in the place where a workhouse is situate may visit and inspect the workhouse, at such times as he may think proper, for the purpose of ascertaining whether the rules, orders and regulations made by the Minister and applicable to the workhouse are duly observed and obeyed therein, and may examine into the state and condition of the inmates of the workhouse, and their food, clothing and bedding, and the state and condition of the workhouse. Power of justices to inspect workhouses.

(2) If in the opinion of the justice the rules, orders or regulations, or any of them, have not been duly observed and obeyed in the workhouse, it shall be lawful for him to summon the person offending to appear before a court of summary jurisdiction to answer any complaint touching such non-observance, and the offender shall be liable on summary conviction to a fine not exceeding five pounds.

Reception in
workhouses
of persons
belonging to
other
unions.

58.—(1) The board of guardians of a poor law union to which a workhouse belongs may, with the consent of the Minister, receive, lodge and maintain in the workhouse, any poor person belonging to any other poor law union upon such terms as may be agreed between the boards of guardians concerned.

(2) Any such person so received in a workhouse shall, while therein, be treated in all respects in like manner, and be subject to the same regulations and liabilities, as the other persons therein, and shall be deemed to be chargeable in the first instance to the receiving union; but his residence in that workhouse shall, in all other respects, be attended with the same legal consequences as if the workhouse were situated within the poor law union from which he was sent.

Limitation
on powers of
masters,
&c., of
workhouse
to punish.

59.—(1) No master of a workhouse or other person concerned in the administration of relief, shall punish with corporal punishment any adult person under his care or charge for any offence or misbehaviour whatsoever, or confine any such person for any offence or misbehaviour for more than twenty-four hours, or such further time as may be necessary in order to have such person brought before a justice of the peace.

(2) No master of a workhouse shall, on any pretence, chain or confine by chains or manacles any poor person of sane mind.

Introduc-
tion of
intoxicating
liquors
into work-
houses.

60.—(1) If any person introduces, or attempts to introduce, into any workhouse any intoxicating liquor without the order in writing of the master of the workhouse, it shall be lawful for the master of the workhouse, or any officer acting under his direction, to cause that person to be apprehended and brought before a justice of the peace, and the offender shall be liable on summary conviction to a fine not exceeding ten pounds.

(2) For the purposes of this section a court of summary jurisdiction may consist of a single justice of the peace, but in such case the fine imposed shall not exceed twenty shillings.

Offences by
masters and

61.—(1) If the master of a workhouse orders any intoxicating liquor to be introduced into the

workhouse, except for the domestic use of himself or of any officer thereof or their respective families, or except by and under the written authority of the medical officer of the workhouse or of a justice visiting the workhouse, or of the board of guardians, or in conformity with any rules, orders or regulations made by the Minister, he shall be liable on summary conviction to a fine not exceeding twenty pounds.

(2) If the master or any other officer of a workhouse—

- (a) introduces into the workhouse or sells, uses, lends, or gives away therein, or knowingly permits, or suffers to be introduced, or sold, used, lent or given away therein, any intoxicating liquor, contrary to the rules, orders, and regulations made by the Minister; or
- (b) punishes with any corporal punishment any adult person in the workhouse; or
- (c) confines any such person for any offence or misbehaviour for more than twenty-four hours, or such further time as may be necessary in order to have such person carried before a justice of the peace; or
- (d) in any way abuses or ill-treats, or is guilty of any other misbehaviour, or otherwise misconducts himself towards or with respect to any inmate of the workhouse,

he shall, for every such offence, be liable on summary conviction to a fine not exceeding twenty pounds.

(3) Proceedings under this section shall not be instituted except on the information of the board of guardians or an inmate of the workhouse.

62. It shall be the duty of the master of a workhouse to keep posted up in a conspicuous place in the workhouse one or more copies of the two last preceding sections, and if he fails to do so he shall be liable on summary conviction to a fine not exceeding ten pounds.

Posting up of copies of two preceding sections.

63.—(1) The Minister may make orders for regulating the mode in which a contract for the lodging, boarding, or maintenance of any poor person may be entered into by a board of guardians with the proprietor, manager, or superintendent of any house or establishment,

Regulation of boarding contracts.

and the terms and duration of any such contract, and if, after the making of any such order, any contract is entered into with any such proprietor, manager or superintendent, or any person acting on his behalf, which is not in accordance with the order, the contract shall be voidable, or if the Minister so directs the contract shall be void.

(2) All payments made under or in pursuance of any contract not entered into in conformity with such order as aforesaid at any time after the Minister has declared it to be void, and has given notice of such declaration to the board of guardians, shall be disallowed in their accounts, or the accounts of any of their officers by whom payments have been made or charged.

Rules for
boarding-
houses.

64.—(1) The Minister may make rules, orders and regulations for the management and government of any house or establishment wherein any poor person is lodged, boarded, or maintained, for hire or remuneration, under contract with any board of guardians, in like manner and to the same extent as he is empowered to do in the case of a workhouse, and the Minister may by any such order prohibit the reception or retention of any poor person or any class of poor persons in the house or establishment.

(2) The Minister may direct any such rules, orders, and regulations to any person being or acting as the proprietor, manager, or superintendent, or as an officer, in any such house or establishment, and they shall come into operation as soon after they are made as may be fixed thereby, and shall be binding upon the person named therein, and, if the Minister so directs, upon every person who afterwards succeeds him in the same capacity.

(3) Nothing in this section shall extend to any institution for lunatics, nor to any hospital, infirmary, school, or other institution supported by public subscriptions and maintained for purposes of charity only.

Removal of
officers of
boarding-
houses.

65.—(1) The Minister may, by order, remove from office any officer of any such house or establishment whom he considers unfit or incompetent to discharge the duties of his office, or who at any time refuses or wilfully neglects to obey and carry into effect any of

the rules, orders, or regulations issued by the Minister for the regulation of the house or establishment or of the officers or inmates thereof.

(2) Upon such removal the officer shall forthwith cease to act in his office, and shall not be entitled to any salary, wages or other remuneration in respect of any period after his removal.

66.—(1) The Minister may appoint a person, either temporarily or permanently, to visit and inspect any such house or establishment and the persons received and maintained therein, and to make a report to him upon any inspection.

Inspection
and visita-
tion of
boarding-
houses.

(2) There shall be paid to such visitors by the boards of guardians of the several poor law unions from which persons have been sent to the house or establishment, and are at the time of the inspection maintained therein, such remuneration as the Minister may, by order, direct.

(3) Any justice of the peace having jurisdiction in the place in which any such house or establishment is situated may visit, inspect and examine the house or establishment at such times as he may think proper for the like purpose, and with the same power, as a justice has, by virtue of this Act, in respect of a workhouse.

67. A board of guardians may provide for the reception, maintenance and instruction of any adult person in receipt of relief, being blind or deaf and dumb, in any institution established for the reception of persons suffering from such infirmities, and may pay the charges incurred in the conveyance of any such person to and from the institution as well as the expenses incurred in his maintenance, support and instruction therein.

Blind or
deaf and
dumb
persons.

68. A board of guardians may, with the consent of the Minister, send any idiot in receipt of relief to an establishment for the reception and relief of idiots whether maintained at the cost of the rates or by voluntary subscription, and may, with the like consent, send any person in receipt of relief, being an idiot or an imbecile or insane person, who may lawfully be detained in a workhouse to the workhouse of any other poor law union with the consent of the board of guardians of that union, and pay the cost of the maintenance, clothing and

Idiots, &c.

lodging of such person in the establishment or workhouse, as well as the cost of his conveyance thereto or his removal therefrom, and the expenses of his burial, when necessary.

Casual Poor.

Provision
of casual
wards.

69. Every board of guardians shall provide within their poor law union such casual wards, with such fittings and furniture, as the Minister, having regard to the number of casual poor persons likely to require relief therein, considers necessary.

Diet and
discipline of
casual poor.

70. Every casual poor person shall, subject to the provisions of this Act, be admitted, dieted, and set to work and discharged in such manner, and shall be subject to such regulations, as the Minister may prescribe, and the work so prescribed shall be in substitution for any task of work prescribed under the foregoing provisions of this Act.

Discharge of
casual poor.

71.—(1) A casual poor person shall not be entitled to discharge himself from a casual ward before the hour of nine o'clock in the morning of the second day following his admission, nor before he has performed the work prescribed for him in accordance with this Act.

(2) Where a casual poor person has been admitted on more than one occasion during one month into any casual ward of the same poor law union, he shall not be entitled to discharge himself before the hour of nine o'clock in the morning of the fourth day after his admission, and he may at any time during that interval be removed by any officer of the board of guardians, or by a police constable, to the workhouse of the union, and be required to remain in the workhouse for the remainder of the period of his detention :

Provided that, in computing the number of days during which a casual poor person may be detained under this section, Sunday shall not be included.

Power to
search
casual poor.

72. Upon application for relief by any person representing himself to be a casual poor person, the master or other officer of the workhouse, or the relieving officer to whom the application is made, may cause him to be searched, and may take from him any money which is found upon him, and shall deliver it to the

board of guardians to be applied towards the payment of their expenses under this Act.

Outdoor Relief.

73.—(1) The Minister may declare, by such rules, orders or regulations as he may think fit, to what extent and for what period the relief to be given to able-bodied persons or to their families in any particular poor law union may be administered out of the workhouse, either in money or by the provision of food or clothing, or partly in one way and partly in the other, and in what proportions, to what persons or class of persons, at what times and places, on what conditions, and in what manner such outdoor relief may be afforded.

Power of
Minister to
regulate out-
door relief.

(2) Subject as hereinafter provided, all relief which is given by any person having the control or distribution of the funds for the relief of the poor, contrary to such rules, orders or regulations, shall be unlawful and shall be disallowed in the accounts of the person giving the same.

(3) If a board of guardians to whom any such rules, orders or regulations are addressed, upon consideration of the special circumstances of their poor law union, or of any person or class of persons therein, are of opinion that the application and enforcement of the rules, orders or regulations, or of any part thereof, at the time or in the manner prescribed by the Minister, would be inexpedient, it shall be lawful for the board to delay the operation of the rules, orders or regulations, or of any part thereof, for any period not exceeding thirty days, to be reckoned from the day of the receipt of the rules, orders or regulations, and the board shall, twenty days at least before the expiration of that period, make a report of the special circumstances to the Minister.

(4) All relief given by the board before an answer to the report has been returned by the Minister, if otherwise lawful, shall not be deemed unlawful although given contrary to the rules, orders or regulations, or any of them, but if the Minister disapproves of the delay, or thinks that for the future the rules, orders or regulations ought to come into operation notwithstanding the special circumstances alleged by the board, he may, by a peremptory order (which may notwithstanding anything in this Act come into operation immediately),

direct that from a day to be fixed thereby the rules, orders and regulations, or such parts thereof as he may think expedient and proper, shall with or without modifications be enforced and observed by the board, and if any allowance is made or relief given by the board after the day so fixed contrary to any such last-mentioned order, the amount of the relief or allowance so given shall be disallowed in the accounts of the person giving the same.

(5) If a board of guardians to whom any such rules, orders or regulations are addressed depart from them or any of them in any particular instance of emergency, and within fifteen days after any such departure report the same and the grounds thereof to the Minister, and the Minister approves of the departure, or if the relief so given has been given in food, temporary lodging, or medicine and has been so reported as aforesaid, the relief granted by the board, if otherwise lawful, shall not be unlawful or subject to be disallowed.

Power of justices to order outdoor relief to aged and infirm.

74. It shall be lawful for any court of summary jurisdiction having jurisdiction in a poor law union by order to direct that relief shall be given to any adult person who from old age or infirmity of body is wholly unable to work, without requiring him to reside in a workhouse, if such person is lawfully entitled to relief in the union and desires to receive relief out of a workhouse:

Provided that such an order shall not be made unless one of the justices constituting the court can certify that to his own knowledge such person is wholly unable to work as aforesaid and so certifies in the order.

Offences by persons for whom task of work prescribed.

75. Where a board of guardians prescribe a task of work to be performed by any person to whom, or to whose wife or to whose child under the age of sixteen, outdoor relief is granted by the board (being a task suited to the age, sex, strength and capacity of that person and being of a nature and description of which the Minister has previously approved) and that person refuses or wilfully neglects to perform the task, or wilfully damages any of the tools, materials or other property belonging to the board, he shall be deemed to be an idle and disorderly person within the meaning of section three of the Vagrancy Act, 1824.

76.—(1) In granting outdoor relief to a member of a friendly society, a board of guardians shall not take into consideration any sum received from the friendly society as sick pay except so far as it exceeds five shillings a week: subject as aforesaid in estimating the amount of relief to be granted to any such member it shall be at the discretion of the board of guardians whether they will or will not take into consideration the amount received by him from the friendly society.

Outdoor relief to members of friendly societies, &c.

(2) In granting outdoor relief to a person in receipt of or entitled to receive any benefit under the National Health Insurance Act, 1924, the guardians shall not take into consideration any such benefit, except so far as such benefit exceeds seven shillings and sixpence a week.

14 & 15 Geo. 5. c. 38.

77. Every board of guardians shall cause to be registered in a book to be provided by them in such form as the Minister may appoint and kept specially for that purpose, the name of every person in receipt of outdoor relief in the poor law union, together with such particulars respecting the family and settlement of every such person and his and their relief and employment as the Minister thinks fit.

Register of persons in receipt of outdoor relief.

Children.

78.—(1) Where a child is maintained by a board of guardians and—

- (a) the child has been deserted by his parent; or
- (b) the board are of opinion that by reason of mental deficiency, or of vicious habits or mode of life, a parent of the child is unfit to have the control of the child; or
- (c) a parent of the child is unable to perform his or her parental duties by reason of being under sentence of penal servitude or of being detained under the Inebriates Act, 1898; or
- (d) a parent of the child has been sentenced to imprisonment in respect of any offence against any of his or her children; or
- (e) a parent of the child is permanently bedridden or disabled and is the inmate of a workhouse, and consents to the resolution herein-after mentioned; or
- (f) both the parents are dead, or in the case of an illegitimate child the mother is dead;

Control of guardians over orphans, &c.

61 & 62 Vict. c. 60.

the board may at any time resolve that until the child reaches the age of eighteen years all the rights and powers of such parent as aforesaid, or if both parents are dead of the parents, in respect of the child shall, subject as in this section mentioned, vest in the board, and thereupon those rights and powers shall so vest accordingly and shall continue so vested whether the child does or does not continue to be maintained by the board :

Provided that the board may rescind the resolution if they think that it will be for the benefit of the child that it should be rescinded, or may permit the child to be, either permanently or temporarily, under the control of the parent, or of any other relative or of any friend, or of any society or institution for the care of children.

(2) A court of summary jurisdiction, if satisfied on complaint made by a parent, or if there is no parent by the guardian, of a child that there was no ground for the resolution, or that it is for the benefit of the child that the child should be either permanently or temporarily under the control of his parent or guardian, or that the resolution of the board should be determined, may make an order accordingly, and the board shall comply with the order, and if the order determines the resolution it shall be thereby determined as from the date of the order, and the board shall cease to have the rights and powers of the parent as respects the child.

(3) For the purposes of this section a child shall be deemed to be maintained by a board of guardians if the child is wholly or partly maintained by them in a work-house or in any district school, separate school, separate infirmary, sick asylum, hospital for infectious disease, institution for the deaf, dumb, blind or idiots, or any certified school, or is boarded out by the board, whether within or without the limits of the union.

(4) Nothing in this section shall relieve any person from any liability to contribute to the maintenance of a child, but the fact of such contribution being made shall not deprive a board of guardians of any of the powers and rights conferred on them by this section.

(5) Nothing in this section shall authorise a board of guardians to cause a child to be educated in any religious creed other than that in which the child would

have been educated but for any resolution of the board under this section, nor affect the provisions of this Act respecting the religious education of a child maintained by a board of guardians, or respecting the right of any minister of the same religious persuasion as the child to visit and instruct the child, nor affect any provisions of this Act relating to the religious education of children maintained by a board of guardians.

(6) If any person—

- (a) knowingly assists, directly or indirectly, a child who has, in pursuance of this section, been placed under the control of a board of guardians to leave, without the consent of the board, the place where the child is under that control; or
- (b) knowingly induces, directly or indirectly, any such child to leave that place; or
- (c) knowingly harbours or conceals a child who has so left that place, or prevents him from returning to that place,

he shall be liable on summary conviction to a fine not exceeding twenty pounds.

(7) In the case of any child who is deemed to be maintained by a board of guardians and who is with their consent adopted by any person, the board shall, during a period of three years from the date of such adoption, cause the child to be visited at least twice in each year by some competent person appointed by them for the purpose, who shall report to them on such visit, and the board may, if they think fit, at any time during such period revoke their consent to the adoption, and thereupon the child shall be forthwith returned to them by the person having the custody of the child :

Provided that this subsection shall not apply when the adoption is effected under the Adoption of Children Act, 1926.

16 & 17
Geo. 5. c. 29.

79. Every board of guardians shall provide for the reception of children and young persons brought to a workhouse in pursuance of the Children Act, 1908, and, where the place to which under that Act a child or young person is authorised to be taken is a workhouse, the master shall receive the child or young person into

Reception and maintenance of children, &c., in workhouses. 8 Edw. 7. c. 67.

the workhouse if there is suitable accommodation therein, and any expenses incurred in respect of the child or young person shall be paid by the board of guardians.

Reception of
children
belonging to
another
union.

80.—(1) Where in a building belonging to a board of guardians adequate provision is made for the reception, maintenance and education of poor children, and there is more accommodation therein at any time than the board require for the poor children under their care, they may, with the consent of the Minister, contract with the board of guardians of any other poor law union for the reception and maintenance therein and instruction of any children under the age of sixteen years chargeable to such other union, being orphans or children deserted by their parents, or children whose parents or surviving parent consent.

(2) The children received under any such contract shall, while at such building, be maintained and instructed in the same manner in all respects as the children of the poor law union to which the building belongs, and shall be subject to the control and management of the board of guardians of that union and their officers in like manner as if they were chargeable to that union:

Provided that the residence of any such child in any such building shall in all other respects be attended with the same legal consequences as if the building were situated within the poor law union from which such child was sent.

District
schools.

81.—(1) The Minister may direct the board of management of a school district to purchase, hire or build, and to equip, buildings of such size and description and according to such plans, and in such manner, as the Minister may deem most proper, for the purpose of being used or rendered suitable for the relief and management of the children to be received into the school.

(2) The Minister may issue rules, orders and regulations for the government of any such school and the inmates thereof as if the school were a workhouse.

(3) It shall be lawful at all times for any of His Majesty's Inspectors of Schools to visit any district school, and to examine into the proficiency of the scholars therein.

82.—(1) Every board of management of a school district shall have such of the powers of a board of guardians for the relief and management of the children within any such school as the Minister may direct, and orders of a board of management may be enforced in the same manner and by the same remedies as orders of a board of guardians.

Powers and duties of boards of management.

(2) Any such board of management shall in the case of children in a district school suffering from disease have the like powers of detention as are by this Act conferred on boards of guardians in the case of inmates of workhouses.

83.—(1) Any child, not above the age of sixteen years, who is chargeable to a poor law union comprised in a school district and who is an orphan or has been deserted by his parents or whose parents or surviving parent consent, may be sent to a school of the district.

Children who may be sent to district schools.

(2) Any child not above the age of sixteen years who is chargeable to a poor law union which does not form part of a school district and who is an orphan, or has been deserted by his parents, or whose parents or surviving parent or guardians consent, may be sent by the board of guardians to a school in any school district the board of management whereof are willing to receive the child, and the provisions of this Act relating to the reception in a workhouse of persons belonging to another poor law union shall apply with the necessary modifications.

(3) When a child is sent to a district school from a poor law union which does not form part of a school district—

- (a) the costs of the maintenance, employment and instruction of the child in the school shall be paid by the board of guardians to the board of management according to such rates and at such times and in such manner as may be agreed between the said boards, with the approval of the Minister;
- (b) any such child while at the school shall be subject to the control and management of the board of management and their officers in like manner as if the poor law union formed part of the school district.

Certification
of schools.

84.—(1) The Minister may, if he thinks fit, upon the application in writing of the managers of any school supported wholly or partially by voluntary subscriptions, appoint a person to examine into the condition of the school and to report to him thereon, and, if satisfied with the report, may certify that the school is fitted for the reception of such children or persons as may be sent there by a board of guardians in pursuance of this Act.

(2) If at any time the Minister is dissatisfied with the condition or management of a certified school, he may, by notice addressed to the managers, declare that the certificate is withdrawn from such day, not less than two months after the date of the notice, as may be specified therein.

(3) For the purposes of this section, the expression “school” includes any institution established for the instruction of idiots or of blind, deaf, dumb, lame or deformed persons, but does not include any certified reformatory school.

Power to
send
children to
certified
schools.

85. Subject to the provisions of this Act as to blind children and deaf and dumb children, a board of guardians may send any poor child to any certified school if the managers of the school are willing to receive the child, and may pay the reasonable expenses incurred in the maintenance, clothing and education of the child whilst in the school, to an amount not exceeding such rate of payment as may be sanctioned by the Minister, and in the conveyance of the child to and from the school, and, in the case of death, the expenses of burial :

Provided that—

(a) except in the case of an orphan or a child deserted by his parents or surviving parent, a child shall not be sent to a certified school without the consent of his parents or surviving parent; but in the case of an illegitimate child the consent of the mother, if she has the care, custody or possession of the child, shall be sufficient ;

(b) nothing in this Act shall enable a board of guardians to keep any child in a certified school against the will of the child if above the age of fourteen, or, whatever may be the age of the child, against the will of the parents or surviving parent of the child ;

- (c) no child shall be sent to a certified school which is conducted on the principles of a religious denomination to which the child does not belong.

86. A board of guardians may, with the approval of the Minister, send any poor deaf and dumb or blind child who is—

- (a) an idiot or imbecile; or
 (b) resident in a workhouse or in an institution to which he has been sent by a board of guardians from a workhouse; or
 (c) boarded out by a board of guardians,

Special provisions as to deaf and dumb and blind children.

to any school fitted for the reception of such children, whether or not the school is a certified school, but save as aforesaid it shall not be lawful for a board of guardians to send any deaf and dumb or blind child to any school.

87.—(1) If the Minister is of opinion that any person is aggrieved by any child being sent to or kept at a certified school, he may order the child to be removed, and the board of guardians shall forthwith cause the child to be removed from the school, and every engagement previously entered into for the payment of the charges for the child shall thereupon become void for the future.

Power to remove children from certified school.

(2) The board of guardians may at any time, at their discretion, and shall, if so required by the managers of the school or upon the withdrawal of the certificate, cause any child to be removed from a certified school and brought back to the poor law union.

88.—(1) Every certified school shall be open to the visitation and inspection of any inspector appointed by the Minister, who shall be empowered to make any examination into the state and management of the school which he thinks requisite and as to the condition and treatment of the children therein, and shall report thereon to the Minister.

Inspection of certified schools.

(2) A board of guardians by whom any child may have been sent to a certified school may from time to time appoint any one of their number to visit and inspect the school, and the school shall at all reasonable times be open to such visitation and inspection.

Provisions as to Religious Creed.

Separate
creed
register.

89.—(1) The officer for the time being acting as the master or superintendent of a workhouse, or district school, shall keep a register of the religious creed of the inmates of the workhouse or school, separate from all other registers, in such form and with such particulars as may be prescribed by the Minister, and shall, upon the admission of any person to the workhouse or school, make due inquiry into his religious creed and enter the same in the register.

(2) In regard to any child under the age of twelve years in a workhouse or district school, the master or superintendent shall enter in the creed register, as the religious creed of the child, the religious creed of the father, or, if the creed of the father cannot by reasonable inquiry be ascertained, the creed of the mother unless her creed cannot by reasonable inquiry be ascertained.

The creed of an illegitimate child under the said age shall be deemed to be that of his mother, when that can be ascertained.

(3) If any question arises as to the correctness of any entry in the register, the Minister may inquire into the circumstances of the case and determine such question and direct such entry to remain or to be amended.

(4) Every minister of any religious denomination officiating in the church, chapel or other registered place of religious worship of that denomination nearest to any workhouse or district school, or any ratepayer in the poor law union or district, shall be allowed to inspect the creed register between the hours of ten o'clock in the morning and four o'clock in the afternoon on any day except Sunday.

Provisions
as to reli-
gious ser-
vices and
instruction.

90.—(1) No inmate of a workhouse or district school shall be obliged to attend any religious service which may be celebrated in a mode contrary to his religious principles.

(2) On the request of an inmate, any licensed minister of his religious denomination may, at all times in the day, visit the workhouse or district school for the purpose of affording the inmate religious assistance,

or for the purpose of instructing any child of the inmate in the principles of the child's religion.

(3) Any minister of any religious denomination officiating in the church, chapel or other religious place of worship of that denomination nearest to any workhouse or district school may, in accordance with regulations to be approved or ordered by the Minister, visit and instruct any inmate of the workhouse or school entered in the creed register as belonging to the same religious creed as the minister, unless the inmate, being above the age of fourteen, and after having been visited at least once by a minister of that denomination, objects to being instructed by him.

(4) Every inmate of a workhouse for whom a religious service according to his own creed is not provided in the workhouse, may, subject to regulations to be approved or ordered by the Minister, be permitted to attend at such times as the Minister may allow some place of worship of the inmate's own denomination, if there is any such place of worship within a convenient distance of the workhouse:

Provided that the board of guardians may, on the ground that such permission has been abused or on some other special ground, refuse permission to any particular inmate, and shall in such case cause an entry of such refusal, and the grounds thereof, to be made in their minutes.

91.—(1) Where a child who is an inmate of a workhouse or a district school is regularly visited by a minister of his own religion for the purpose of religious instruction, then, if the parents or surviving parent of the child, or, in the case of an orphan or deserted child, if such minister as aforesaid, makes a request in writing to that effect, the child shall not be instructed in any other religious creed or be required or permitted to attend the services of any other religious creed than that entered in the creed register, except where the child is over the age of twelve years and desires to receive instruction in some other creed or to attend the services of some other religious creed and is considered by the Minister to be competent to exercise his own judgment on the subject.

Religious
instruction
of children.

(2) A child who being an inmate of a workhouse or district school is not so regularly visited as aforesaid,

shall not be instructed in any religious creed other than that professed by his parents or surviving parent, and to which his parents or surviving parent object, or, in the case of an orphan or deserted child, to which his next-of-kin object.

Transfer of
child to
certified
school of
appropriate
religion.

92.—(1) If the parent, step-parent, nearest adult relative, or next-of-kin of any child, not belonging to the established church, relieved in a workhouse or in a district school, or, if there is no parent, step-parent, nearest adult relative, or next-of-kin, the god-parent of the child, makes application to the Minister in that behalf, the Minister may, if he thinks fit, order that the child shall be sent to some certified school established for the reception, maintenance and education of children of the religion to which the child belongs.

(2) Upon such an order being made, the board of guardians of the poor law union to which the child is chargeable shall cause the child to be conveyed to such school accordingly, and pay the costs and charges of the maintenance, lodging, clothing and education of the child therein.

(3) In the case of a deserted child or an orphan on behalf of whom no relative, next-of-kin, step-parent, or god-parent makes application, the Minister may exercise the power conferred upon him by this section upon being satisfied that there is reasonable ground for so doing.

Apprentices, &c.

Power of
guardians
to bind
children
apprentices.

93.—(1) Subject to the enactments relating to the employment of children, a board of guardians may bind any child whose parents are not, in the opinion of the board, able to maintain the child, to be an apprentice until the child attains the age of twenty-one years, or, being a female, marries under that age.

(2) The binding shall be as effectual for all purposes as if the child were of full age and by indenture of covenant bound himself.

Duties of
masters of
apprentices

94.—(1) The Minister may, by order, prescribe the duties to be performed by the masters to whom poor children may be apprenticed, and the terms and

conditions to be inserted in the indentures by which children may be bound as apprentices.

(2) Every master of such an apprentice who wilfully refuses or neglects to perform any of the terms or conditions so inserted in any such indenture shall be liable on summary conviction to a fine not exceeding twenty pounds.

(3) Subject to any such order as aforesaid, the provisions contained in the Fifth Schedule to this Act shall apply in the case of apprentices upon the binding of whom no sum, or no larger sum than five pounds, is paid.

(4) Nothing in this Act shall directly or indirectly affect the provisions of any Act relating to apprentices to the sea service.

95.—(1) It shall not be lawful for the master of an apprentice bound by a board of guardians to assign him to any other person or to discharge him from his service without the consent in writing of two justices having jurisdiction in the place where the master resides.

Restrictions
on discharge
and transfer
of appren-
tices.

(2) If any such master assigns any such apprentice to any other person, or discharges him from his service without such consent as aforesaid, he shall be liable on summary conviction to a fine not exceeding ten pounds.

96.—(1) If any person to whom a child has been bound apprentice by a board of guardians removes his residence or place of business out of the county, or forty miles from the parish wherein it was situated when the child was bound, he shall, at least fourteen days before the removal, give notice in writing thereof to the board of guardians of the poor law union wherein the apprentice is then resident.

Change of
residence of
master.

(2) The board of guardians and the master of the apprentice shall cause the apprentice to appear before two justices of the peace having jurisdiction in the place where he is serving, who may make an order, either for the continuance or discharge of the apprenticeship or for the binding or assigning of the apprentice to some other person, as they think fit, and may also require the master to pay the amount of the premium received with the apprentice, or such portion of it as they think fit, for the expense of binding or assigning the apprentice to some other person.

(3) If any master removes as aforesaid and takes an apprentice to any other place without such order as aforesaid, or wilfully abandons and leaves an apprentice without giving such notice as aforesaid, he shall be liable on summary conviction to a fine not exceeding ten pounds :

Provided that proceedings for such an offence shall not be instituted after the expiration of three months from the commission of the offence.

Appeals.

97. If any person is aggrieved by any matter or thing done, or omitted to be done, by any board of guardians, or by any justices of the peace, or by any other person whomsoever, under and by virtue of the provisions of this Part of this Act relating to apprentices, he may appeal to the next court of quarter sessions.

Register of apprentices.

98.—(1) Every board of guardians shall provide a register in the form set out in the Sixth Schedule to this Act and shall cause to be entered therein the name of every child who is bound by the board as an apprentice, or who having been so bound is assigned to some other person, and such other particulars as are required by the said form.

(2) Any person may, at all reasonable hours, inspect any such register, and may take a copy of any entry therein, in the case of any justice of the peace without fee, and in the case of any other person upon payment of a fee of sixpence.

(3) Where it is proved to the satisfaction of any court that an indenture is lost or has been destroyed, an entry in any such register shall be accepted by the court as sufficient evidence of the facts therein specified.

(4) This section shall apply to any persons (not being guardians) on whom powers of binding parish apprentices are conferred by any Act of Parliament, whether public general or local or personal, in like manner as it applies to a board of guardians.

Register of young persons taken as servants.

99.—(1) Every board of guardians shall provide and keep a register in the form set out in the Sixth Schedule to this Act, and shall cause to be entered therein the name of every young person under the age of sixteen hired or taken as a servant from the workhouse,

together with the several other particulars specified in the form.

(2) Every such entry shall be signed by the presiding chairman at an ordinary meeting of the board.

100.—(1) Where any young person under the age of sixteen has gone into service from the workhouse, or has been bound as an apprentice by a board of guardians, then, so long as the servant or apprentice is under the age of sixteen and continues in the same service and resides in the poor law union or within five miles thereof, the board shall cause him to be visited at least twice a year, and a report to be furnished as to whether there is reason to believe that he is not supplied with the necessary food, or is subjected to cruel or illegal treatment in any respect.

Visitation
of servants
and appren-
tices.

(2) Where any young person under the age of sixteen has gone into service from the workhouse, or has been bound as an apprentice by a board of guardians, and the residence of the employer or master is more than five miles from any part of the poor law union, written notice of the service or apprenticeship, specifying the name and age of the servant or apprentice, and the name, description and residence of the employer or master, shall be forthwith sent by the board to the board of guardians of the poor law union in which the employer or master resides, and thereupon it shall become the duty of such last-mentioned board to cause the particulars contained in such notice to be registered in a book to be provided by them for the purpose, together with the name of the poor law union from which the notice has been received, and they shall cause such person to be visited as frequently, and in the same manner in all respects, as if he had gone from their own workhouse, or had been bound as an apprentice by themselves.

(3) Any board of guardians or board of management of a school district may appoint an officer or other person to visit and report upon the condition, treatment and conduct of any young person under the age of sixteen who has gone into service from a workhouse or district school.

101. If any boy not an apprentice in the merchant service who, or whose parent, is in receipt of relief, is desirous of serving in the naval service of the Crown, the board of guardians may enable him to be sent

Power to
pay ex-
penses of
boys en-
tering naval
service.

for approval by the competent authority, and may pay such sum, if any, as may be required by the regulations of the service for providing outfit or otherwise, and also such expenses as may be necessary to be incurred for the conveyance of the boy in charge of a proper person to and from the port or place in the United Kingdom at which he may be required to attend for examination, and, if accepted, for entry into the service.

Emigration.

Power to
assist emi-
gration.

102. A board of guardians may, with the consent of the Minister and in compliance with such rules, orders, and regulations as he may prescribe, procure or assist in procuring the emigration of—

- (a) any orphan or deserted child under the age of sixteen who is chargeable to the poor law union;
- (b) any other poor person who is chargeable, or would if relieved be chargeable to the poor law union;
- (c) any poor person having a settlement in any parish of the poor law union:

Provided that a board of guardians shall not procure the emigration of an orphan or deserted child unless the child has given its consent before a petty sessional court held in or near the union, and a certificate of the consent under the hands of two of the justices present has been transmitted to the Minister.

Burial.

Burial of
poor
persons

103.—(1) A board of guardians may bury the body of any poor person which may be within the poor law union, and may pay the costs of the burial of any poor person dying outside the union, who was at the time of his death in receipt of relief from them.

(2) Every body directed by a board of guardians to be buried shall be buried either—

- (a) in the burial ground of the parish in which the death occurred or is deemed to have occurred; or
- (b) if the death did not take place in a workhouse or district school, in the burial ground of the parish in the poor law union in which the deceased resided at the time of his death; or

- (c) where in pursuance of the powers conferred by section six of the Burial Act, 1857, or by the next succeeding section of this Act the board of guardians have acquired a right to bury in any burial ground, in that burial ground, unless the deceased in his lifetime or the wife, husband, or next-of-kin of the deceased has expressed a desire to the contrary :

20 & 21 Vict.
c. 81.

Provided that—

- (i) if the deceased in his lifetime, or the wife, husband, or next of kin of the deceased, has expressed a desire to that effect, then, subject to the provisions of the next succeeding paragraph of this proviso, the burial shall take place in the burial ground of the parish in which the deceased resided at the time of his death, or, if the death occurred in a work-house or district school, in the burial ground of the parish in which the death is deemed to have occurred;
- (ii) if the burial ground mentioned in paragraph (a) or paragraph (b) of this subsection has been closed and no other burial ground provided in its place, or if in consequence of the crowded state of such burial ground as aforesaid, the board of guardians are of opinion that burial therein would be improper, it shall be lawful for the guardians to bury the body in the burial ground of some neighbouring parish;
- (iii) where the deceased in his lifetime, or the wife, husband or next-of-kin of the deceased, has expressed a desire that the burial shall take place in any particular burial ground (whether or not any such burial ground as is hereinbefore in this section mentioned), nothing in this section shall prevent the board from burying the body in that burial ground.

(3) In all cases of burial by or under the direction of a board of guardians, the proper burial fees shall be paid by the board to the person entitled to receive such fees.

104.—(1) A board of guardians may contribute such sum of money as the Minister may approve towards the provision or enlargement of any burial ground

Power of
guardians to
acquire
right

to bury in
certain
burial
grounds.

in the poor law union, or the burial ground of the parish in which the workhouse is situated, and, where a burial ground is provided or enlarged with the aid of such a contribution, it shall be lawful for the board to bury therein the dead body of any person dying in the workhouse.

(2) A board of guardians may enter into agreements with the proprietors (whether a company, burial board, local authority, committee or other body of persons) of any burial ground for the burial of the bodies of any poor persons which the board may undertake to bury, or towards the burial whereof they may render assistance, and, where such an agreement is made, the burial in that burial ground of any body under the directions of the board or with their aid shall be lawful :

Provided that no such agreement shall be valid unless made in such form and with such stipulations as the Minister may approve.

Prohibition on
officers
receiving
remuneration in
respect of
burials.

105. No officer concerned with the relief of the poor shall receive any money for the burial of the body of any poor person or act as undertaker for reward in the burial of any such body, or receive any money from any dissecting school or school of anatomy or hospital, or from any person to whom any such body may be delivered, or derive any personal emolument whatever for or in respect of the burial or disposal of any such body, and if any officer contravenes any of the provisions of this section he shall be liable on summary conviction to a fine not exceeding five pounds.

Recovery of
expenses of
burials.

106. The cost of burying any person by or under the direction of the guardians shall be recoverable in like manner and from the same parties as the cost of any relief (if given to such person when living) would have been recoverable.

Provision as
to deaths in
workhouse
or district
school.

107. For the purposes of the provisions of this Act relating to the burial of poor persons—

(a) in the case of a death in a workhouse, the death shall be deemed to have taken place in the parish in the poor law union where the deceased last resided previously to his removal to the workhouse;

- (b) in the case of a death in a district school, the death shall be deemed to have taken place in the parish in the poor law union from which the deceased was sent to the school, or, if sent to the school from a workhouse, to that workhouse.

PART III.

IRREMOVABILITY, SETTLEMENT AND REMOVAL.

Irremovability.

108.—(1) A person who is in receipt of relief, unless rendered irremovable by virtue of this Act, may be removed in manner hereinafter provided to the poor law union comprising his parish of settlement. Irremovability.

(2) No person shall be removed, nor shall any order be made for the removal of any person, from any poor law union in which he has resided for one year next before the application for the order :

Provided that the time during which he has been—

- (a) serving in the naval, military or air service of the Crown as a seaman, marine, soldier or airman; or
- (b) resident as an in-pensioner in Greenwich or Chelsea Hospital; or
- (c) confined in an institution for lunatics; or
- (d) resident as a patient in a hospital; or
- (e) detained in an institution or resident in an approved home under the Mental Deficiency Act, 1913; or 3 & 4 Geo.
5. c. 28.
- (f) resident in the workhouse of, or otherwise in receipt of poor relief from, a board of guardians; or
- (g) wholly or in part maintained by any rate or subscription raised in a parish in which he does not reside, not being a bonâ fide charitable gift; or
- (h) a prisoner in a prison; or
- (i) detained in a certified reformatory or industrial school; or

42 & 43 Vict.
c. 19.

(j) detained in a retreat under the Habitual Drunkards Act, 1879, or detained in or absent under licence from a State inebriate reformatory or a certified inebriate reformatory under the Inebriates Act, 1898;

61 & 62 Vict.
c. 60.

shall not be regarded as interrupting his residence in the union, but shall for all purposes be excluded in the computation of time hereinbefore mentioned.

(3) Whenever any person has a wife or children whose settlement is in the same parish as his or her own, the wife and children shall be removable from any poor law union from which he or she would be removable notwithstanding anything contained in the foregoing provisions of this section, and shall not be removable from any poor law union from which he or she would be irremovable by reason of any of the said provisions :

Provided that, if a married woman deserted by her husband resides in any poor law union for one year after such desertion in such a manner as would, if she were a widow, render her exempt from removal, she shall not be liable to be removed from the union unless her husband returns to cohabit with her.

(4) No woman residing in a poor law union with her husband at the time of his death shall be removed, nor shall any order be made for her removal, from the union for one year next after his death, if she so long continues a widow.

(5) No child under the age of sixteen residing in a poor law union with his father, mother, stepfather, stepmother or reputed father shall be removed, nor shall any order be made for the removal of the child, from the union in any case where the father, mother, stepfather, stepmother or reputed father may not lawfully be removed therefrom.

(6) Where a child under the age of sixteen residing with his surviving parent is left an orphan, and the parent at the time of death was irremovable by reason of residence, the orphan, if not otherwise irremovable, shall be exempt from removal in like manner and to the same extent as if he had then acquired for himself an exemption from removal by residence.

(7) Nothing in this Act shall affect any exemption from removal to which by the common law the owner

of an estate and the husband and wife of such an owner are entitled, or affect any rule of common law against the separation from his mother of a child under the age of seven.

(8) Where a person is irremovable from any poor law union, and the parish wherein that exemption has been wholly or partly acquired is transferred to another poor law union, he shall so long as he continues to reside in such other union be irremovable therefrom.

Settlement.

109.—(1) A person shall be deemed to be settled Settlement. in the parish in which he was born until it is shown that he has derived or acquired a settlement elsewhere, or is presumed to be settled elsewhere, and the parish in which a person is last settled shall be deemed to be his parish of settlement.

(2) Subject to the provisions of this Part of this Act, a person may—

- (a) derive a settlement in a parish from a parent or from a husband;
- (b) acquire a settlement in a parish by residence, by apprenticeship, by estate, by renting a tenement, or by the payment of rates or taxes;
- (c) be presumed to be settled in a parish by reason of an estoppel.

110.—(1) Until a person acquires a settlement of Derivative his own or derives a settlement from a husband, that settlements. person—

- (a) if a legitimate child, shall take and follow up to the age of sixteen the settlement of his father, or, if and so long as his father has no settlement, the settlement enjoyed by his mother immediately before her marriage to his father, but if after the death of the father the mother acquires a settlement (not being a derivative settlement) shall take and follow up to the age of sixteen that settlement;
- (b) if an illegitimate child, shall take and follow up to the age of sixteen the settlement of his mother;

and shall in either case retain the settlement so enjoyed at the age of sixteen.

(2) Subject to the provisions of the next succeeding section as to a married woman deserted by her husband, a married woman shall take and follow the settlement of her husband, and shall retain the settlement so enjoyed at the date of his death or of the dissolution of the marriage until she acquires or derives another settlement :

Provided that, if her husband has no settlement, she shall not by reason of her marriage cease to retain the settlement enjoyed by her immediately before her marriage to him.

(3) If any person, whether legitimate or illegitimate, who has attained the age of sixteen has not acquired a settlement nor derived one from a husband, and it cannot be shown what settlement has been derived from a parent without inquiring into the derivative settlement of that parent, that person shall be deemed to be settled in the parish in which he was born.

Settlement
by resid-
ence.

111.—(1) Where a person has resided for the term of three years in a parish in such manner and in such circumstances in each of those years as would, in accordance with this Act, render him irremovable, he shall be deemed to be settled in that parish.

(2) A married woman deserted by her husband may acquire for herself a settlement by residence.

Settlement
by appren-
ticeship.

112. If any person is bound an apprentice by a duly stamped deed, writing or contract, and in pursuance thereof resides for forty days in any parish, he shall be deemed to have acquired a settlement therein :

Provided that—

(a) no settlement shall be acquired by being apprenticed to the sea service or sea fishing service; and

(b) where a person bound as an apprentice by a board of guardians has been assigned to a person other than the person to whom he was originally bound, no settlement by virtue of service of apprenticeship after the assignment shall be acquired unless the assignment was legally made in accordance with the provisions contained in this Act.

113.—(1) A person who, having an estate in any parish, resides in the parish for forty days shall be deemed to have acquired a settlement therein, but shall not retain the settlement so acquired if he ceases to reside within ten miles of the parish :

Provided that, if he purchased the estate and has not paid as consideration therefor at least thirty pounds, he shall not be deemed to have acquired a settlement in the parish unless he has resided in the estate for forty days, and shall not retain the settlement so acquired if he ceases to reside on the estate.

(2) Where a person having acquired a settlement under this section ceases by reason of non-residence to retain such settlement, any question as to his settlement shall be determined as if he had never acquired a settlement under this section.

(3) For the purposes of this section, the expression “ estate ” means such an estate or interest as would immediately prior to the passing of this Act have been sufficient to support a claim to a settlement by estate.

114. If any person—

- (a) rents, and by virtue of such renting occupies for a whole year, a tenement in any parish consisting of a separate and distinct dwelling-house or building, or of land, or of both, at a rent of not less than ten pounds; and
- (b) himself pays the rent or at least ten pounds thereof; and
- (c) is assessed to and pays the general rate in respect of that tenement for one year; and
- (d) resides in the parish for forty days

he shall thereby acquire a settlement in the parish.

Settlement
by renting a
tenement.

115. If any person—

- (a) is charged with and pays—

- (i) the public taxes or local rates in respect of any tenement of the yearly value of ten pounds at least, being his own property; or

- (ii) the local rates in respect of any tenement consisting of a separate and distinct dwelling-house or building, or

Settlement
by paying
rates or
taxes.

of land, or of both, rented by him at a rent of not less than ten pounds a year for one whole year; and

- (b) resides in the parish in which the tenement is situated for forty days after such payment as aforesaid,

he shall thereby acquire a settlement in that parish :

Provided that in the case of a tenement so rented • no settlement shall be acquired under this section unless the tenement is occupied for a whole year by virtue of the renting and rent to the amount of ten pounds is actually paid for a year of the tenancy.

Settlement
by estoppel.

116. Where an order has been made adjudging any person to be settled in a parish named therein and ordering him to be removed thereto, then—

- (a) if the order has not been appealed against, or if any appeal against the order has been dismissed or abandoned; and
- (b) if the person has been removed thereunder or has, after the service of the order, been relieved without actual removal by the board of guardians of the poor law union comprising the parish,

the order shall be conclusive evidence for all purposes that such person was at the date thereof settled in the parish.

Restrictions
on the
acquisition
of settle-
ment in cer-
tain cases.

117.—(1) A person born in any poor law institution shall, so far as regards his settlement of birth, be deemed to have been born in the parish in which his mother was residing before she last became chargeable as an inmate of the poor law institution.

(2) No person whose mother was at the time of his birth a prisoner in a prison, or a patient in a lying-in hospital, shall be deemed to be settled, by reason of his birth therein, in the parish in which the prison or hospital is situated, and in the case of an illegitimate child born in a lying-in hospital, the parish in which the mother was settled at the time of birth shall be deemed to be the child's settlement of birth.

(3) No person to whom any land hired, taken, or enclosed under or by virtue of the provisions of Part V. of this Act, or the corresponding enactment in any Act

repealed by this Act, has been let, shall acquire a settlement by reason of his renting and occupying, or by reason of his paying local rates in respect of, such land, either alone or with any other land or tenement.

(4) No toll keeper of any navigation, or person renting the tolls and residing in any toll house of the navigation, shall acquire any settlement by reason of renting and occupying a tenement or by reason of the payment of public taxes or local rates.

118. No person shall derive or acquire, or be deemed to have derived or acquired, a status of irremovability or settlement except in accordance with the provisions of this Part of this Act; and any question arising after the commencement of this Act as to the removability or settlement of any person shall be determined as if those provisions had been in force at all material dates : Retrospective effect of provisions as to removability and settlement.

Provided that—

- (a) where before the commencement of this Act an application has been made to justices or to the Minister to determine any question in relation to the settlement or removal of any person, that question shall in all stages of the proceedings be determined as if this Act had not been passed ; and
- (b) where any such question has been determined before the commencement of this Act, and an application to determine a question relating to the settlement or removal of the same person and dependent on the same facts is made after the commencement of this Act by or against a board of guardians not bound by the previous decision, the question on that application shall be determined as if this Act had not been passed.

119.—(1) Where at the time of the grant of relief to any person that person's settlement is in question, the expenses of his relief pending the determination of the settlement shall be chargeable to the board of guardians of the poor law union which is finally determined or admitted to be the poor law union in which his parish of settlement is comprised : Liability for relief pending determination of settlement.

Provided that—

- (a) that board shall not be liable to repay the cost of relief granted before notice of the person having become chargeable was sent to them by the board which granted relief; and
- (b) this section shall not apply where a removal order is refused on the ground that the person whose settlement was in question had acquired a status of irremovability in the poor law union from which it was sought to remove him.

(2) Any sum which a board of guardians are liable to pay under this section shall be recoverable summarily as a civil debt.

Removal.

Removal by
consent.

120. If a board of guardians are satisfied that any person chargeable to another poor law union is settled in a parish within, and removable to, their union, and consent under their common seal to receive such person without a removal order, the board seeking to remove him may do so without such an order.

Removal by
order of
justices.

121. Upon complaint made by a board of guardians that a person has become chargeable to the poor law union, two justices of the peace having jurisdiction in any part of the union, if satisfied of the truth of the complaint and that the person is not settled within or irremovable from the union, may order him to be removed to the poor law union in which his parish of settlement is situated :

Provided that—

- (a) no order shall be made for the removal of any person becoming chargeable in respect of relief made necessary by sickness or accident, unless the justices making the order state therein that they are satisfied that the sickness or accident will produce permanent disability; and
- (b) a removal order in respect of a settlement alleged to have been acquired by residence shall not be made upon the evidence of the person to be removed without such corroboration as the justices think sufficient.

122.—(1) No person shall be removed under a removal order until twenty-one days have elapsed after written notice of his being chargeable, accompanied by a copy of the order and by a written statement setting forth the grounds of removal (including particulars of the settlement relied upon in support thereof), has been served by the removing board of guardians upon the board of guardians against whom the order is made. Time for removal.

(2) The clerk to the justices making a removal order shall keep the depositions upon which the order was made, and shall within seven days furnish a copy thereof to the board of guardians against whom the order is made, if they apply for a copy and pay for it at the rate of twopence per folio of seventy-two words; and if such an application is made within the period of twenty-one days above mentioned, no person named in the order shall be removed until the expiration of fourteen days from the sending of the copy of the depositions.

(3) If notice of appeal against a removal order is received by the removing board of guardians within the period of twenty-one days mentioned in subsection (1) of this section, or if a copy of the depositions is applied for within that period, before the expiration of the fourteen days mentioned in subsection (2) of this section, no person named in the order shall be removed until the appeal has been finally disposed of or the time for prosecuting the appeal has expired.

(4) Notwithstanding anything in this section, if the board of guardians against whom a removal order is made consent in writing to submit to the order and to receive any person named therein, that person may be removed forthwith.

123.—(1) The board of guardians of the poor law union from which any person is ordered to be removed under the provisions of this Part of this Act may employ any proper person to remove and deliver him to the board of guardians of the poor law union to which he is ordered to be removed, and the delivery of any such person at the workhouse of the last-mentioned board to any officer of the workhouse shall be deemed a delivery to the board of guardians. Execution of removal order.

(2) If any guardian or officer of a workhouse refuses to receive any person so delivered in accordance with the

terms of a removal order and of this Part of this Act, he shall be liable on summary conviction to a fine not exceeding five pounds.

Suspension
of removal
order in case
of sickness.

124.—(1) If it appears to the justices making a removal order that any person named therein is unable to travel by reason of sickness or other infirmity, or that it would be dangerous for him to do so, they shall by an endorsement on the order signed by them suspend the execution of the order until satisfied that it may safely be executed without danger to that person.

(2) The suspension of a removal order under this section shall operate also as a suspension for the same period of the order so far as it relates to every other person named therein who was of the same household or family as the sick or infirm person at the time of the making of the order.

(3) No act done by any person continuing to reside in a poor law union under the suspension of a removal order shall be of any effect for the purpose of giving him a status of irremovability therefrom or a settlement therein.

(4) The suspension of a removal order shall not affect the time within which notice of appeal against the order has to be given.

(5) No expenses of relief shall be recoverable under a suspended removal order unless notice of the order, with a copy thereof, has been served within ten days upon the board of guardians against whom it is made; but subject as aforesaid,—

(a) the removing board of guardians may at the end of every quarter send to the board of guardians against whom the order is made an account of the cost incurred in the relief of any person named in the order, and may recover the amount reasonably expended by them (or so much thereof as may remain unpaid) in the county court within whose district their poor law union or the greater part thereof is situated;

(b) if the removal order is subsequently executed, or the person named in the order dies before the execution thereof, the justices who made the order or any two justices having the same jurisdiction may upon complaint order the

expenses proved to have been incurred by the suspension of the order (or so much thereof as may remain unpaid) to be paid by the board of guardians against whom the removal order was made.

(6) If the sum ordered to be paid by any board of guardians under paragraph (b) of the preceding subsection exceeds twenty pounds, the board may appeal against the order to the next court of quarter sessions in like manner as against a removal order; and on such an appeal the court may if they think fit reduce the sum ordered to be paid.

(7) Where a removal order has been suspended, the justices who made the order, or any two justices having the same jurisdiction, may, by endorsement signed by them, authorise the execution of the order.

125. The provisions of this Part of this Act which relate to the sending and service of copies of orders of removal shall apply to such orders when suspended, and to orders consequent upon such suspension, and to demands for payment of expenses arising thereon.

Service of
suspended
orders of
removal, &c.

126.—(1) Where a removal order has been made and a copy thereof served as provided by this Part of this Act, the board of guardians obtaining the order may at any time abandon it by written notice served upon the board of guardians against whom the order was made, and thereupon the order and all proceedings consequent thereon shall become null and void.

Abandon-
ment of
removal
order.

(2) The board of guardians abandoning an order shall pay to the board of guardians against whom the order was made the costs which the latter board may have incurred by reason of the order and of all subsequent proceedings thereon, which costs may be taxed by the proper officer of the court before whom any appeal against the order (if it had not been abandoned) might have been brought, and shall be recoverable summarily as a civil debt.

127.—(1) Any person who thinks himself aggrieved by a removal order may appeal against the order to the next practicable court of quarter sessions having jurisdiction in the county or place for which the justices who made the order act :

Appeals.

Provided that—

- (a) no appeal against a removal order shall be allowed unless notice of appeal is given within twenty-one days after the notice of chargeability and statement of grounds of removal has been sent as hereinbefore provided, or, if within those twenty-one days a copy of the depositions has been applied for, within fourteen days after the sending of a copy thereof; and
- (b) if it appears to the court of quarter sessions that the notice of appeal, though given within the time specified in the last preceding proviso, was not given to the respondent a reasonable time before the hearing of the appeal, the court shall adjourn the appeal until the next sessions.

(2) The appellant shall with the notice of appeal, or fourteen days at least before the first day of the sessions at which the appeal is intended to be tried, serve upon the respondent a written statement of the grounds of appeal, and shall not be heard in support of the appeal unless such a statement has been so served.

(3) No omission or delay in furnishing a copy of the depositions upon which a removal order was made shall afford any ground of appeal against the order, and upon the hearing of an appeal against an order the order shall not be quashed or set aside, either wholly or in part, on the ground that such depositions do not furnish sufficient evidence to support, or that any matter therein contained or omitted raises an objection to, the order or grounds of removal.

(4) On the hearing of an appeal against a removal order it shall not be lawful for the respondent or appellant to go into or give evidence of any other grounds of removal or of appeal respectively than those set out in the order or in the statements of grounds of removal and grounds of appeal respectively.

Relief and
removal of
persons
discharged
from
prisons, &c.

128.—(1) Where it appears to a justice of the peace having jurisdiction in the place where a prison is situate, or being a member of the visiting committee or board of visitors of the prison, by notice in writing given by the governor of the prison, that a person detained in the prison is about to be released therefrom, and that on

release that person will, by reason of infirmity of mind or body, require immediate relief, the justice may make an order for the removal of that person, on his release, to, and his reception in, the workhouse of the poor law union within which he appears to the justice to be settled, or, if the justice cannot ascertain in what parish he is settled, or if he has not a place of settlement in England or Wales, then the workhouse of the poor law union to which he is deemed to be *prima facie* chargeable for the purposes of this section.

(2) Such person as aforesaid shall, for the purposes of this section, be deemed to be *prima facie* chargeable to the poor law union in which the ordinary residence of the person appears to the justice making the order to have been at the time when the offence for or in respect of which he is detained was alleged to have been committed, or, if the justice cannot ascertain such residence, or if such residence was not in England or Wales, then—

- (a) to the poor law union in which the offence was alleged to have been committed; or
- (b) if that offence was alleged to have been committed out of the United Kingdom, to the poor law union in which the court of summary jurisdiction by which the person was convicted or committed for trial, or ordered to be detained, sat.

(3) The order of the justice shall be in such form as may be prescribed by the Secretary of State and shall authorise the conveyance of the person in respect of whom it is made to the workhouse named in the order, and shall be served and be enforceable in like manner as a removal order under this Part of this Act.

(4) Where it appears to the justice making the order that the person will on his release be too ill to be removed to the workhouse named in the order, he may suspend the operation of the order, and in that case the person on his release may be conveyed to and shall be received in the workhouse of the poor law union in which the prison is situate, but the expenses of his maintenance in that workhouse shall be repaid by the board of guardians named in the order.

(5) Where an order under this section has been made with respect to any person, a removal order under the foregoing provisions of this Part of this Act for his

removal to the poor law union within which he is actually settled may be obtained on the application of the board of guardians named in the order under this section, either before or after the execution of that order, and on the removal order being obtained the order under this section shall cease to have effect and the provisions of this section shall cease to apply, but all expenses incurred under this section or an order made thereunder by the board of guardians named in that order shall be repaid to them by the board of guardians of the poor law union within which the said person is actually settled.

(6) This section shall apply to persons detained in industrial and reformatory schools, subject to the following modifications :—

- (a) for references to prisons and governors thereof there shall be substituted references to reformatory and industrial schools and superintendents thereof;
- (b) for the reference to members of the visiting committee or board of visitors there shall be substituted a reference to managers;
- (c) references to offences and the time and place where offences were committed shall include references to the circumstances in consequence of which the order of detention was made and the time and place where such circumstances occurred.

(7) This section shall apply to persons detained in inebriate reformatories subject, in the case of certified inebriate reformatories, to the following modifications :—

- (a) for references to prisons and governors thereof there shall be substituted references to inebriate reformatories and superintendents thereof;
- (b) for references to members of the visiting committee or board of visitors there shall be substituted references to managers.

Provisions
for facilitat-
ing deter-
mination of
questions as
to settle-
ment.

129.—(1) For better enabling a board of guardians to obtain or appeal against removal orders, any officer or person having the custody of any books or other documents of or belonging to any parish in their poor law union shall, if so ordered by the board of guardians, upon reasonable notice produce the same to the board or to any person appointed by them, and shall allow copies or extracts to be taken therefrom for the use of the board without fee or reward.

(2) Any justice may examine any person (having a wife or child) who is in custody in a prison, or who is in the custody of any police officer by virtue of any warrant of commitment, touching the place of his last legal settlement, and the examination shall be signed by the justice taking it, and shall, so long as the person so examined continues a prisoner or in custody, be received in evidence as to such settlement for the purposes of any removal order.

(3) A board of guardians giving notice of appeal against a removal order, and any person authorised by them, shall, until the decision of the appeal, have access at all reasonable times to any person named in the order for the purpose of examining him as to his settlement, and, if it is necessary for the more effectual examination of any such person that he should be taken out of the poor law union in which he is residing, the appellants board may remove him therefrom for such time as may be necessary, defraying the expenses of his removal and of his maintenance whilst so removed.

130. Every notice, statement, demand or other document required to be given by any board of guardians in respect of any removal order or any appeal against a removal order may be signed by their clerk in their name and shall be deemed to be duly served upon the board of guardians to whom it is addressed, if it is delivered to their clerk, or left at his office, or sent by post addressed to him at his office.

Signature
and service
of notices,
&c.

131. If any person removed under a removal order returns to and again becomes chargeable to the poor law union from which he was removed, within twelve months after his removal and without the consent of the board of guardians of that union, he shall be deemed an idle and disorderly person within the meaning of section three of the Vagrancy Act, 1824.

Penalty on
return
after
removal.

5 Geo. 4.
c. 83.
Savings.

132. Nothing in this Act shall affect—

- (a) the enactments relating to the removal of poor persons from or to England and Wales to or from Scotland, Ireland, the Isle of Man, the Channel Islands or the Scilly Islands; or
- (b) the law relating to the expenses of pauper lunatics.

PART IV.

FINANCIAL PROVISIONS.

Expenses of Guardians.

Manner
in which
expenses to
be charged
and raised.

133.—(1) Where a poor law union consists of two or more parishes, the cost of the relief of the poor and all expenses of the board of guardians, not being expenses specially declared by or under this or any other Act to be separately chargeable to single parishes within the union, shall be charged to the common fund of the union and be defrayed as union common charges.

15 & 16
Geo. 5. c. 90.

(2) In order to raise money required by them to defray union common charges or expenses separately chargeable on single parishes, or, in the case of a poor law union consisting of a single parish, any expenses of the board of guardians thereof, every board of guardians shall from time to time issue precepts to the rating authority of each rating area wholly or partly comprised within the poor law union in accordance with the provisions of the Rating and Valuation Act, 1925, and any rules made thereunder.

Contributions to School Districts.

Payment of
contribu-
tions to
district
boards.

134.—(1) Every board of management of a school district shall from time to time call on the boards of guardians of the poor law unions included in the district for such contributions as they may deem requisite for the purposes of this Act, and orders (in a form prescribed by the Minister) requiring payment of the amount of such contributions, signed by the clerk or other officer of the board of management, shall, fourteen days at least before the time at which the precept of the board of guardians for raising the amount of the contributions must be issued, be forwarded to the clerks to the several boards of guardians, and to the rating authorities of the areas from which the contributions will become due.

(2) If any contribution is not duly paid by a board of guardians to the treasurer of the board of management, then, for the recovery of the contribution, or so much thereof as is not paid, from the rating authority or authorities within whose area the whole or any part of the poor law union is situate, the board of management shall (in addition to any other remedies) have the like remedies as the board of guardians.

135.—(1) The expenses incurred by a board of management of a school district in respect of—

Basis for contributions to district boards.

- (a) purchasing, hiring, erecting, repairing, adding to and fitting up buildings;
- (b) purchasing utensils and materials for the employment of inmates of the school, and of books and other things necessary for their instruction;
- (c) the salaries of officers and servants;

and all other expenses incurred on the common account of the poor law unions comprised in the district shall be borne by the several poor law unions comprised in the district in proportion to the net annual value thereof according to the valuation lists for the time being in force.

(2) All other expenses incurred in the relief of children under the management of the board shall be separately charged by that board to the respective poor law unions from which the children were sent.

Payment of Debts by Guardians, &c.

136. Subject to the provisions hereinafter in this Part of this Act contained, any debt, claim or demand lawfully incurred by or due from a board of guardians, or the board of management of a school district, shall be paid within three months from the expiration of the half-year ending the thirtieth day of September or the thirty-first day of March in which it has been incurred or become due, but not afterwards:

Limitation of time for payment of debts.

Provided that the Minister may, by order, extend the time within which any such payment shall be made for a period not exceeding twelve months after the date when the debt claim or demand was incurred or became due.

137.—(1) Where, whether before or after the commencement of this Act, any sum has been borrowed by a board of guardians or by a board of management of a school district, under the authority of any statute, the time limited by the last preceding section for the payment of debts shall—

Provision for loan charges.

- (i) if the debt is made payable on a day certain, commence on that day;

- (ii) if the debt is not made payable on a day certain, commence on the expiration of twelve months from the day when the money was advanced;

and where any such debt is repayable by instalments, each instalment shall be payable within twelve months after the date when it falls due :

Provided that the Minister may in any such case allow an extension of time for payment not exceeding six months.

(2) Interest in any case to which this section applies shall be payable within the like time as the principal.

Payment of
solicitor's
bills.

138. Where a board of guardians or board of management of a school district are engaged in any proceeding in any court, nothing in this Part of this Act shall require the board to pay the bill of costs of any solicitor retained by them for the purpose thereof until the final determination of the proceeding, or until the solicitor ceases to be so retained, but the bill of costs of the solicitor shall be duly taxed and paid within one year after the final determination of the proceeding or the cesser of the retainer, and not afterwards, unless the Minister authorises an extension of time not exceeding six months.

Saving for
judgment
debts.

139. If within the time hereinbefore limited or any extension thereof allowed by the Minister proceedings are commenced before a competent court of jurisdiction to enforce any debt claim or demand (including a claim for a bill of costs), and are prosecuted with due diligence, the sum adjudged to be due or arrived at by settlement of the proceedings shall be satisfied, and payment thereof may be enforced, notwithstanding that the time so limited may have expired.

Validity of
precepts,
&c.

140. No precept issued by a board of guardians, nor any rate made to meet such a precept, shall be deemed to be illegal on the ground that it is made to provide for any debt, claim or demand, if the debt, claim or demand is one the payment whereof is authorised by this Act, or on the ground that the precept includes a balance due from a parish at the time when the accounts were made up and balanced.

141. All payments, charges and allowances made by any person from or on the proceeds of any rate applicable to the relief of the poor contrary to the provisions of this Act, or of any rule, order or regulation of the Minister under this Act, are hereby declared to be illegal.

Payments
contrary to
Act illegal.

Borrowing Powers.

142.—(1) A board of guardians may, with the sanction of the Minister, borrow for the purpose of raising money to meet the expenses incurred, or proposed to be incurred, for any permanent work or object, or any other thing, the costs of which ought, in the opinion of the Minister, to be spread over a term of years, and any money so borrowed and the interest thereon shall be charged on and paid out of the common fund of the poor law union, or, in the case of a poor law union consisting of a single parish, the fund out of which the expenses of the board of guardians are payable.

Borrowing
by guard-
ians and
managers of
school
districts.

(2) A loan shall not be of such amount as exceeds, or will make the total debt of the board of guardians exceed, one-fourth of the total net annual value of the poor law union.

(3) The Minister may, by provisional order, extend the said maximum to double the amount above authorised, and sections two hundred and ninety-seven and two hundred and ninety-eight of the Public Health Act, 1875, shall apply to every such provisional order in like manner as if they were herein re-enacted and the board of guardians were a local authority.

38 & 39 Vict.
c. 55.

(4) The unapplied balance of any loan raised by a board of guardians may, with the consent of the Minister, be applied to any purpose for which a loan may be raised under this Act by the board.

(5) This section shall apply to the board of management of a school district in like manner as if they were a board of guardians and this section were in terms made applicable to them, but with the substitution of one-sixteenth of the net annual value of the district for one-fourth of the net annual value of the union, and of a reference to the common fund of the district for the reference to the common fund of the union.

Provisions
as to loans.

143.—(1) A loan raised under this Act shall be repaid within such period, not exceeding sixty years, as the board of guardians or board of management, with the sanction of the Minister, may determine, either by equal yearly or half-yearly instalments of principal or of principal and interest, or by means of a sinking fund.

38 & 39 Vict.
c. 83.

(2) Where the loan is repayable by means of a sinking fund, the sinking fund shall be set apart, invested and applied in accordance with the Local Loans Act, 1875, and the Acts amending that Act, and for the purpose of such application the prescribed rate shall be a rate not exceeding three per centum per annum :

Provided that the board shall not invest in their own securities.

(3) Where a loan has been contracted to be repaid by annual instalments it may, with the consent of the lenders, be repaid by half-yearly instalments.

(4) Any such board may borrow money under this Act without the consent of the Minister for the purpose of repaying any outstanding part of a loan which they have power to repay :

Provided that any money so borrowed shall be repaid in the manner directed by this Act and within the same period as that originally sanctioned for the repayment of the loan, unless the Minister consents to the period for repayment being enlarged, but that period shall not exceed sixty years from the date of the original borrowing.

(5) For the purpose of this section, the expression “outstanding” means not repaid by instalments, or by means of a sinking fund, or out of capital money properly applicable to the purpose of repayment other than money borrowed for that purpose.

Provisions
as to
securities.

144.—(1) Every security for money borrowed under the authority of an order of the Minister may be made according to the form set out in the Seventh Schedule to this Act, or as near thereto as the circumstances of the case will admit.

(2) The board of guardians or board of management, as the case may be, shall keep a register of the securities in respect of all sums borrowed by them in such form, and subject to such regulations as to inspection or otherwise, as the Minister may prescribe.

Miscellaneous.

145. The Minister may by regulations authorise any board of guardians, subject to compliance with the regulations, to pay the reasonable expenses of any of their members or of their clerk incurred in attending any conference of guardians held for the purpose of discussing any matter which is connected with the duties which devolve on them, and any reasonable expenses incurred in purchasing reports of the proceedings of any such conference.

Conference expenses.

146.—(1) The Minister may by regulations authorise any board of guardians, subject to compliance with the regulations, to pay any sum not exceeding five pounds in any one year as an annual or other subscription to the funds of the Association of Poor Law Unions in England and Wales, as well as the reasonable expenses of the attendance of representatives, not exceeding in any case two, at meetings of the Association :

Contribution by guardians to Poor Law Association.

Provided that no payment shall be made in respect of the attendance of any representative at a meeting of the Association unless the attendance of the representative at that meeting has been expressly authorised by a resolution passed at a meeting of the board held after not less than seven days' notice in writing that the proposal is to be considered at the meeting of the board has been sent to each guardian.

(2) Any such representative shall be either a guardian or (without power of voting) the clerk to the board.

147. The Minister may, by order, direct in what cases (other than those expressly authorised by this Act) and under what regulations a board of guardians may pay the reasonable expenses incurred by them in conveying any person chargeable to their poor law union from one place in England or Wales to another.

Expenses of conveying persons chargeable.

148.—(1) A board of guardians may pay the reasonable expenses incurred in the preparation and collection of information required of or by them respecting any matter which is under their management, supervision or control, and may in the case of a poor law union comprising two or more parishes charge the amount to the common fund of the union or to any

Information required for effectual discharge of duties.

parish or parishes therein, according as the subject-matter relates to the general concern of the union or to some separate part thereof.

(2) If a board of guardians require any such information from any of their officers, the amount payable may, in the case of a dispute between the board and the officer, be settled by the Minister.

Audit.

Audit of accounts

149.—(1) The accounts of every board of guardians and of their officers shall be audited by the district auditor.

(2) Every board of guardians and every officer thereof and every other accountable person shall yearly render to the district auditor an account made up to the thirty-first day of March or such other day as the Minister may by order direct, and the account in the case of an officer or other accountable person shall include an account of all money, matters and things committed to his charge, or received, held or expended by him on behalf of the poor law union.

(3) Any balance due from any officer or other accountable person shall be recoverable summarily as a civil debt :

Provided that no such proceedings shall exonerate or discharge the liability of any surety of any such person as aforesaid.

(4) For the purposes of this section, the expression “accountable person” means any person having the collection, receipt or distribution of money applicable to the relief of the poor, or holding or accountable for any books, deeds, papers or goods relating to the relief of the poor.

Powers and duties of auditors.

150.—(1) A district auditor shall have power to examine and audit the accounts and allow or disallow items therein, and shall certify on the face of every account audited by him any money, books, deeds, papers or goods found by him to be due from any person or for which any person may be accountable, and shall in every account audited by him charge against any person accounting the amount of any deficiency or loss incurred

by the negligence or misconduct of that person, or of any sum which ought to have been but is not brought into account by that person.

(2) Where a district auditor has so certified any money, books, deeds, papers or goods to be due from any person, he shall forthwith report the same to the Minister, and that person shall within seven days pay or deliver, or cause to be paid or delivered, to the treasurer of the board of guardians or other person authorised to receive the same the money, books, deeds, papers or goods certified to be due from him.

(3) All money so certified to be due shall, on the application of the district auditor, be recoverable from all or any of the persons making or authorising the illegal payment or otherwise answerable for such monies.

(4) If any person accountable for any such books, deeds, papers, or goods neglects or refuses to deliver them to the person for the time being authorised to receive them, he shall be liable, on the complaint of the district auditor or of the person authorised to receive them, to be committed to prison by two justices until delivery is made.

(5) Subject to any rules which may be made by the Minister under section five of the District Auditors Act, 1879, the district auditor shall, in addition to any notices required by law to be given by him, give notice of the audit by advertisement in some newspaper circulating in the county in which the poor law union or the greater part thereof is situated a reasonable time before the holding of the audit, and the production of a copy of such a newspaper shall in all courts and for all purposes be deemed sufficient evidence of the notice of the audit. 42 & 43 Vict.
c. 6.

151.—(1) It shall be lawful for every ratepayer of the poor law union to be present at the audit of the accounts relating to the union, and to make any objection to any such accounts before the district auditor, and the auditor may require any person holding or accountable for any money, books, deeds, papers or goods relating to the relief of the poor, to produce his accounts and vouchers, and to make or sign a declaration with respect to his accounts. Provisions
as to hold-
ing of
audits.

(2) If any such person refuses or neglects to attend, either at the audit or any adjournment thereof, when so required by the auditor, or to produce to him any such

accounts or vouchers, or to make or sign a declaration with respect to his accounts required by the auditor, he shall for every such refusal or neglect be liable on summary conviction to a fine not exceeding forty shillings, or if he wilfully makes or signs a false declaration in respect of any such accounts he shall be liable to the penalties of perjury, and where any such proceedings are taken on an information laid by the district auditor, any expenses incurred by the auditor, except so far as they are paid by the person against whom the proceedings are taken, shall, if the Minister consents, be repaid to him by the board of guardians.

Mode of
certifying
balances.

152.—(1) Where any officer continues in office at the time when the accounts are audited, the district auditor shall certify as due such sums of money only as are disallowed or surcharged by him in the accounts so audited :

Provided that where the aggregate amount disallowed by the auditor in the account of any such officer does not amount to forty shillings, it may be paid over with the balance due from the officer instead of being paid to the treasurer.

(2) Where an officer has ceased to hold office at the time when the accounts are audited, the district auditor shall ascertain the balance due on the accounts so audited, together with the sums (if any) which he may have disallowed or surcharged, and shall give credit for all sums which are proved to have been paid in respect of such balance to his successor, or otherwise lawfully applied on behalf of the poor law union, before the date of the audit, and he shall certify, report and recover the balance remaining due after such credit has been given.

(3) Any certificate made by a district auditor, if made according to the forms set forth in the Eighth Schedule to this Act, or in a form to the like effect, shall be deemed to be sufficient.

Right of
person pro-
posed to be
surcharged
to be heard.

153.—(1) If a district auditor sees cause to surcharge any person liable to be surcharged by him with any sum of money in reference to any payment considered by the auditor to have been illegally or improperly made, he shall, if the person is not present at the audit and is not a person to whom notice of the audit is required to be given, cause notice in writing of his intention to

make the surcharge to be given to the person proposed to be surcharged, and shall adjourn the audit, so far as it relates to that particular matter, for a sufficient time to allow the person to appear to show cause against the surcharge.

(2) A notice under this section may be sent by post addressed to the person concerned at his last known place of abode.

(3) Save as provided by this section, it shall not be necessary to prove that an audit was adjourned and that notice of the adjournment was given.

154.—(1) If any person is aggrieved by any allowance, disallowance or surcharge made by a district auditor, the auditor if so required by him shall state in the book of account in which the allowance, disallowance or surcharge is made the reasons therefor. Appeal to High Court.

(2) Any person aggrieved by an allowance, and any person aggrieved by a disallowance or surcharge if he has paid or delivered over to the person authorised to receive them all such money and goods as are admitted by his account to be due from him or remaining in his hands, may apply to the High Court for a writ of certiorari to remove into that court the allowance, disallowance or surcharge in like manner and subject to the like conditions as are provided in respect of persons applying for writs of certiorari for the removal of orders of justices of the peace, except that—

(a) the condition of the recognizance shall be to prosecute the certiorari at the cost of the applicant without delay, and, if the allowance, disallowance or surcharge is confirmed, to pay to the district auditor, within one month, the taxed costs of the auditor; and

(b) notice of the intended application (which shall contain a statement of the matter complained of) shall be given to the district auditor, who shall, in return to the writ, return a copy under his hand of the entry in the book of account to which the notice refers, and shall appear before the court and defend the allowance, disallowance or surcharge impeached, and

shall be reimbursed all costs he may incur in the defence by the board of guardians interested, unless the court makes any order to the contrary.

(3) On the removal into the High Court of the allowance, disallowance or surcharge the court shall decide the particular matter of complaint set forth in the statement and no other, and if it appears to the court that the decision of the auditor was erroneous, they shall order such sum of money as may have been improperly allowed, disallowed or surcharged to be paid to the party entitled thereto by the party who ought to repay or discharge the same, and may also, if they see fit, order the costs of the person prosecuting the certiorari to be paid by the board of guardians.

Appeal to
Minister.

155.—(1) Any person aggrieved by any allowance, disallowance or surcharge, in lieu of making application to the High Court for a writ of certiorari, may apply to the Minister to inquire into and decide upon the lawfulness of the reasons stated by the district auditor for the allowance, disallowance or surcharge, and thereupon the Minister may issue such order therein as he may deem requisite for determining the question.

(2) Where an appeal is made to the Minister against any allowance, disallowance or surcharge, the Minister may decide the appeal according to the merits of the case, and if he finds that any disallowance or surcharge is or has been lawfully made, but that the subject-matter thereof was incurred under such circumstances as to make it fair and equitable that the disallowance or surcharge should be remitted, he may direct it to be remitted upon payment of the costs, if any, which may have been incurred by the district auditor or other competent authority in enforcing the disallowance or surcharge.

Appeals in
the case of
a joint
account.

156. In the case of an appeal against an allowance, disallowance or surcharge in a joint account, the decision of the district auditor may be reversed by the court or the Minister, as the case may be, and the disallowance or surcharge may be remitted by the Minister, in favour of one or more of the persons appealing only, without discharging the other person or persons affected by the decision.

157.—(1) In any proceedings taken by a district auditor before a court of summary jurisdiction to recover sums certified to be due, it shall be sufficient for him to produce a certificate of his appointment under the seal of the Minister, and to prove that the audit was held, that the certificate was made in the book of account to which it relates, that the sum certified to be due had not been paid to the treasurer of the board of guardians within seven days after it had been so certified nor within three clear days before the laying of the information (of which non-payment a certificate in writing purporting to be signed by the treasurer shall be sufficient evidence).

Proceedings
for recovery,
of sums
certified to
be due.

(2) If at the hearing of the information it is proved that the said sum had been paid to the treasurer subsequently to the date of such last-mentioned certificate, the costs incurred by the district auditor shall be paid by the party against whom the information was laid, unless he proves that notice of the payment had been given to the auditor twenty-four hours at least prior to the date of laying the information.

(3) The payment of any sum certified by a district auditor to be due in accordance with this Act may, together with the costs of the proceedings for the recovery thereof, be enforced in like manner as if it were a sum due in respect of the general rate.

(4) Notwithstanding anything in the Summary Jurisdiction Acts, a district auditor may commence any such proceedings at any time before the expiration of nine months from the date of the disallowance or surcharge, or in the event of an appeal being made to the High Court or to the Minister as hereinbefore provided, before the expiration of nine months from the determination of the appeal.

(5) Subject to the approval of the Minister, a board of guardians shall pay the costs, so far as not recovered from any other source, of any legal proceedings taken by or under the direction of a district auditor for the protection of the rates or property of the poor law union or any parish therein, or for the recovery of any sum certified by the auditor to be due, and, in the case of a poor law union consisting of two or more parishes, may

charge such expenses either to the common fund of the union or to the account of any parish therein.

Right of
auditor to
inspect
books.

158.—(1) A district auditor may at any time, when authorised or required by the Minister so to do, inspect the accounts and books of account of any board of guardians or officer liable to account to him.

(2) If any guardian or officer refuses to allow any such auditor, when so authorised or required, to make the inspection or obstructs him in his inspection or conceals any such account or book for the purpose of preventing inspection thereof, he shall be liable, on summary conviction, to a fine not exceeding five pounds.

Taxation
and allow-
ance of
solicitors'
bills.

159.—(1) On the application of a board of guardians or of the solicitor concerned, it shall be the duty of the clerk of the peace of the county or place in which the poor law union or any part thereof is situate, or his deputy, to tax any bill due to a solicitor in respect of business performed on behalf of the poor law union, and the allowance of any sum on such taxation shall be evidence of the reasonableness of the amount, but not of the legality of the charge.

(2) The clerk of the peace shall be allowed for the taxation such fee as may be fixed from time to time by the Master of the Crown Office, and declared by an order of the Minister, and if any such bill is not taxed before it is presented to the district auditor, the auditor's decision on the reasonableness as well as the legality of the charges shall be final.

Audit of
accounts
of school
districts.

160.—(1) The accounts of the board of management of every school district and of their officers shall be audited by the district auditor.

(2) Every such board of management and every such officer, shall, once in every year, at such time and in such manner and form as may be prescribed by the Minister, account to the district auditor, and the auditor shall have all the powers of allowing and disallowing any charges in such accounts as are given to district auditors by this Act as respects boards of guardians and their officers.

(3) All sums certified by a district auditor to be due shall be recoverable on the application of the auditor in the manner hereinbefore provided in the case of the audit

of the accounts of a board of guardians, and the provisions of this Part of this Act as to the audit of accounts of boards of guardians shall apply accordingly.

(4) Within thirty days of the completion of the audit the board of management shall cause to be printed, and shall forward to each board of guardians within their district, an abstract of the accounts of their district so audited, in such form as the Minister may direct.

PART V.

ACQUISITION AND DISPOSAL OF PROPERTY.

161.—(1) A board of guardians may, with the approval of the Minister and subject to any rules, orders or regulations made by him, purchase or take on lease land for the purpose of being used as the site of a workhouse or of being occupied with a workhouse, or for any other purpose connected with the relief of the poor.

Powers as to acquisition of land.

(2) For the purpose of the purchase and taking on lease of land, sections one hundred and seventy-six and one hundred and seventy-eight of the Public Health Act, 1875, except so far as those sections relate to the taking and purchasing of land otherwise than by agreement, shall apply as if they were herein re-enacted and in terms made applicable to boards of guardians.

38 & 39 Vict. c. 55.

(3) A board of guardians, with the approval of the Minister and subject to any rules, orders or regulations made by him, may, for any purpose for which they may acquire land under subsection (1) of this section take any parish lands, that is to say, land belonging to or held for any parish in the union or the poor thereof.

(4) Subsections (1) and (2) of this section shall apply to the board of management of a school district in like manner as they apply to a board of guardians.

162.—(1) A board of guardians may inclose from any waste or common land in or near their poor law union, with the consent in writing of the lord of the manor and the majority in value of the persons having rights of common therein, signified under their hands and seals, and with the consent of the Minister, any part, not exceeding fifty acres, of such waste or common land for the purpose of cultivating and improving it for the

Power of inclosing certain lands.

use and benefit of the union and the poor persons therein, or for any purpose for which a board of guardians may purchase land.

(2) A board of guardians may inclose from any forest or waste lands belonging to the Crown in or near their poor law union, with the consent of the Treasury and subject to the control of the Minister, any part (not exceeding fifty acres) of any forest or waste land belonging to the Crown, for the purpose of cultivating and improving it for the use and benefit of the union and the poor persons therein, or for any purpose for which a board of guardians may purchase land :

Provided that no inclosure of land in the New Forest shall be made under this subsection.

(3) An inclosure of common land purporting to be made under this section shall not be valid without the consent of the Minister of Agriculture and Fisheries.

Power as to
disposition
of property.

163.—(1) A board of guardians may, with the approval of the Minister, and subject to any rules, orders and regulations made by him, sell, exchange, let, or otherwise dispose of any workhouse, buildings, land, or other property belonging to them or held in trust for the poor law union, and

(a) in case of a sale, shall apply the proceeds thereof, and in case of an exchange shall apply any money received by way of equality of exchange (after deducting in either case the reasonable expenses) towards the purchase or building of any workhouse, or towards the discharge of any debt contracted by them, or in any other manner for the permanent advantage of the union approved by the Minister ; and

(b) in case of an exchange, the land to be taken in exchange shall be conveyed to the board of guardians upon the same trusts as those on which the land given in exchange was held, and the rents and profits thereof shall be applied to the same purposes as those to which the rents and profits of the land given in exchange would have been applicable ; and

- (c) in the case of a lease, the rents and profits shall be applied in such manner for the relief of the poor as the Minister may direct.

(2) This section shall apply to the board of management of a school district in like manner as it applies to a board of guardians, with this modification, that the board shall apply the proceeds or rents of the sale, exchange, lease or disposition for the benefit of the school district in such manner as the Minister may direct.

(3) Nothing in this Act shall affect the powers of a board of guardians of a poor law union to dispose of property belonging to or held in trust for any parish or parishes comprised in the union, or the parishioners, ratepayers or inhabitants thereof, and such powers may be exercised without the consent of any other persons in any case where before the commencement of this Act it would not have been necessary to obtain the consent of any other persons.

164.—(1) Where a poor law union consists of or comprises a rural district, and it appears to the board of guardians desirable that any hospital or building vested in them should be vested in the council of the rural district for the purpose of the reception of persons suffering from any dangerous infectious disorder, they may, by resolution confirmed by an order of the Minister, transfer the hospital or building accordingly, and from the date named in the order the hospital or building shall be deemed to be vested in the rural district council, for the use of the inhabitants of the union or part thereof named in the resolution and order.

Transfer of
hospitals
to rural
district
council.

(2) If the hospital or building is to be for the use of the inhabitants of any part of the union comprised in a borough or urban district, the order may determine the contribution to be made by the council of that borough or district towards the maintenance of the hospital or building.

(3) Where part of the union is comprised in a borough or urban district and the hospital or building is not to be for the use of the inhabitants of that part, the order may determine the value of the interest of that

part of the union in the hospital or building, and the manner in which such value is to be paid to that part by the residue of the union for whose use the hospital or building is to be kept, and the application of the sum so paid.

PART VI.

LONDON.

EXTENT AND APPLICATION.

Application
of Act to
London.

165. This Part of this Act extends only to London, and the provisions of this Act shall apply to London subject to the provisions of this Part of this Act.

ASYLUM BOARDS.

Constitution and Powers.

Formation
of asylum
districts.

166. For the purpose of the provision of asylums for the reception and relief of the sick, insane, or infirm, or any class or classes of poor persons in receipt of relief, the Minister may by order combine into districts such poor law unions as he may think fit, and may from time to time alter any such district by addition, sub-division or otherwise, and may if he thinks fit dissolve any such district :

Provided that, until the Minister otherwise orders, the whole of the poor law unions in London shall continue to be a single district for the purposes for which the Metropolitan Asylum Board is constituted at the commencement of this Act.

Constitu-
tion of
asylum
board.

167.—(1) For every asylum district there shall be constituted a body of managers (hereinafter referred to as an asylum board), and every such board shall be a body corporate with power, subject to orders of the Minister, to take, hold and dispose of land for the purposes of the district.

(2) An asylum board shall consist of managers of whom some shall be elective and some nominated as hereinafter provided.

(3) Subject to orders made by the Minister under this section, elective managers shall be from time to time

elected by the boards of guardians of each of the poor law unions forming the district from among themselves, or from among ratepayers qualified to be guardians therein, or partly from one and partly from the other.

(4) Subject to orders made by the Minister under this section, nominated managers shall be from time to time nominated by the Minister from among justices of the peace resident in the district, or from among ratepayers assessed to the general rate therein on a rateable value of not less than forty pounds, or partly from one and partly from the other.

(5) The Minister shall from time to time, by order, prescribe the total number of the managers, and the proportion of the elective and nominated managers (but so that the prescribed number of the nominated managers shall not exceed one-third of the prescribed number of the elective managers), the number of elective managers to be elected by each board of guardians, the qualifications of the managers, their tenure of office, the mode and time of election, and the quorum for their meetings:

Provided that any person who would under this Act be disqualified for being a guardian of any poor law union forming part of an asylum district by reason of being or having been a paid officer or being in receipt of a salary or emolument payable out of the general rate shall be disqualified for being a manager.

(6) The dissolution or alteration of any poor law union comprised in an asylum district shall not affect the tenure of office of any elective manager elected by the board of guardians of that union.

(7) The provisions set forth in the Second Schedule to this Act shall apply with respect to the election and resignation of members of asylum boards and to the acts of such boards and the supply of vacancies therein.

(8) An asylum board may from time to time, subject to such regulations as the Minister may by order prescribe, appoint committees of members of their body and delegate to them any of their powers.

168. Where an asylum is provided for the reception and relief of the insane, the Board of Control may depute one of their body, or appoint from time to time a special

Representa-
tion of
Board of
Control.

commissioner, who shall be entitled to attend meetings of the asylum board and to take part in their proceedings, but not to vote.

Appoint-
ment, &c.,
of officers.

169.—(1) An asylum board shall have the like powers as a board of guardians for the appointment, control and payment of officers.

(2) The duties, number and salaries of the officers, and the securities to be given by them, shall be such as the Minister may approve or by order direct.

Provision
of asylums.

170.—(1) The Minister may by order determine the number of asylums to be provided for each asylum district and direct the asylum board to purchase, hire or build, and (in either case) to fit up buildings for asylums, of such nature and size, and according to such plan and in such manner as the Minister may think fit, and the board shall carry such directions into execution.

(2) The Minister may, by order, direct that any building for the time being used as a workhouse shall, with such alterations as the Minister may think fit, be used for an asylum, and thenceforth that building shall be for the common use of the district accordingly, and an annual sum in the nature of rent or other compensation, of such amount as the Minister may from time to time direct, shall be paid to the board of guardians to whom the building belongs, as long as it continues to be so used :

Provided that, if in any such case the asylum board expend any money in the improvement or enlargement of the building, or the provision of substantial fittings therein, and afterwards relinquish the use thereof, the Minister may make an adjustment in respect of that expenditure between the owners of the building and the asylum board, and direct such amount as he thinks equitable to be reimbursed to the asylum board by the owners of the building, to be paid either in a lump sum or by instalments as the Minister may direct.

(3) An asylum board shall in accordance with orders made by the Minister provide for every asylum all necessary fixtures, furniture and conveniences.

(4) For the purposes of this Part of this Act, the expression “asylum” includes any workhouse or other

building, and any ship, vessel, hut, tent, or other temporary erection which may be used by the asylum board, with the approval of the Minister, for the reception of poor persons, or otherwise for the purposes of an asylum.

171.—(1) The mode of admission of persons into an asylum shall be such as the Minister may by order direct.

Admission
to and
government
of asylums.

(2) An asylum board shall have the like powers as a board of guardians for the relief, maintenance and management of the inmates of the asylum, and shall provide such medicines, appliances and requisites for the medical and surgical care and treatment of the inmates, and cause the same to be used according to such rules as the Minister may by order direct, and the provisions of this Act enabling boards of guardians to receive poor persons chargeable to some other poor law union shall extend to asylum boards.

(3) The Minister may make rules, orders and regulations for the government of an asylum as if the asylum were a workhouse.

(4) Any person relieved in an asylum shall be liable to the same obligations in respect of the relief afforded to him as if it were afforded in a workhouse.

(5) The provisions of this Act relating to religious instruction and the appointment of chaplains in a district school shall apply in the case of an asylum.

(6) Every guardian of a poor law union included in an asylum district shall at all reasonable times be entitled to enter an asylum and inspect any part thereof, and enter his remarks thereon in a book to be kept for the purpose.

172. For the purposes of chargeability, burial and other incidents, an asylum shall, in relation to each inmate thereof, be deemed to be in the poor law union from which such inmate was sent.

Charge-
ability, &c.,
of inmates.

173. An asylum board shall, in the exercise and discharge of all their powers and duties, be subject to orders of the Minister in like manner as a board of guardians.

General
powers and
duties of
asylum
board.

Use of
asylums for
training and
instruction.

174.—(1) Where an asylum is provided for the reception and relief of the sick or insane, it may be used for the training of nurses in such cases and in such manner and subject to such regulations as the Minister may by order direct.

(2) Where an asylum is provided for the reception of persons suffering from fever, smallpox or diphtheria it may be used for purposes of medical instruction, subject to such regulations as the Minister may by order direct.

Provisions
as to conterminous
districts.

175. Where any district formed under this Part of this Act for the relief of any class or classes of poor persons is conterminous with any district previously so formed for the relief of some other class or classes, the Minister may, by order, direct that the asylum board of any such last-mentioned district shall also be the asylum board of the conterminous district so subsequently formed.

Amalgamation of
unions
constituting
district.

176. Where all the poor law unions constituting a district formed under this Part of this Act are formed into one poor law union, all the property of the asylum board shall be transferred to, and shall vest in, the board of guardians of the union, and the liabilities, obligations, and debts of the asylum board shall be, in like manner, transferred to and discharged by the board of guardians, and the asylum board shall be dissolved.

Dissolution
and alteration of
asylum
districts.

177. The provisions of this Act as to the dissolution of a board of management on the dissolution of a school district, and as to the adjustment, vesting and disposal of property and liabilities on the dissolution or alteration of a school district, shall apply in the case of the dissolution or alteration of an asylum district.

Expenses and borrowing.

Expenses.

178.—(1) Expenses incurred by an asylum board in or about—

- (a) purchasing, hiring, building, repairing and fitting up, or the payment of compensation for the use of, buildings;
- (b) providing fixtures and furniture, conveniences, medicines, medical and surgical appliances and other necessities for keeping an asylum in proper order;
- (c) the salaries and maintenance of officers;

shall be defrayed by contributions from the poor law unions forming the district.

(2) Expenses incurred by an asylum board in or about the food, clothing, maintenance, care, treatment and relief, or for the burial, of inmates of an asylum shall be separately charged to the respective poor law unions from which the inmates of the asylum were sent.

(3) Nothing in this section shall affect the provisions of the Public Health (London) Act, 1891, as to the payment of expenses incurred by the Metropolitan Asylum Board under that Act, or the provisions of section forty-two of the Divided Parishes and Poor Law Amendment Act, 1876, as to the recovery of charges incurred on behalf of sick persons not being paupers admitted into an asylum. 54 & 55 Vict. c. 76.
39 & 40 Vict. c. 61.

179.—(1) The provisions of this Act relating to the borrowing of money by boards of guardians shall apply to an asylum board in like manner as if they were a board of guardians and those provisions were in terms made applicable to them, but with the substitution of a reference to one-tenth of the rateable value of the asylum district for the reference to one-fourth of the net annual value of the poor law union. Loans.

(2) For the purposes of the provisions so applied, the expression “common fund” in relation to an asylum district means the fund raised by contributions from the poor law unions forming the district, assessed on and contributed by them in conformity with the provisions of this Part of this Act.

180.—(1) Sums to be contributed under this Part of this Act by poor law unions shall be assessed on, and contributed by the several boards of guardians, in proportion to the rateable value of those unions, as ascertained from the valuation lists for the time being in force. Provisions as to contributions.

(2) An asylum board shall from time to time call on the boards of guardians of the poor law unions forming the district for such contributions as the asylum board consider requisite.

(3) An order (in a form prescribed by the Minister) signed by the clerk or other officer of the asylum board, requiring the payment of the amount of the contribution, shall fourteen days at least before the contribution becomes due be delivered to the clerk or acting clerk of the board of guardians liable to the contribution.

(4) If any contribution is not duly paid, the asylum board shall (in addition to any other remedies) have the like remedies for the recovery of the contribution, or so much thereof as is not paid, from the council authorised to levy the general rate in the several parishes in the poor law union liable for the contribution as the board of guardians have, and if any such council pays in respect of any parish any money to the asylum board on account of such contribution, they shall be entitled to credit for such payment in the accounts of the union with the parish.

Audit of
accounts.

181.—(1) The accounts of an asylum board and their officers shall be audited in like manner and subject to the like provisions as the accounts of a board of guardians in London and their officers, and those provisions shall apply accordingly :

Provided that the accounts of the Metropolitan Asylum Board shall be made up and audited once a year.

(2) Within one month after each audit the asylum board shall deliver to each board of guardians whose poor law union is comprised in the district a printed abstract (in a form prescribed by the Minister) of the accounts as audited.

SPECIAL PROVISIONS WITH RESPECT TO METROPOLITAN BOARDS OF GUARDIANS.

Classification of Poor Persons.

Classifica-
tion of
workhouses
and
reception of
poor persons
from other
London
unions.

182.—(1) A board of guardians may, with the approval of the Minister, set apart any ward or portion of a workhouse for the reception of particular classes or descriptions of poor persons, and provide separate maintenance and treatment for them therein, subject to such regulations as the Minister may order or approve, and may, with the consent of the Minister, receive and

maintain therein any poor person of the same class or description chargeable to any other poor law union upon such terms as may be agreed between the boards of guardians concerned.

(2) Where, in the opinion of the Minister, a workhouse is adapted only for the reception of poor persons of a particular class or particular classes, but is capable of accommodating poor persons of that class or those classes from any other poor law union in London, the Minister may, by order, direct the board of guardians of the poor law union to which the workhouse belongs to receive, lodge and maintain therein poor persons of that class or those classes, or any of them, from any such other poor law union, and the board shall receive, lodge and maintain such persons accordingly on terms to be agreed on, with the approval of the Minister, between the boards of guardians concerned, or, in default of such agreement, to be prescribed by order of the Minister.

(3) Any such person so received into a workhouse shall, while therein, be treated in all respects in like manner, and be subject to the same regulations and liabilities, as the other persons of the same class or condition, and shall be deemed to be chargeable in the first instance to the receiving union :

Provided that the residence of such a person in a workhouse shall, in all other respects, be attended with the same legal consequences as if the workhouse had been situated within the poor law union from which he was sent.

(4) Every guardian of the poor law union from which a person is sent to the workhouse of another poor law union under this section may at all reasonable times enter the workhouse and inspect any part thereof.

183. For the purpose of facilitating the appointment of resident workhouse medical officers, and for improving the classification and management of any classes of poor persons, the Minister may, by order, determine, or from time to time vary, as he thinks fit, any contract with any medical or other officer appointed by a board of guardians, and direct the board to pay to the officer affected thereby such compensation by way of increased salary, or of an annuity, or of a gross sum, or otherwise, as the Minister may think fit.

Variation of
contracts
with officers.

Medical Out-door Relief.

Dispensaries.

184. The Minister may, by order, direct a board of guardians to provide one or more dispensaries, and for that purpose either to purchase, hire or build, and to fit up and furnish, one or more buildings, of such nature and size, as the Minister may think fit, or to set apart, adapt, fit up and furnish a part of a workhouse, and in either case according to such plans, and in such manner, as the Minister may think fit.

Dispensary committees.

185.—(1) Where the Minister, on the application of a board of guardians, so orders, there shall be a committee of management for the dispensaries of the poor law union, to be called the dispensary committee.

(2) The dispensary committee shall be elected by the guardians from among themselves, or from among ratepayers of the poor law union assessed to the general rate on a rateable value of not less than forty pounds, or partly from one and partly from the other.

(3) The Minister shall prescribe the number and tenure of office of the members of the dispensary committee, the mode and times of election, and the quorum for their meetings.

Places for seeing sick poor, &c.

186.—(1) Where a board of guardians in compliance with a requirement by the Minister provide a dispensary, they shall also provide, according to the directions of the Minister, proper places where the medical officers may see such of the sick poor as attend there for advice, and where meetings of the dispensary committee may be held.

(2) Where a board of guardians provide a dispensary otherwise than in compliance with a requirement by the Minister, they shall, if required by the Minister so to do, provide a proper room at the dispensary where the medical officers may see such of the sick poor as attend there for advice, and medical officers shall personally, or by their authorised substitutes, attend at the dispensary during the times fixed for the purpose by the board of guardians with the approval of the Minister.

Appointment of

187.—(1) The dispensary committee, or where a dispensary committee has not been established the board

of guardians, shall appoint proper persons to be dispensers of medicine, and may appoint such other officers and servants for the purposes of the dispensaries as they think fit. dispensers, &c.

(2) The duties, qualifications, number and salaries of the dispensers, officers and servants shall be such as the Minister may approve or by order direct.

(3) Where a dispensary committee has been established, the power of appointing district medical officers for the poor law union shall be vested in the committee subject to the rules and orders of the Minister respecting the appointment and removal of officers.

(4) For giving effect to the provisions of this Part of this Act relating to medical outdoor relief, the Minister may vary, as he may think fit, medical districts, and the salaries of, and contracts with, district medical officers.

188. A board of guardians providing a dispensary shall provide proper medicines, appliances and requisites for the care and surgical treatment of the sick poor relieved out of the workhouse, and the medicines, appliances and requisites shall be dispensed and furnished to such of the poor entitled to relief as require them, on the prescription or written direction of the district medical officer, subject to such regulations as the Minister may by order direct. Provision and dispensing of medicines, &c.

189. A board of guardians may, with the consent of the Minister, enter into arrangements with any public general hospital or dispensary situated within the poor law union for the reception and treatment in the hospital or dispensary of poor persons in receipt of relief on terms to be arranged between the board of guardians, with the sanction of the Minister, and the authorities of the hospital or dispensary. Arrangements with public general hospitals.

Casual Poor.

190.—(1) Every board of guardians shall provide within the poor law union such wards or other places for the reception and relief of casual poor persons as the Minister directs : Casual poor persons.

Provided that, until the Minister by order otherwise directs, such duty as aforesaid and all other duties and powers of boards of guardians with respect to casual poor

persons shall be performed and exercised throughout the whole of the poor law unions in London by the Metropolitan Asylum Board.

(2) The wards or places of reception provided under this section shall be open for the admission of casual poor persons who apply to be admitted during the hours between six o'clock in the evening and eight o'clock in the morning in the months between October and March inclusive, and during the hours between eight o'clock in the evening and eight o'clock in the morning in the months between April and September inclusive.

(3) The Minister shall cause the wards and other places of reception provided under this section to be inspected not less than once in every four months, during the hours during which such wards and places are by this section required to be open for admission, and the results of the inspection shall be reported to the Minister.

(4) Any constable of the metropolitan police or of the police of the City of London may personally conduct any casual poor person, not charged with any offence, to any ward or other place of reception approved of by the Minister, and every such person shall, if there is room, be temporarily relieved therein.

(5) The provisions of this Act relating to the discharge of casual poor persons shall in their application to London have effect subject to the following modifications:—

- (a) in determining the number of admissions of a casual poor person every casual ward in London shall be deemed to be a casual ward of the same union;
- (b) the expression “the workhouse of the union” shall include any workhouse and any asylum provided under this Act for the reception and setting to work of casual poor persons to which the casual poor persons of the union can be sent.

Miscellaneous Provisions.

Manner in which expenses to be **191.**—(1) Subject to the provisions of the Agricultural Rates Acts, 1896 and 1923, where a board of guardians require to raise from two or more parishes

within the poor law union any sum in respect of contributions to the common fund of the union, they shall raise that sum in proportion to the rateable value of those parishes as ascertained from the valuation lists for the time being in force.

charged and raised.
59 & 60 Vict.
c. 16.
13 & 14
Geo. 5. c. 39.

(2) For the purpose of raising any sum so apportioned to any parish, or in the case of a poor law union consisting of a single parish any expenses of the board of guardians thereof, precepts shall be sent—

(a) in the case of the City of London Poor Law Union to the common council of the City of London; and

(b) in the case of any other poor law union to the council of each metropolitan borough wholly or partly comprised within the union;

in accordance with the City of London (Union of Parishes) Act, 1907, and the London Government Act, 1899, respectively.

7 Edw. 7.
c. cxl.
62 & 63 Vict.
c. 14.

192. Where a board of guardians have at any time, under the orders of the Minister, borrowed and expended money upon the improvement or enlargement of a workhouse or other property belonging to a parish comprised within the poor law union, and the workhouse or property is afterwards sold or let, the board shall be entitled to receive out of the purchase money or rents such an amount as, in the opinion of the Minister, appears reasonable, and the money or rent so received shall be appropriated for the benefit of the union in such manner as the Minister by order directs.

Recoup-
ment of
money
expended
on parish
workhouse.

193.—(1) The accounts of boards of guardians and boards of management of school districts shall be audited half yearly, or as often as the rules, orders and regulations of the Minister may direct, but not less often than once in every half year, and the provisions of this Act as to audit shall have effect accordingly.

Provisions
as to audit.

(2) Within one month of each audit of the accounts of a board of guardians, they shall deliver, in the case of the City of London Poor Law Union to the common council of the City of London, and in the case of any other poor law union to the council of each metropolitan borough in which the union or any part thereof is situated, one or more copies of the financial statement of the

board, showing the receipts, expenditure, balances and liabilities for the half year, as audited.

Metropolitan Common Poor Fund.

Metro-
politan
common
poor fund.

194.—(1) The Metropolitan Common Poor Fund (hereinafter referred to as the common poor fund), shall be raised according to the provisions of this Part of this Act by contributions from the several poor law unions and places in London, and shall be under the management of the receiver of the common poor fund (hereinafter referred to as the receiver), who shall be appointed by the Minister, and shall be removable by him, and shall receive such salary and give such security (if any) as the Minister may direct.

(2) The salaries of the receiver and his assistants, and all expenses incurred by him in the execution of this Part of this Act, shall be paid out of the common poor fund.

(3) The receiver shall keep an account with the Bank of England, intituled “the account of the receiver of the metropolitan common poor fund for the time being,” which shall be drawn on in such manner and according to such regulations as the Minister may by order direct.

Assessment
of contribu-
tions to
fund.

195. The Minister shall from time to time assess on the several poor law unions the amounts of their respective contributions to the common poor fund in proportion to the rateable value of those unions, to be determined according to the valuation lists for the time being in force.

Collection of
contribu-
tions to
fund.

196.—(1) The Minister shall from time to time issue to each board of guardians a contribution order requiring them to pay the amount of the contribution therein specified, in the manner and within the time therein specified, and the board of guardians shall accordingly cause the amount of their contribution to be raised out of the general rate and pay it into the Bank of England to the credit of the account of the receiver :

Provided that the board shall be entitled to have credit in part payment of their contribution for the amount which may be repayable to them out of the common poor fund, under the order of the Minister as

hereinafter mentioned, in respect of expenditure during the preceding half year.

(2) No order under this section shall be liable to be removed into any court by certiorari or otherwise, nor shall any precept of a board of guardians, or any rate, be liable to question in any court on the ground of its having been made wholly or partly in furtherance of any such order.

197.—(1) In order to obtain payment of the amount of the contribution to the common poor fund payable in respect of any place which is not included in a poor law union (that is to say, the Inner Temple, the Middle Temple, Lincoln's Inn, and Gray's Inn), the Minister shall from time to time issue—

Contributions from Inns of Court.

- (a) in the case of the Inner Temple and the Middle Temple to the masters of the bench, treasurer, or sub-treasurer thereof; and
- (b) in the case of Lincoln's Inn and Gray's Inn to the council of the Metropolitan Borough of Holborn;

an order requiring the payment of the amount of contribution therein specified, in the manner and within the time therein specified.

(2) In the Inner Temple and the Middle Temple the masters of the bench, treasurer or sub-treasurer, may levy on the several persons occupying rateable property therein the amount of the contribution so payable by means of a rate in the nature of a general rate, and for that purpose may employ and remunerate collectors, and shall have the like powers as are for the time being vested in rating authorities in London for the purposes of the making, assessing, levying and collecting the general rate.

(3) Contributions shall not be payable under this section in respect of the Inner Temple, the Middle Temple or Gray's Inn, if and so long as the contributions are made in manner hereinafter provided in respect of the Inner Temple and the Middle Temple to the guardians of the City of London Poor Law Union, and in respect of Gray's Inn to the guardians of the Holborn Union.

Recovery of
contribu-
tions.

198. If any contribution to the common poor fund required by the Minister to be paid by any board of guardians, council, masters of the bench, treasurer or sub-treasurer is not duly paid, the receiver shall (in addition to any other remedies) have the like remedies for the recovery, in the receiver's own name, of the contribution, or of so much thereof as is not paid, as boards of guardians have for the recovery from rating authorities of contributions of parishes, and for that purpose the order of the Minister requiring the contribution shall be conclusive evidence of the amount thereof and of the liability thereto of the party sued.

Application
of fund.

199. Expenses incurred for the following purposes shall be repaid out of the common poor fund, that is to say—

- (a) for the maintenance of lunatics in institutions for lunatics and of insane poor in asylums under this Part of this Act, except such expenses as are chargeable as expenses of the London County Council;
- (b) for the maintenance of poor persons who are in receipt of relief and are inmates of an asylum provided under this Part of this Act for patients suffering from fever, diphtheria or smallpox;
- (c) for the maintenance of poor persons in any other asylum provided under this Part of this Act, and of poor persons above the age of sixteen years in any workhouse:

Provided that—

(i) the Minister shall certify the maximum number of poor persons to be maintained in any asylum or workhouse; and no repayment shall be made in respect of a greater number of poor persons maintained in any asylum on any one day than will complete the maximum number so certified, nor in respect of a greater number of poor persons maintained in any workhouse on any one day than will, together with children under the age of sixteen years, if any, maintained therein on the same day, complete the maximum number so certified; and

(ii) the amount so repaid in respect of maintenance shall be at the rate of fivepence per day for each poor person;

- (d) for the maintenance of poor children in district, separate and certified schools and in certified industrial schools:

Provided that—

(i) an institution for the maintenance of poor children shall not be deemed to be excluded from the provisions of this section by reason only of the children being educated at a public elementary school or elsewhere outside the institution;

(ii) if on any day the number of poor children maintained in any district or separate school exceeds the number certified by the Minister as the maximum number of children to be maintained in that school, no repayment shall be made from the common poor fund in respect of the maintenance during that day of the children so in excess; and in such case where children are received in any such school from more than one poor law union, so much of the cost of their maintenance as is not repaid from the common poor fund shall be borne in such manner as the Minister may direct;

- (e) for the maintenance and instruction of orphan or deserted children placed out by a board of guardians with the consent of the Minister;
- (f) for all medicine and medical and surgical appliances supplied by boards of guardians under this Act to poor persons in receipt of relief;
- (g) for the salaries (including the cost of rations according to a scale fixed by the Minister) of all officers employed by boards of guardians in and about the relief of the poor, by boards of management of school districts, and by asylum boards, and of the dispensers and other persons employed in dispensaries under this Part of this Act, where the appointments of such officers have been sanctioned by the Minister;

- (h) for compensation to any medical officer of a workhouse affected by the determination or variation by the Minister of a contract respecting medical relief in the workhouse, and for compensation to any officer deprived of his office or whose salary or emoluments are diminished by the dissolution or alteration of a poor law union or of a parish being added to or taken from such a union or the dissolution of a school district or asylum district;
- (i) for fees for registration of births and deaths;
- (j) for fees for and other expenses of vaccination incurred with the authority and approval of the Minister;
- (k) for the relief of casual poor persons certified by the auditor, including the cost and expenses of providing such wards or other places of reception for such persons as the Minister under this Act may direct.

Suspension
of right of
repayment
in case of
default.

200.—(1) If a board of guardians or an asylum board, during any half year ending on the thirtieth day of September or the thirty-first day of March, have refused or neglected to comply with any order of the Minister—

- (a) directing the alteration or enlarging of a workhouse or asylum; or
- (b) directing the provision of proper drainage, ventilation, fixtures, furniture, surgical and medical appliances; or
- (c) directing the appointment of any officer; or
- (d) prescribing the maximum number of poor persons to be maintained in any workhouse or asylum, or the classification of such persons;

the board shall be deemed to be in default, and the Minister may, if he thinks fit, omit from his order for such half year addressed to the receiver the sums which the board of guardians, or the boards of guardians of the several poor law unions comprised in the asylum district, would, if there had been no such default, have been entitled to be repaid out of the common poor fund under paragraph (c) of the last preceding section :

Provided that, if the board comply with the order before the termination of the next ensuing half year, the Minister may include in his order for that half year the sums so omitted from his orders for the previous half year.

(2) If a board of guardians, after being required by the Minister to provide a dispensary, neglect or refuse to comply with the requisition, no repayment shall be made from the common poor fund to that board in respect of any medicine or medical or surgical appliances supplied by them to poor persons or in respect of the salaries of the medical officers of the poor law union until the board provide a dispensary in conformity with the requisition.

201. Nothing in this Part of this Act shall prevent any board of guardians from obtaining a removal order or an order of maintenance in respect of any person by reason of his costs and expenses being repaid out of the common poor fund. Saving for orders of removal and maintenance.

202. After each half-yearly audit the district auditor shall, within such time and in such manner as the Minister directs, certify to the Minister the amount actually expended by each poor law union in respect of expenses which are to be repaid out of the common poor fund, and the Minister shall by order direct the receiver to repay out of that fund to the boards of guardians the several sums so expended, and the amount repaid shall be applied by them in aid of the fund out of which the expenses of the relief of the poor are payable. Mode of repayment out of fund.

SPECIAL PROVISIONS AS RESPECTS METROPOLITAN SCHOOL DISTRICTS.

203. All the provisions of this Part of this Act with respect to the assessment of, calling for, and recovery of contributions from poor law unions to an asylum board shall apply to contributions from poor law unions to boards of management of school districts. Contribution to expenses of school districts.

204. The Minister may nominate to be members of a board of management of a school district such persons as he may think fit from among justices of the peace Addition of nominated members to district board.¹

resident in the school district, or from among ratepayers assessed to the general rate therein on a rateable value of not less than forty pounds, or partly from one and partly from the other, but so that the number of members so nominated shall not exceed one-third of the full number of the elective members of the board.

ACQUISITION OF LAND.

Acquisition
of land, &c.

205.—(1) The provisions of Part V. of this Act relative to the acquisition of sites or buildings for work-houses shall extend to lands and buildings which in the opinion of the Minister are required to be purchased, hired or otherwise acquired for any of the purposes of this Part of this Act, and shall have effect as if an asylum board were a board of guardians, and as if an asylum or dispensary were a workhouse.

9 & 10 Geo. 5.
c. 57.

(2) For the purpose of enlarging any workhouse, hospital or district school, existing on the twenty-ninth day of March, eighteen hundred and sixty-seven, a board of guardians, board of management of a school district or an asylum board may, by order of the Minister, acquire land compulsorily, and for that purpose the provisions of the Lands Clauses Acts relating to the purchase of land otherwise than by agreement, as modified by the Acquisition of Land (Assessment of Compensation) Act, 1919, are hereby incorporated with this Part of this Act, with these modifications, namely, that in those Acts the expression “the promoters of the undertaking” shall mean the board desirous of purchasing lands, and the expression “lands” shall include any interest in, or easement or other right over or affecting, land:

Provided that before the Minister makes any such order the board applying for the order shall publish once at least in each of four consecutive weeks in a daily morning newspaper published in London an advertisement stating the object for which the land is proposed to be taken, the quantity of land required, and the place where a plan of the land is open for inspection at reasonable hours, and shall four weeks before the application to the Minister serve notices on the owners or reputed owners, lessees or reputed lessees, and occupiers of the

land, stating the particulars thereof, and that the board are willing to treat for purchase thereof.

(3) For the purpose of the purchase of land adjacent to an asylum provided by the Metropolitan Asylum Board, sections one hundred and seventy-six and two hundred and ninety-six to two hundred and ninety-eight of the Public Health Act, 1875, shall apply as if they were herein re-enacted and in terms made applicable to the Metropolitan Asylum Board and to the purposes of this section. 38 & 39 Vict.
c. 55.

GENERAL.

206. An order of the Minister under this Part of this Act shall not be deemed a general rule within the operation of this Act, although addressed to more than one poor law union. Orders of
Minister.

207.—(1) The Inner Temple, the Middle Temple and Gray's Inn shall not be added to a parish or poor law union so long as the masters of the bench thereof make payments, as regards the Inner Temple and the Middle Temple to the board of guardians of the City of London Poor Law Union, and as regards Gray's Inn to the board of guardians of the Holborn Union, of such sums as may be called for by those boards respectively as contributions in aid of the funds of those unions upon a precept framed according to the form set forth in the Ninth Schedule to this Act or in a form to the like effect, which sum, together with the costs of collection, shall, when the masters of the bench of the Inn think proper, be paid out of a rate in the nature of the general rate to be made and levied in like manner as the general rate in a parish. Prohibition
against in-
clusion of
Inns of
Court in
parish or
union.

(2) Any such contribution shall be based upon the rateable value of the Inn as settled by the valuation list in force for the time being, or as otherwise settled by the Minister for its contribution to the common poor fund, and shall be calculated and issued in every respect as if the Inn were a parish comprised in the appropriate union, so however that the contribution shall not include any sum, whether for principal or interest, in respect of the repayment of money borrowed by the board of guardians:

Provided that the contribution of the respective poor law unions towards the common poor fund shall be calculated upon the rateable value of those unions increased by the rateable value of the Inn or Inns contributing thereto as aforesaid.

Compensation of officers.

208.—(1) Any compensation payable to any officer who is deprived of his office or whose salary or emoluments are diminished by reason of a poor law union, school district or asylum district being dissolved or of a poor law union being altered, or of a parish being added to or taken from a poor law union, shall be paid by the board of guardians of such one of the unions affected by the dissolution or alteration as the Minister may by order direct.

(2) In computing the time of service of any officer of a poor law union who is deprived of his office by reason of a union being dissolved or altered, any period during which the officer has been in the service of the council of any metropolitan borough comprising the union or any part thereof, or the predecessors of that council, shall, with the consent of the council, be included.

Provision of training ships.

209. A board of guardians and a board of management of a school district or an asylum board may, with the consent of the Minister, purchase, hire, or otherwise acquire and fit up and furnish one or more ships to be used for the training of boys for the sea service, and every such ship shall be deemed to be a school or asylum, as the case may be, within the meaning of this Act.

Appointment of officers on failure of managers, &c.

210. If at any time an asylum board, or a dispensary committee, or a board of guardians, fail for fourteen days after receipt of a requisition of the Minister in that behalf to appoint (either originally or on a vacancy) any officer whom they are by law required or authorised to appoint, then, at any time after the expiration of that period, the Minister may by order appoint a fit person to be such officer, and the person so appointed shall have and perform the same powers, rights, privileges and duties, as if the appointment had been duly made by the asylum board, dispensary committee or board of guardians, as the case may be.

PART VII.

CENTRAL ADMINISTRATION.

General.

211.—(1) For executing the powers given to him by this Act the Minister shall make such rules, orders and regulations as he may think fit for— Power of Minister to make rules, &c.

- (a) the management of the poor;
- (b) the government of workhouses and the education of children therein;
- (c) the apprenticing of children of poor persons;
- (d) the guidance and control of boards of guardians and their officers so far as relates to the management or relief of the poor and subject to the provisions of this Act prescribing their duties;
- (e) the making and entering into contracts in all matters relating to such management or relief, or to any expenditure for the relief of the poor;
- (f) the keeping, examining, auditing and allowing of accounts; and
- (g) any purposes for which rules, orders and regulations may be made under this Act and generally the carrying of this Act into execution in all other respects.

(2) All rules, orders and regulations made by the Minister under this Act shall have effect as if enacted in this Act, subject however to the power of the Minister to suspend, alter or rescind any such rule, order or regulation.

212.—(1) Except where otherwise provided by this Act, all powers given by this Act, and all powers given by every other Act, whether public general or local, relating to— Control of Minister over exercise of powers.

- (a) the building, altering or enlarging of workhouses;
- (b) the acquisition and disposal of workhouses and the sites thereof;
- (c) the preparation of houses for the reception of poor persons, and the dieting, clothing, employment and government of such persons;

- (d) the raising and borrowing of money for any of the purposes aforesaid and the repayment thereof;

and all other powers of regulating and conducting work-houses and of the government, care, and employment of poor persons therein, and all powers auxiliary to any of the powers aforesaid or in any way relating to the relief of the poor, shall be exercised by the persons authorised by law to exercise the powers under the control and subject to the rules, orders and regulations of the Minister.

(2) The Minister may direct the mode in which any money required for the purchase of any property by a board of guardians is to be raised, paid and secured, and the objects to which rents, profits or income of any property acquired by a board of guardians are to be applied.

(3) The Minister may give directions as to the forms of conveyance and instruments by way of sale exchange, assignment, security or transfer under the authority of this Act.

Power to refer to Minister disputes as to settlement, &c.

213. Boards of guardians between whom any question affecting the settlement, removal or chargeability of any person arises, may by agreement under their common seals submit the question to the Minister for his decision, and the Minister may, if he sees fit, by order determine the question, and every such order shall in all courts and for all purposes be final and conclusive between the boards by whom the question was submitted.

General rules.

214.—(1) Save as otherwise expressly provided in this Act, every rule, order or regulation made by the Minister under this Act which affects more than one poor law union (other than an order for the formation of two or more poor law unions into a district) shall be deemed a general rule, and every rule, order or regulation made to vary or rescind a general rule shall also be deemed a general rule, notwithstanding that it affects one poor law union only.

(2) The Minister shall cause a copy of every general rule to be laid before both Houses of Parliament as soon as may be after its publication.

(3) His Majesty may, by Order in Council, disallow any such general rule, or any part thereof, and thereupon the rule, so far as it has been so disallowed, shall cease to have effect, but without prejudice to the validity of anything previously done thereunder.

215.—(1) A copy of every rule, order or regulation made by the Minister under this Act shall, before it comes into operation in any poor law union, be sent by the Minister to the board of guardians of the union or their clerk, and no such rule, order or regulation (except as otherwise expressly provided by this Act) shall come into operation until the expiration of fourteen days after a copy thereof has been so sent : Publication and date of operation of rules, &c.

Provided that every general rule made by the Minister under this Act shall be published in the London Gazette, and, when so published, shall take effect in like manner and have the same force and validity as if a copy thereof had on the date of publication been sent in manner hereinbefore provided.

(2) The board of guardians or their clerk shall preserve and publish all such rules, orders and regulations in such manner as the Minister directs, and shall allow any owner of property or his agent, and any ratepayer in the poor law union to inspect them at all reasonable times, free of charge, and shall furnish copies thereof at the rate of threepence for every folio of seventy-two words, and shall allow copies thereof or extracts therefrom to be taken at the rate of three-halfpence for every such folio.

(3) If any guardian or a clerk to a board of guardians to whom such rules, orders or regulations, or copies thereof, are sent as aforesaid neglects to preserve or publish the same as directed by the Minister, or refuses to allow such inspection or to furnish or allow copies or extracts to be taken as aforesaid, he shall for every such offence be liable, on summary conviction, to a fine not exceeding ten pounds.

(4) If any general rule after it has come into operation is disallowed in manner hereinbefore mentioned, or if any rule, order or regulation is revoked by the Minister, the Minister shall send to the board of guardians of

every poor law union affected by the rule, order or regulation, or to their clerk, notice of the disallowance or revocation, and the provisions of this section as to the preservation, publication and inspection of rules, orders and regulations, and the furnishing and taking of copies and extracts, shall apply to such notice as aforesaid in like manner as they apply to the original rule, order or regulation.

Power to act
on rules,
&c. im-
mediately.

216. Nothing in this Act shall be taken to invalidate any act or proceeding done or taken in conformity with any rule, order or regulation of the Minister by the person to whom it is addressed, although the period of fourteen days has not elapsed from the date when the copy of the rule, order or regulation was sent, or, in the case of a general rule, was published in the London Gazette.

Evidence of
transmis-
sion of rules,
&c.

217.—(1) It shall not be necessary in any civil or criminal proceeding to prove the sending of any rule, order or regulation in accordance with the provisions of this Act, except to the clerk to the board of guardians of the poor law union within which the rule, order or regulation is intended to have effect.

(2) It shall in no case be necessary to prove such sending unless reasonable notice in writing is given, by the party requiring such proof to the party upon whom such proof would lie, that such proof will be required.

(3) Whenever it is proved to the satisfaction of a court that a rule, order or regulation was sent, and that the party who has given such notice as aforesaid was cognizant thereof, the court shall order the reasonable expenses of the witnesses called to prove the same to be paid by that party.

Penalty on
persons
disobeying
rules, &c.

218.—(1) If any person wilfully neglects or disobeys any rule, order or regulation made by the Minister under this Act, he shall be liable, on summary conviction, for the first offence to a fine not exceeding five pounds, and for a second offence to a fine not exceeding twenty pounds nor less than five pounds.

(2) In the event of a person having been convicted twice, every subsequent offence shall be deemed a

misdemeanour, and he shall be liable on conviction on indictment to imprisonment for a term not exceeding two years and to a fine of not less than twenty pounds.

219.—(1) No rule, order or regulation made by the Minister under this Act shall be removable by writ of certiorari into any court except the High Court. Appeals
against
rules, &c.

(2) No such writ shall be granted unless the writ is applied for—

- (a) in the case of a general rule, within twelve months after the date of the publication of the rule in the London Gazette; and
- (b) in the case of any other rule, order or regulation, within twelve months after the date when copies have been sent in manner provided by this Act.

(3) If on a rule, order or regulation being removed into the High Court by writ of certiorari it is quashed as illegal, the Minister shall forthwith notify the judgment of the court to all boards of guardians affected thereby, and the rule, order or regulation shall from the date of the receipt of the notice be void, without prejudice, however, to the validity or legality of anything previously done thereunder; but until the receipt of such notice a rule order or regulation which has been removed into the High Court shall continue of full force and effect.

220.—(1) Where it appears to the Minister that the board of guardians for any poor law union have ceased, or are acting in such a manner as will render them unable, to discharge all or any of the functions exercisable by the board, the Minister may by order appoint such person or persons, as he may think fit (whether qualified or not to be guardians for the union), to constitute the board in substitution for the then existing members of the board (who shall on the making of the order vacate their office) for such period, not exceeding twelve months, as may be specified in the order, and the persons so appointed shall be deemed for all purposes to constitute the board. Proceedings
on default
by board of
guardians.

Until the expiration of the term of office of the persons appointed by the order (in this section referred to as “the appointed guardians”), no person shall become a member of the board otherwise than by the appointment of the Minister.

Where any such order is made, provision shall be made thereby, or by a subsequent order under this section, for the holding of an election of members of the board to come into office on the expiration of the term of office of the appointed guardians, and with respect to the term of office of the guardians elected at that election.

(2) The Minister may at any time, and from time to time, by order extend, for a period not exceeding six months, the term of office of the appointed guardians.

An order under this subsection shall be laid before both Houses of Parliament as soon as may be after it is made, and if either House, within twenty-one days after the order has been laid before it, presents an address to His Majesty praying that the order may be annulled, His Majesty may by Order in Council annul the order, and it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder, or the making of a fresh order.

(3) An order made under this section may—

- (a) contain such supplemental and consequential provisions as appear to the Minister to be necessary or expedient for the purpose of giving full effect to the order; and
- (b) be amended, varied, or revoked by a subsequent order made under this section.

(4) There may, out of any moneys in the hands of the appointed guardians for the purpose of the exercise of the powers or the discharge of the duties of the board, be paid to the appointed guardians such remuneration, and to any persons appointed to advise the appointed guardians such reasonable allowance on account of travelling expenses and by way of subsistence, as the Minister may approve.

(5) If before the date on which an order is made under this section in respect of any board of guardians the clerk or any other officer of the board has, on the directions of the Minister, incurred any liabilities in connection with the relief of the poor in the poor law union, the appointed guardians may discharge those liabilities out of any moneys in their hands as aforesaid.

(6) The provisions of this Part of this Act relating to rules orders and regulations made by the Minister shall not apply to orders under this section.

Inspectors and Inquiries.

221.—(1) The Minister shall, subject to the consent of the Treasury as to number, by order appoint inspectors for the purpose of assisting in the execution of this Act, and may assign to the inspectors such duties as the Minister may think fit, and the Minister may remove any such inspector. Appointment, &c. of inspectors.

(2) There shall be paid to every such inspector such salary as the Treasury may determine.

222. An inspector appointed under this Act shall be entitled to visit and inspect every workhouse or place wherein any poor person in receipt of relief is lodged, and to attend any meeting of a board of guardians and any parochial and other local meeting held for the relief of the poor, and to take part in the proceedings, but not to vote at the meeting. Duties of inspectors.

223.—(1) The Minister may cause such inquiries to be held and require such returns to be made as the Minister may consider necessary or desirable for the purposes of this Act. Power to hold inquiries.

(2) The Minister and any inspector appointed under this Act may by summons require any person to attend, at such time and place as is set forth in the summons, to give evidence or to produce any documents in his possession or power which relate to any matter in question at the inquiry, and shall have power to take evidence on oath, and for that purpose to administer oaths, or may, instead of administering an oath, require the person examined to make and subscribe a declaration of the truth of the matter respecting which he is examined :

Provided that—

- (a) no person shall be required, in obedience to such a summons, to go more than ten miles from his place of abode; and
- (b) nothing in this section shall empower the Minister or any inspector to require the production of the title, or of any instrument relating to the title, of any land or any interest therein not being the property of any poor law union or parish.

(3) The Minister may, with the consent of the Treasury, appoint a person to act, for a period not exceeding thirty days, as an inspector for the purpose of conducting any special inquiry, and the Minister may delegate to any person so appointed such of his powers as he may deem necessary or expedient for summoning witnesses and conducting such inquiry.

(4) Every person who refuses or wilfully neglects to attend in obedience to any summons of the Minister or of any inspector, or to give evidence, or who wilfully alters, suppresses, conceals, destroys or refuses to produce any books or other documents which he may be required to produce for the purposes of this Act shall be guilty of a misdemeanour.

(5) The Minister in any case where he thinks fit may order such expenses of a witness as he deems reasonable to be paid—

(a) where the witness attends in pursuance of a summons under this section and a poor law union or any parish appears to the Minister to be interested, by the board of guardians of that union or of the union in which the parish is comprised, and in the latter case may direct the expenses to be charged either to the common fund of the union or to the account of the parish; and

(b) in any other case, as part of the expenses of the Minister in the execution of this Act:

Provided that the Minister shall not order the expenses of a witness travelling more than ten miles from the union or parish so interested to be paid by the board of guardians.

(6) If a person is charged with any misconduct in any matter relating to the administration of the laws relating to the relief of the poor and a special inquiry into the charge is held, the person bringing the charge and the person charged shall be entitled to appear at the inquiry by counsel or solicitor, but this provision shall not be construed as affecting the powers of the person holding any inquiry under this Act (whether a special inquiry or not) to allow any person appearing at the inquiry to be represented by counsel or solicitor.

PART VIII.

GENERAL.

Legal Proceedings.

224. Notwithstanding anything contained in the Solicitors Act, 1843, any officer of a board of guardians, or of a board of management of a school district may, if duly empowered by the board, make or resist any application, claim or complaint, or take and conduct any proceedings on behalf of the board, before any court of summary jurisdiction, although he is not a certificated solicitor.

Power of
officers to
take and
conduct
proceedings.
6 & 7 Vict.
c. 73.

225.—(1) Any board of guardians and any board of management of a school district may at any meeting thereof make a certificate of chargeability in the form set out in the Tenth Schedule to this Act, or in a form to the like effect, and every such certificate purporting to be signed by the chairman presiding at the meeting and to be sealed with the common seal of the board and to be countersigned by the clerk of the board shall, unless the contrary is shown, be sufficient evidence of the truth of all the statements contained in the certificate, and shall, within the period of twenty-one days from the date of the certificate, be received in evidence accordingly by all courts of law and all justices and for all purposes, without proof of the signatures or of the official characters of the persons signing it, or of the seal, and no further evidence of chargeability than the certificate shall be required.

Provisions as
to evidence.

(2) Any minute made of proceedings at a meeting of a board of guardians or board of management of a school district, and copies of any orders made or resolutions passed at such a meeting, if purporting to be signed by the chairman of the meeting at which such proceedings took place or such orders were made or resolutions passed, or by the chairman of the next ensuing meeting, shall be received as evidence in all legal proceedings; and, until the contrary is proved, every meeting where minutes of the proceedings have been so made shall be deemed to have been duly convened and held, and all the proceedings thereat to have been duly transacted.

Penalties on
guardians
and officers
furnishing
goods, &c.
for relief of
poor.

226.—(1) It shall not be lawful for any guardian or officer of a board of guardians or other person concerned with the relief of the poor, in his own name or in the name of any other person, for his own profit, to supply any goods or materials for the use of any workhouse or otherwise for the purpose of the relief of the poor in any place for which he acts as such guardian, officer or otherwise, or to be concerned directly or indirectly in supplying any such goods or materials or in any contract relating thereto, and if any person supplies or is concerned in supplying any such goods or materials, or is concerned in any such contract in contravention of the provisions of this subsection, he shall be liable to forfeit the sum of one hundred pounds recoverable by action in the High Court to the person suing therefor.

(2) If any person holding an office concerned with the relief of the poor in any poor law union, for his own profit or on his own account, supplies any goods or materials ordered to be given by way of relief to any person in the union, or for or in respect of money ordered to be so given, he shall for each offence be liable, on summary conviction, to a fine not exceeding five pounds.

(3) This section shall extend to members and officers of an asylum board in like manner as to guardians and officers of boards of guardians.

Penalty for
disobedience
to orders.

227. If any officer of a board of guardians, board of management of a school district, or asylum board, wilfully disobeys any legal and reasonable orders given for carrying into execution the rules, orders and regulations made by the Minister under this Act, or the provisions of this Act, he shall be liable, on summary conviction, to a fine not exceeding five pounds.

Penalty for
stealing,
&c. goods.

228. If any officer of, or other person employed by or under the authority of, a board of guardians, board of management of a school district or asylum board, steals, embezzles, or wilfully wastes or misapplies any money or goods belonging to the board, he shall, in addition to any penalties to which he may be liable independently of this Act, be liable, on summary conviction, to a fine not exceeding twenty pounds, and also to pay treble the amount or value of the money or goods.

229. Any officer of a board of guardians, board of management of a school district, or asylum board, who wilfully authorises or makes an illegal or fraudulent payment, or unlawfully makes any entry in his accounts for the purpose of defraying or making up to himself or any other person the whole or any part of any sum of money unlawfully expended by him, or disallowed or surcharged by a district auditor, shall be liable, on summary conviction, to a fine not exceeding twenty pounds, and also to pay treble the amount of such payment or of the sum so entered in his accounts.

Fraudulent
payments
by officers.

230.—(1) If any officer of a board of guardians with the intent to cause any person to become chargeable to any poor law union to which that person was not then chargeable—

Penalty on
officers un-
lawfully
procuring
removals.

- (a) conveys that person out of the poor law union for or within which the officer acts, or causes or procures any such person to be so conveyed; or
- (b) gives directly or indirectly any money, relief or assistance, or affords or procures to be afforded any facility, for such conveyance; or
- (c) makes any offer or promise or uses any threat to induce any such person to depart from the poor law union;

and in consequence of such conveyance or departure any person becomes chargeable to a poor law union to which he was not then chargeable, the officer shall be liable, on summary conviction, to a fine not exceeding five pounds.

(2) Proceedings under this section may be taken before a court of summary jurisdiction having jurisdiction either within the poor law union from which, or within the poor law union to which, the person was conveyed or departed.

231.—(1) If any person—

- (a) knowingly takes in pawn, buys, exchanges or receives any goods provided for the use of, or for the purpose of being worked up by, the poor in any workhouse, or given to any poor persons, or any goods or furniture of a workhouse; or

Penalty for
various
offences
relating to
goods.

- (b) causes any mark marked, stamped or branded in accordance with this Act or any enactment repealed by this Act on any goods belonging to a board of guardians to be obliterated or defaced;

he shall for each offence be liable on summary conviction to a fine not exceeding five pounds, and for the purpose of this subsection the court may consist of a single justice, but in such case the fine imposed shall not exceed twenty shillings.

(2) If any person deserts or runs away from a workhouse or asylum and carries away with him any such goods as aforesaid, he shall on summary conviction be liable to imprisonment for a term not exceeding three months.

Penalties
for abscond-
ing, &c.

232.—(1) If any poor person in receipt of relief—

- (a) absconds or escapes from or leaves any casual ward before he is entitled to discharge himself therefrom; or
- (b) refuses to be removed from a casual ward to any workhouse or asylum under the provisions of this Act; or
- (c) absconds or escapes from or leaves any workhouse or asylum during the period for which he may be detained therein; or
- (d) refuses or neglects, whilst an inmate of any casual ward, workhouse or asylum, to do the work or observe the regulations prescribed; or
- (e) wilfully destroys or injures his own clothes or damages any of the property of the board of guardians or asylum board;

he shall be deemed an idle and disorderly person within the meaning of section three of the Vagrancy Act, 1824.

(2) If any poor person in receipt of relief commits any of the offences before mentioned after having been previously convicted as an idle and disorderly person, he shall be deemed a rogue and vagabond within the meaning of section four of the Vagrancy Act, 1824.

(3) Any officer of a workhouse or asylum, or any constable, may without warrant apprehend any such person who has absconded or escaped from or left the workhouse or asylum, and take him before a justice of the peace, and upon the order of the justice take him back to the workhouse or asylum.

(4) Where any casual poor person is taken before a justice of the peace and charged with any offence under this section, the justice may, if he thinks fit, grant a certificate to the person who has preferred the charge for the amount of the expenses incurred by him in relation thereto, and such certificate shall have the same effect, and the amount mentioned therein shall be paid and recovered in like manner, as in the case of a certificate granted by a court of summary jurisdiction under section twenty-eight of the Summary Jurisdiction Act, 1879.

42 & 43 Vict.
c. 49.

233.—(1) If any inmate of a workhouse or asylum is guilty of drunkenness or other misbehaviour, he shall, on summary conviction, be liable to be imprisoned in the case of a first offence for a term not exceeding twenty-one days, and in the case of a second or subsequent offence for a term not exceeding forty-two days.

Penalties
on mis-
behaviour.

(2) A court of summary jurisdiction for the purposes of this section may consist of a single justice, but in such case the penalty imposed shall not exceed imprisonment for a term of fourteen days.

234. If any person shall be convicted of any assault upon an officer appointed under this Act in the execution of his duty, or upon any person acting in aid of such officer, he shall be liable, on conviction on indictment, to be imprisoned for any term not exceeding two years.

Assaults on
officers.

235. The master or porter of a workhouse, or the officer having charge of a casual ward, may arrest without warrant any inmate of the workhouse or ward charged with any offence therein punishable on summary conviction, and take him before a justice having jurisdiction in the place where the workhouse or ward is situated, and shall for the purposes of this section have all the powers and authority of a constable.

Power to
arrest in-
mates.

Power of
guardians,
&c. to
pay costs
of certain
proceedings.

236.—(1) A board of guardians or a board of management of a school district or an asylum board may pay the reasonable costs of the apprehension and prosecution of any person who is charged—

- (a) with refusing or neglecting to maintain himself or his family, or with running away and leaving his family chargeable, or whereby his family has become chargeable; or
- (b) with wilfully neglecting or disobeying the rules, orders and regulations of the Minister; or
- (c) with any offence or misbehaviour in a workhouse or asylum; or
- (d) with absconding or escaping from or leaving a workhouse or asylum; or
- (e) with refusing or wilfully neglecting to perform a prescribed task of work; or
- (f) with neglect or disobedience of the reasonable and lawful orders given for the purposes of the administration of the laws relating to the relief of the poor; or
- (g) with obstructing or assaulting any officer engaged in the administration of the laws for the relief of the poor; or
- (h) with fraudulently obtaining, stealing, embezzling, wasting, injuring, or wilfully misapplying any property applicable to or connected with the relief of the poor; or
- (i) with any offence directly affecting the administration of the laws for the relief of the poor,

and the reasonable costs of apprehending and prosecuting any officer who may have been employed in the administration of the laws for the relief of the poor for any neglect or breach of any duty of his office, or for any maltreatment or abuse of any person.

(2) Subject to the approval of the Minister, every such board shall pay the costs (so far as not recovered from any other source) of all legal proceedings taken by any person whom the board have authorised or directed to institute legal proceedings, and, in the case of a board

of management of a school district or an asylum board, may, having regard to the circumstances of the case and subject to the approval of the Minister, charge such expenses either to the common fund of the district or on any one or more of the poor law unions comprised therein.

237. Where a poor law union extends into several distinct jurisdictions, every matter, act, charge or complaint by which the board of guardians thereof are affected, or in which they have any interest, shall for the purpose of jurisdiction be deemed to arise or exist equally throughout the union. Jurisdiction
of justices
in unions.

Unions under Local Acts.

238.—(1) This Act shall apply to any poor law union constituted under any local Act and the board of guardians thereof, subject to the following provisions: Application
of Act to
local Act
unions.

- (a) Where the board are elected for districts (whether called by that name or not) the provisions of Part I. of this Act with respect to the election of guardians shall apply as if each of the districts were a parish:

Provided that nothing in Part I. of this Act shall alter the constitution of the corporation of the guardians of the poor within the City of Oxford, or shall extend to the election or qualification of members thereof, except such of those members as are elected by local government electors:

- (b) The board of guardians of every such union shall hold a meeting at least once in every fortnight, and in all matters concerning the relief of the poor shall act as a board at a meeting, and not individually:
- (c) The chairman of the board of guardians shall not ex officio be a member of the board of management of any school district in which the poor law union may be comprised:
- (d) No rules, orders or regulations shall be made under the local Act until they have been

submitted to and approved and confirmed by the Minister, and the Minister shall have power to alter or rescind any rules, orders or regulations made under a local Act:

- (e) Where the relief of the poor was before the ninth day of August, eighteen hundred and forty-four, administered in any parish not within London by a board of guardians, and the parish according to the last census for the time being contains a population of more than twenty thousand, it shall not be lawful for the Minister without the consent in writing of two-thirds at least of the guardians to declare the parish to be united with any other parish for the purposes of the administration of the relief of the poor.

(2) Subject as aforesaid, this Act shall apply to every poor law union constituted under a local Act and the board of guardians thereof in like manner as to other poor law unions and boards of guardians; and in particular, the provisions of this Act as to the payment of expenses of boards of guardians and the raising of money necessary for that purpose shall apply to every such board.

Power to
amend local
Acts by
provisional
order.

239.—(1) The Minister may, on such application as is hereinafter mentioned, after holding an inquiry, by order repeal in whole or in part or alter any local Act relating to the relief of the poor:

Provided that the order shall be provisional only, and shall have no effect unless and until confirmed by Parliament, and the Minister shall take all necessary steps for obtaining confirmation by Parliament of the order.

(2) An application for the purposes of this section shall be—

- (a) an application, made by the board of guardians to whom the local Act relates, which has been agreed to by a majority at two successive meetings of the guardians, signed by the chairman of the second of those meetings, and forwarded by him to the Minister; or

- (b) an application by any managers, commissioners or other persons having powers and duties under the local Act.

General.

240. Where the consent of a majority of the guardians of a poor law union or of the managers of a school district is required, it shall be deemed a sufficient compliance with the requirement if a resolution giving consent is passed at a meeting of the board of guardians or board of management, of which meeting, and of the business to be transacted thereat, not less than fourteen days' notice has been given to each guardian or manager.

Mode of giving consents.

241.—(1) Any contract entered into by or on behalf of any board of guardians, being a contract relating to the relief of the poor, or for any other purpose relating to or connected with the general management of the poor, which is not made and entered into in conformity with the rules, orders or regulations made by the Minister in force at the time the contract was entered into, or otherwise sanctioned by the Minister, shall be voidable, or, if the Minister so declares, shall be void.

Invalidity of contracts not conformable to rules of Minister.

(2) All payments made in pursuance of any contract after the Minister has declared the contract to be void, shall be disallowed in the accounts of the board of guardians or officer by whom the payments have been made.

242. No mortgage, bond, instrument or any assignment thereof, given by way of security in pursuance of the rules, orders or regulations made by the Minister, and conformable thereto, nor any contract or agreement made or entered into in pursuance of such rules, orders or regulations, and conformable thereto, nor any other instrument made in pursuance of this Act, shall be charged or chargeable with any stamp duty.

Exemption from stamp duty.

243. Nothing in this Act shall affect the operation of the Local Government (Emergency Provisions) Act, 1916, or of the Local Authorities (Financial Provisions) Act, 1921, or the Acts amending and extending that Act; and those Acts, so long as they continue in force, shall have effect as if for references therein to any enactment repealed by this Act there were substituted a reference to the corresponding provision of this Act.

Saving for certain temporary Acts. 6 & 7 Geo. 5. c. 12. 11 & 12 Geo. 5. c. 67.

Inter-
pretation.

244.—(1) In this Act, unless the context otherwise requires—

- the expression “burial ground” includes a church-yard and any public burial ground or cemetery;
- the expression “casual poor person” means any destitute wayfarer or wanderer applying for or receiving relief;
- the expression “casual ward” means any ward, building or premises set apart or provided for the reception and relief of casual poor persons;
- the expression “certified school” means a school certified under this Act or any Act repealed by this Act;
- the expression “county” includes a county borough, and the expression “county council” includes a county borough council;
- the expression “general rate” in relation to a borough or urban district includes, until a general rate is levied in the borough or district, the poor rate or other rate with which the poor rate has been consolidated;
- the expression “institution for lunatics” has the same meaning as in the Lunacy Acts, 1890 to 1922, that is to say, an asylum, hospital or licensed house under those Acts;
- the expression “licensed minister” or “minister” means and includes every person in holy orders, and every person teaching or preaching in any congregation for religious worship whose place of meeting is certified and recorded according to law;
- the expression “London” means the administrative county of London;
- the expression “local Act” includes a personal Act and any provisional order confirmed by an Act and the Act confirming the order;
- the expression “lying-in hospital” means a hospital, house or place which was licensed in accordance with the provisions of the Lying-in Hospitals Act, 1773, or which would but for the provisions of the Midwives and Maternity Homes Act, 1926, have been required to be so licensed;

13 Geo. 3.
c. 82.

16 & 17 Geo.
5. c. 32.

the expression "net annual value" in relation to London, and elsewhere until the first new valuation list under the Rating and Valuation Act, 1925, comes into force, means rateable value;

the expression "officer" includes any clergyman, schoolmaster, duly qualified medical practitioner, treasurer, master or matron of a workhouse, or any other person who shall be employed in any poor law union in carrying this Act into execution;

the expression "poor person" includes any poor or indigent person applying for or receiving relief;

the expression "United Kingdom" means Great Britain and Northern Ireland;

the expression "workhouse" includes any house in which poor persons are lodged and maintained, or any house or building purchased, erected, hired or used by a board of guardians for the reception, employment, classification or relief of poor persons.

(2) References in this Act to rules, orders and regulations made by the Minister include references to rules, orders and regulations made by the Local Government Board and the predecessors of that Board.

245.—(1) The enactments mentioned in the Eleventh Schedule to this Act are hereby repealed to the extent specified in the third column of that schedule: Repeals.

Provided that—

(a) nothing in this repeal shall affect any appointment, appeal, agreement, resolution, certificate, scale, rule, order, or regulation made, notice or relief given, or proceedings taken or instrument issued under any enactment hereby repealed, but any such appointment, appeal, agreement, resolution, certificate, scale, rule, order or regulation, notice, relief, proceedings or instrument shall have effect as if made, given, taken or issued under the corresponding provision of this Act and may be amended, varied, repealed, revoked, or enforced accordingly;

(b) any document referring to any Act or enactment so repealed shall be construed as

referring to this Act or the corresponding enactment in this Act;

(c) nothing in this repeal shall affect any election of a guardian or appointment of any officer made under or by virtue of any enactment so repealed, but any such guardian or officer shall continue in office and shall be deemed to have been elected or appointed under this Act.

(d) nothing in this repeal shall affect the powers of boards of guardians under the Poor Relief (Deserted Wives and Children) Act, 1718, if and so far as the powers of overseers under that Act were by the Poor Law Amendment Act, 1834, made exercisable by boards of guardians.

5 Geo. 1.
c. 8.

4 & 5 Will.
4. c. 76.

(2) Where by virtue of section twenty-six of the Poor Law Amendment Act, 1834, any workhouse belonging to a parish has become a workhouse for the common use of the poor law union in which the parish is comprised, and by virtue of any order made in respect thereof any compensation, whether by way of rent or otherwise, is at the commencement of this Act payable to the parish, the compensation shall continue payable but shall be liable to variation by order of the Minister notwithstanding any such repeal as aforesaid.

(3) Any workhouse or other establishment provided under any enactment repealed by this Act shall for the purposes of this Act be treated as a workhouse or establishment provided under this Act.

52 & 53 Vict.
c. 63.

(4) The mention of particular matters in this section shall not be held to prejudice or affect the general application of section thirty-eight of the Interpretation Act, 1889, with regard to the effect of repeals.

Short title,
commence-
ment and
extent.

246.—(1) This Act may be cited as the Poor Law Act, 1927.

(2) This Act shall come into operation on the first day of October, nineteen hundred and twenty-seven.

(3) This Act shall not extend to Scotland or Northern Ireland.

SCHEDULES.

FIRST SCHEDULE.

Section 18.

RULES AS TO MEETINGS AND PROCEEDINGS OF BOARDS OF GUARDIANS.

1. Every board of guardians shall from time to time make regulations with respect to the summoning, notice, place, management and adjournment of their meetings, and generally with respect to the transaction and management of their business under this Act.

2. No business shall be transacted at any such meeting unless at least one-third of the full number of members be present thereat:

Provided that in no case shall a larger quorum than seven members be required.

3. The chairman shall preside at all meetings at which he is present.

4. If the chairman and the vice-chairman (if any) are absent from any meeting at the time appointed for holding the same, the members present shall appoint one of their number to act as chairman thereat.

5. The names of the members present, as well as those voting on each question, shall be recorded, so as to show whether each vote given was for or against the question.

6. Every question at a meeting shall be decided by a majority of votes of the members present and voting on that question.

7. In case of an equal division of votes the chairman shall have a second or casting vote.

8. The proceedings of a board of guardians shall not be invalidated by any vacancy or vacancies among their members, or by any defect in the election of such board, or in the election or selection or qualification of any members thereof.

1st Sch.
—cont.

9. The annual meeting of a board of guardians shall be held as soon as may be convenient after the fourteenth of April in each year;

Sections 21
and 167.

SECOND SCHEDULE.

PROVISIONS APPLICABLE TO BOARDS OF MANAGEMENT OF SCHOOL DISTRICTS AND TO ASYLUM BOARDS.

1. Any question as to the right of a person to act as a manager may be determined by order of the Minister.

2. If any candidate tenders to the presiding chairman at a meeting of the board of guardians for the election of managers, his refusal in writing to serve as a manager, the election as regards that person shall not be proceeded with.

3. If at an election by a board of guardians no manager is elected, the managers elected by that board at the previous election may continue to act.

4. The Minister may accept the resignation of any manager for any cause which the Minister may deem reasonable.

5. In the event of an omission to elect or a casual vacancy occurring by death, resignation or disqualification, the Minister may order a new election.

6. The proceedings of a board shall not be invalidated by any vacancy or vacancies among the managers, or by any defect in the election of the board, or in the election or qualification of any of the managers.

Section 25.

THIRD SCHEDULE.

51 & 52 Vict.
c. 41.

SECTION 62 OF THE LOCAL GOVERNMENT ACT, 1888, AS MODIFIED.

62.—(1) Any boards of guardians or other authorities affected by any alteration of areas or authorities under this Act may from time to time make agreements for the purpose of adjusting any property, income, debts, liabilities, and expenses (so far as affected by the alteration) of the parties to the agreement, and the agreement may provide for the transfer or retention of

any property, debts, and liabilities, with or without any conditions, and for the joint use of any property, and for the transfer of any duties, and for payment by either party to the agreement in respect of property, debts, duties, and liabilities so transferred or retained, or of such joint user, and in respect of the salary, remuneration or compensation payable to any officer or person, and that either by way of a capital sum, or of a terminable annuity for a period not exceeding that allowed by the Minister.

3RD SCH.
—cont.

Where any board of guardians or the board of management of a school district or an asylum board are interested, any agreement for the joint use of any property shall be subject to the approval of the Minister.

(2) In default of an agreement as to any matter requiring adjustment, such adjustment may be made or determined by an arbitrator appointed by the parties, or in case of difference as to the appointment, appointed by the Minister.

(3) An arbitrator appointed under this Act shall be deemed to be an arbitrator within the meaning of the Lands Clauses Consolidation Act, 1845, and the Acts amending the same, and the provisions of those Acts with respect to an arbitration shall apply accordingly; and, further, the arbitrator may state a special case, and notwithstanding anything in the said Acts, shall determine the amount of the costs, and shall have power to disallow as costs in the arbitration the costs of any witness whom he considers to have been called unnecessarily, and any other costs which he considers to have been incurred unnecessarily. 8 & 9 Vict. c. 18.

(4) Any award or order made by any arbitrator under this Act may provide for any matter for which an agreement might have provided.

(5) Any sum required to be paid for the purpose of adjustment, or of any award or order made by an arbitrator under this Act, may be paid out of any fund which in pursuance of this Act would be or might be available for defraying the like expenditure or out of such other special fund as the board of guardians or other authority, with the approval of the Minister, may direct.

(6) Where any board of guardians or the board of management of a school district or an asylum board are interested, the payment of any capital sum by the board shall be a purpose for which they may borrow under this Act, and any such sum may be borrowed without the consent of any authority, so that it be repaid within such period as the Minister sanctions.

(7) Any capital sum paid to any such board or other authority for the purpose of any adjustment, or in pursuance of any order or award of an arbitrator under this Act, shall be treated as capital, and applied, with the sanction of the Minister, either in the repayment of debt or for any other purpose for which capital money may be applied.

3RD SCH.
—*cont.*

(8) If it is necessary for the purpose of giving effect to any agreement or award for an adjustment under this Act that a separate rate should be levied in part only of a rating area or parish, the agreement or award may authorise the levying of a special rate or an additional item of the general rate over the part of the rating area or parish.

(9) Any boards of guardians or other authorities shall have power to dispose of any property in the manner provided for by any agreement or award under this Act, without any authority or direction from the Minister, except as expressly provided in this section.

51 & 52 Vict.
c. 41. (10) For the purpose of giving effect to any adjustment, the Minister may alter any certificate given by him under the Local Government Act, 1888, as respects the sums payable by county or county borough councils to boards of guardians.

Section 26.

FOURTH SCHEDULE.

PROVISIONS APPLICABLE ON THE DISSOLUTION OF A BOARD OF GUARDIANS OR BOARD OF MANAGEMENT.

1.—(1) Where at the dissolution of the board any stock is standing in the books of any company in the name of the dissolved board, then, upon the request of the successors of the board and the production of a statutory declaration verifying the stock and the identity of the persons making the request, together with a certificate by the Minister verifying the succession, the company shall enter the stock, as occasion requires, in the names of the persons specified in that behalf in the statutory declaration in like manner as if the stock had been transferred to them, and pay to those persons all dividends accrued and to accrue due thereon, and shall do all things necessary for effecting the purposes of this paragraph.

(2) The statutory declaration required for the purposes of this paragraph may be made by the person specified in that behalf in the certificate of the Minister.

2. The successors of the board may make and enforce all necessary contribution orders and precepts in like manner as the board could have done previous to the dissolution.

3.—(1) If at the expiration of the time when the successors of the board can act there remains unpaid any instalment of a

loan contracted under the provisions of any Act by the dissolved board with respect to which no adjustment has been made under this Act, every such instalment, and all interest on the loan, shall be charged against the same parishes and in the same proportions as they would have been had no dissolution taken effect; and the amount so charged on any parish shall, as and when it becomes due, be paid by the board of guardians of the poor law union or the board of management of the school or asylum district in which the parish is included.

4TH SCH.
—cont.

(2) The parties to whom any such instalment or interest may be due shall have in all respects the same remedies for the recovery thereof against a board by whom the same is so payable as they had against the board who originally contracted the loan in respect of which the instalment or interest is payable.

4. The successors of the board may retain the services of such of their officers as they consider requisite to enable them to complete the liquidation and discharge of the debts and liabilities, or may appoint others to assist them, at such remuneration and for such period as the Minister may approve.

5. All legal proceedings commenced by or against a board of management or board of guardians prior to the dissolution of the board, may be continued by or against the successors of the board in the name of the board of management or board of guardians as the case may be, and any costs incurred by or adjudged against such successors, and not otherwise recoverable, shall be chargeable to the same fund as if the proceedings had been determined before the dissolution.

6. The accounts of the successors of the board and of their officers shall be audited in like manner for the like purposes and with the like effect as if the dissolution had not taken place.

7. The Minister may revoke, extend, or alter any order relating to the continuance in office of the successors of the board concerned, and may by a general or a particular order make such provision as he thinks expedient for the regulation of the proceedings of any persons so continued in office and for the authentication of any documents on their behalf by the signatures of any two or more of them, and as to the method in which any such persons may transfer any property vested in them, and otherwise for giving effect to the purposes of this Act, and any such order shall have effect as if enacted in this Act.

4TH SCH.
—*cont.*

8. For the purposes of this Schedule—

The expression “ company ” includes the Bank of England, and any company or person keeping books in which stock is registered;

The expression “ stock ” includes any share, annuity, or other security.

Section 94.

FIFTH SCHEDULE.

PROVISIONS AS TO APPRENTICES.

1. If the master dies during the term of the apprenticeship, the covenant inserted in the indenture of apprenticeship for the maintenance of the apprentice shall continue in force for three months after the death of the master and no longer, and during those three months the apprentice shall continue to live with and serve as an apprentice of the personal representatives of the master, or such other person as those personal representatives may appoint; and a provision to that effect shall be inserted in every indenture of apprenticeship, and if not inserted, the indenture shall have effect as if such provision were so inserted.

2. Within three months after the death of the master, a court of summary jurisdiction having jurisdiction in the place where the master died may, on the application of the surviving spouse, son, daughter, brother or sister of the master, or of his personal representatives, by endorsement on the indenture of apprenticeship, or by any other instrument in writing, order that the apprentice shall serve for the residue of the term of the apprenticeship as an apprentice of the person making the application :

Provided that that person lived with and formed part of the family of the master at the time of his death.

The person obtaining such an order shall declare his acceptance of the apprentice by subscribing his name to the order, and from the making of the order the personal representatives and the estate of the master so dying shall be released and discharged from any covenant contained in the indenture and on the part of the master to be performed, and the person obtaining the order shall be the master of the apprentice, subject to the provisions of the indenture and this Schedule, in like manner as the original master.

3. The foregoing provisions of this Schedule with respect to the death of the original master shall apply in the case of the death of any subsequent master during the continuance of the term of apprenticeship.

5TH SCH.
—cont.

4. If no such application as aforesaid is made within the said three months after the death of the master, or if the court to whom any such application as aforesaid is made do not think fit that the apprenticeship should be continued, the apprenticeship and the covenants contained in the indenture of apprenticeship shall terminate in like manner as they would have done at the expiration of the term of apprenticeship.

5. The foregoing provisions of this Schedule apply only where the apprentice was living with and as part of the family or in the actual employment of the original or any substituted master at the time of the death of such master.

6. Subject to the consent of two justices being obtained as required by this Act, the master may by endorsement on the indenture of apprenticeship, or by other instrument in writing, assign the apprentice to any person who is willing to take him for the residue of the term of apprenticeship, and the person to whom the apprentice is to be assigned shall at the same time, by endorsement on the counterpart of the indenture or by writing under his hand referring to the indenture of apprenticeship and the endorsement and consent aforesaid, declare his acceptance of the apprentice, and acknowledge himself to be bound by the covenants in the indenture on the part of the master to be performed.

FORM OF REGISTER OF SERVANTS.

6TH SCH.
—cont.

Name of Child.	Age.	Date of hiring or taking as servant.	Name of Master or Mistress.	Trade or other description of Master or Mistress.	Residence of Master or Mistress.

SEVENTH SCHEDULE.

Section 144.

FORM OF MORTGAGE.

This mortgage made the _____ day of _____ in the year one thousand nine hundred and _____ witnesseth that in consideration of the sum of _____ lent to the guardians of the poor of the _____ union [or parish] in the county of _____ [or to the board of management of the _____ district] under the provisions of the _____ [here state the Act authorising the loan], and in pursuance of and upon the authority of an order of the Minister of Health, bearing date the _____ day of _____ by [here set out the name and description of the lender], the receipt of which sum is testified by the memorandum at the foot hereof, signed by our treasurer, we, the said board do hereby charge the common fund of the said union [or the fund out of which our expenses are payable], [or we, the said board of management, do charge the common fund of the district] with the repayment of the said sum of _____ *by [here insert the number of yearly or half-yearly instalments of principal by which the loan is to be repaid] instalments to be paid on [here insert the day or days on which the instalments

7TH SCH.
—cont.

are payable] the first instalment to be paid on the day of together with interest at the rate of pounds per cent. per annum payable on the day [or days] aforesaid in every year upon the principal for the time being unpaid according to the terms of this mortgage.*

Provided that nothing herein contained shall prevent the said from receiving the repayment of the whole or part of the aforesaid sum at any time before the day of payment of the last instalment if willing to do so. '

In testimony whereof we, the board aforesaid, have hereunto affixed our common seal.

(L.S.)

(L.S.)

(L.S.)

Received this
mentioned sum of

day of the above-
from the said

A.B.

Treasurer of the
union, [or of the parish of],
[or of the said district board].

NOTE 1.—If the loan is repayable by equal instalments of principal and interest combined, substitute for the passage between the asterisks the following :—

by [*here insert the number of yearly or half-yearly instalments of principal and interest by which the loan is to be repaid*] instalments of the sum of pounds in respect of principal and interest of the sum so borrowed to be paid on the [*here insert the day or days on which the instalments are payable*], the first instalment to be paid on the day of .

If the loan is repayable by means of a sinking fund, substitute for the passage between the asterisks the following :—
on [*here insert the date on which the loan is to be repaid*], together with interest at the rate of pounds per cent. per annum payable on [*here insert days on which interest is payable*] in each year until the said loan is repaid.

NOTE 2.—The Poor Law Act, 1927, limits the time within which debts may be paid by a board of guardians or the board of management of a school district and provides that where money is borrowed by any such board and is repayable by instalments, each instalment shall be paid not later than twelve months after the date when it falls due but not afterwards, unless the Minister of Health allows an extension of the time for the payment not exceeding six months. The Act also provides that the interest shall be payable within the like times as the principal.

EIGHTH SCHEDULE.

Section 152.

FORMS OF CERTIFICATES.

1. *Against an Accounting Officer.*

I do hereby certify, that in the account of *A.B.*, the [set out the name of the office] of the _____ union [or of the parish of _____], I have disallowed [or surcharged] the sum of _____

As witness my hand, this _____ day of _____ 19____

M.N., Auditor of the district, which comprises the above-named union or parish.

2. *Against a person not an Accounting Officer.*

I do hereby certify, that in the accounts of the _____ union [or of the parish of _____] I have disallowed the sum of £ _____ as a payment illegally made out of the funds of such union [or parish], and I find that *C.D.*, of _____ authorised the making of such illegal payment, and I do hereby surcharge the said *C.D.* with the same.

As witness my hand this _____ day of _____ 19____

M.N., Auditor of the district, which comprises the above-named union or parish.

NINTH SCHEDULE.

Section 207.

PRECEPT FOR A CONTRIBUTION FROM AN INN OF COURT.

To the masters of the bench of _____ .
 You are hereby required to pay to _____ ,
 of _____ , the treasurer of the board of guardians
 of the _____ union, on behalf of such
 board, on the _____ day of _____ , the
 sum of _____ pounds _____ shillings and
 pence, as the contribution of the above-named Inn of Court,
 such amount having been duly calculated according to the
 provisions of the Poor Law Act, 1927, and to take the receipt

9TH SCH.
—cont.

of the said treasurer indorsed upon this paper for the said sum
of

Given under our hands at a meeting of the board of guardians
of the said union held on the day of

(Signed) X.Y., Presiding Chairman.
W.X. }
U.V. } Guardians.
Countersignature of the Clerk
to the Board.

Indorsement.

Received this day of 19
of the within-named masters of the bench the sum of
on behalf of the within-named board of guardians.

Treasurer of the Union.

Section 225.

TENTH SCHEDULE.

FORM OF CERTIFICATE OF CHARGEABILITY.

The Board of Guardians of Union [*or* Parish]
[*or* the board of management of the district] hereby
certify that on the day of 19 ,
A.B. [and his wife C.B.] [and his child D.B.] became charge-
able to the said Union [*or* Parish] [*or* district].

In testimony whereof the common seal of the said Board
was hereunto affixed at a meeting of the Board this
day of , 19 .

(L.S.) (Signed) W.J., Presiding Chairman.

(Countersigned) C.D. [Acting] Clerk.

ELEVENTH SCHEDULE.

Section 245.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
43 Eliz. c. 2 -	The Poor Relief Act, 1601	Section one, except so far as it relates to the raising of rates. Sections three, four, six and seventeen.
14 Car. 2, c.12	The Poor Relief Act, 1662 -	The whole Act, except sections twenty-one, twenty-two and twenty-four.
3 Will. and Mary, c. 11.	The Poor Relief Act, 1691 -	The whole Act.
8 & 9 Will. 3, c. 30.	An Act for supplying some Defects in the Laws for the Relief of the Poor of this Kingdom.	The whole Act.
9 Geo. 1, c. 7	The Poor Relief Act, 1722 -	The whole Act except section three.
31 Geo. 2, c. 11.	The Apprentices (Settlement) Act, 1757.	The whole Act.
9 Geo. 3, c. 37	The Poor Relief Act, 1769 -	The whole Act.
13 Geo. 3, c. 82.	The Lying-in Hospitals Act, 1773.	The whole Act except sections three, ten and eleven.
18 Geo. 3, c. 47.	The Parish Apprentices Act, 1778.	The whole Act.
30 Geo. 3, c. 49.	The Workhouses Act, 1790 -	The whole Act.
32 Geo. 3, c. 57.	The Parish Apprentices Act, 1792.	The whole Act.
35 Geo. 3, c. 101.	The Poor Removal Act, 1795 -	The whole Act.
36 Geo. 3, c. 10	The Poor Relief Act, 1795 -	The whole Act.
42 Geo. 3, c. 46.	The Parish Apprentices Act, 1802.	The whole Act.
49 Geo. 3, c. 124.	The Poor (Settlement and Removal) Act, 1809.	The whole Act.
50 Geo. 3, c. 49.	The Poor Rate Act, 1810 -	The whole Act.

11TH SCH.
—*cont.*

Session and Chapter.	Short Title.	Extent of Repeal.
54 Geo. 3, c. 170.	The Poor Relief Act, 1814 -	The whole Act, except sections eleven and twelve.
55 Geo. 3, c. 137.	The Poor Relief Act, 1815 -	The whole Act.
56 Geo. 3, c. 129.	The Workhouse Act, 1816 -	The whole Act.
56 Geo. 3, c. 139.	The Parish Apprentices Act, 1816.	The whole Act.
59 Geo. 3, c. 12.	The Poor Relief Act, 1819 -	Sections eleven to thirteen, twenty-four, twenty-five and twenty-eight.
5 Geo. 4, c. 83	The Vagrancy Act, 1824 - -	Section twenty.
6 Geo. 4, c. 57	The Poor Relief (Settlement) Act, 1825.	The whole Act.
1 Will. 4, c. 18	The Poor Relief (Settlement) Act, 1831.	The whole Act.
1 & 2 Will. 4, c. 42.	The Poor Relief Act, 1831 -	The whole Act.
1 & 2 Will. 4, c. 59.	The Crown Lands Allotments Act, 1831.	The whole Act.
3 & 4 Will. 4, c. 63.	The Apprentices Act, 1833 -	The whole Act.
4 & 5 Will. 4, c. 76.	The Poor Law Amendment Act, 1834.	The whole Act, except sections forty, eighty-five, eighty-six and one hundred and nine.
5 & 6 Will. 4, c. 69.	The Union and Parish Property Act, 1835.	The whole Act, except section three so far as it relates to the disposal of parish property, and section nine.
7 Will. 4 and 1 Vict. c. 50.	The Union and Parish Property Act, 1837.	The whole Act.
1 & 2 Vict. c. 25.	The Poor Relief (Loans) Act, 1838.	The whole Act.
5 & 6 Vict. c. 7.	The Parish Apprentices Act, 1842.	The whole Act.
5 & 6 Vict. c. 18.	The Parish Property and Parish Debts Act, 1842.	The whole Act, except sections two, three and nine.
5 & 6 Vict. c. 57.	The Poor Law Amendment Act, 1842.	The whole Act, except section eighteen.

11TH SCH.
—cont.

Session and Chapter.	Short Title.	Extent of Repeal.
7 & 8 Vict. c. 101.	The Poor Law Amendment Act, 1844.	The whole Act, except sections four, five, six, seven, eight, fourteen, fifteen, sixteen, twenty-two, sixty, sixty-one, sixty-two, sixty-three, seventy-four and seventy-five, and except section fifty-six so far as it relates to the registration of births and deaths.
9 & 10 Vict. c. 66.	The Poor Removal Act, 1846 -	The whole Act.
10 & 11 Vict. c. 109.	The Poor Law Board Act, 1847	The whole Act.
11 & 12 Vict. c. 31.	The Poor Law Procedure Act, 1848.	The whole Act.
11 & 12 Vict. c. 82.	The Poor Law (Schools) Act, 1848.	The whole Act.
11 & 12 Vict. c. 91.	The Poor Law Audit Act, 1848	The whole Act, except sections one, two, six, eleven and thirteen.
11 & 12 Vict. c. 110.	The Poor Law Amendment Act, 1848.	The whole Act, except sections seven and twelve.
11 & 12 Vict. c. 111.	The Poor Removal Act, 1848 -	The whole Act.
12 & 13 Vict. c. 13.	The Poor Relief Act, 1849 -	The whole Act.
12 & 13 Vict. c. 103.	The Poor Law Amendment Act, 1849.	The whole Act, except sections three, six, fifteen, twenty-one and twenty-two.
13 & 14 Vict. c. 101.	The Poor Law Amendment Act, 1850.	The whole Act, except sections six, seven, eleven and twelve.
14 & 15 Vict. c. 11.	The Poor Law (Apprentices) Act, 1851.	The whole Act.
14 & 15 Vict. c. 105.	The Poor Law Amendment Act, 1851.	The whole Act, except sections nine, nineteen and twenty.

11TH SCH.
—cont.

Session and Chapter.	Short Title.	Extent of Repeal.
18 & 19 Vict. c. 79.	The Poor (Burials) Act, 1855 -	The whole Act.
22 & 23 Vict. c. 49.	The Poor Law (Payment of Debts) Act, 1859.	The whole Act.
24 & 25 Vict. c. 55.	The Poor Removal Act, 1861 -	The whole Act.
25 & 26 Vict. c. 43.	The Poor Law (Certified Schools) Act, 1862.	The whole Act.
27 & 28 Vict. c. 105.	The Poor Removal Act, 1864 -	The whole Act.
27 & 28 Vict. c. 116.	The Metropolitan Houseless Poor Act, 1864.	The whole Act.
28 & 29 Vict. c. 34.	The Metropolitan Houseless Poor Act, 1865.	The whole Act.
28 & 29 Vict. c. 79.	The Union Chargeability Act, 1865.	The whole Act.
29 & 30 Vict. c. 113.	The Poor Law Amendment Act, 1866.	The whole Act, except sections ten, eleven, twelve, thirteen and eighteen.
30 & 31 Vict. c. 6.	The Metropolitan Poor Act, 1867	The whole Act, except so much of section twenty-four as relates to the registration of births and deaths.
30 & 31 Vict. c. 106.	The Poor Law Amendment Act, 1867.	The whole Act, except sections seven, eight, ten, eleven, twenty-three and twenty-eight to thirty.
31 & 32 Vict. c. 122.	The Poor Law Amendment Act, 1868.	The whole Act, except sections five, twenty-seven to thirty-two, thirty-eight to forty, forty-five and forty-six.
32 & 33 Vict. c. 45.	The Union Loans Act, 1869 -	The whole Act.
32 & 33 Vict. c. 63.	The Metropolitan Poor Amendment Act, 1869.	The whole Act, except sections eight, twenty-four and twenty-five.
33 & 34 Vict. c. 2.	The Dissolved Boards of Management and Guardians Act, 1870.	The whole Act.
33 & 34 Vict. c. 18.	The Metropolitan Poor Amendment Act, 1870.	The whole Act.

11TH SCH.
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Session and Chapter.	Short Title.	Extent of Repeal.
33 & 34 Vict. c. 48.	The Pauper Conveyance (Expenses) Act, 1870.	The whole Act.
34 & 35 Vict. c. 11.	The Poor Law Loans Act, 1871	The whole Act.
34 & 35 Vict. c. 15.	The Metropolitan Poor Act, 1871.	The whole Act.
34 & 35 Vict. c. 108.	The Pauper Inmates Discharge and Regulation Act, 1871.	The whole Act.
35 & 36 Vict. c. 2.	The Poor Law Loans Act, 1872	The whole Act.
38 & 39 Vict. c. 55.	The Public Health Act, 1875	So much of Part III. of the Fifth Schedule as re-enacts 35 & 36 Vict. c. 79. s. 48.
39 & 40 Vict. c. 61.	The Divided Parishes and Poor Law Amendment Act, 1876.	The whole Act, except sections one to nine, twenty-four, twenty-nine, thirty-one, thirty-seven, thirty-nine, forty-two and forty-five, and except section nineteen from the beginning of the section to the words "to the contrary notwithstanding," and except the first paragraph of section twenty-one and of section forty-four.
42 & 43 Vict. c. 12.	The Poor Law Amendment Act, 1879.	The whole Act.
42 & 43 Vict. c. 19.	The Habitual Drunkards Act, 1879.	Section thirty-two.
42 & 43 Vict. c. 54.	The Poor Law Act, 1879 -	Sections eight, nine, ten, thirteen and fourteen.
45 & 46 Vict. c. 36.	The Casual Poor Act, 1882 -	The whole Act.
45 & 46 Vict. c. 58.	The Divided Parishes and Poor Law Amendment Act, 1882.	Sections eight, twelve, thirteen and fourteen.

11TH SCH.
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Session and Chapter.	Short Title.	Extent of Repeal.
45 & 46 Vict. c. 75.	The Married Women's Property Act, 1882.	Section twenty from the beginning of the section to the words "if she becomes chargeable to any union or parish," and section twenty-one.
46 & 47 Vict. c. 11.	The Poor Law Conferences Act, 1883.	The whole Act.
47 & 48 Vict. c. 43.	The Summary Jurisdiction Act, 1884.	Section eleven.
51 & 52 Vict. c. 41.	The Local Government Act, 1888.	Section fifty-eight.
52 & 53 Vict. c. 56.	The Poor Law Act, 1889	The whole Act, except sections eight, nine and ten.
56 & 57 Vict. c. 73.	The Local Government Act, 1894.	Section twenty; subsection (3) of section twenty-four; section thirty; section forty-six so far as it relates to boards of guardians; section forty-eight so far as it relates to the election of boards of guardians; and so far as they relate to boards of guardians, subsections (1) and (2) of section fifty-nine, and sections sixty and sixty-one.
57 & 58 Vict. c. 25.	The Outdoor Relief Friendly Societies Act, 1894.	The whole Act.
59 & 60 Vict. c. 1.	The Local Government (Elections) Act, 1896.	The whole Act so far as it relates to boards of guardians.
60 & 61 Vict. c. 29.	The Poor Law Act, 1897	The whole Act.

Session and Chapter.	Short Title.	Extent of Repeal.
61 & 62 Vict. c. 19.	The Poor Law Unions Association (Expenses) Act, 1898.	The whole Act.
61 & 62 Vict. c. 45.	The Metropolitan Poor Act, 1898.	The whole Act.
61 & 62 Vict. c. 60.	The Inebriates Act, 1898 -	Section twenty-two.
62 & 63 Vict. c. 37.	The Poor Law Act, 1899 -	The whole Act.
63 & 64 Vict. c. 16.	The District Councillors and Guardians (Term of Office) Act, 1900.	The whole Act so far as it relates to boards of guardians.
3 Edw. 7. c. 19.	The Poor Law (Dissolution of School Districts and Adjustments) Act, 1903.	The whole Act.
4 Edw. 7. c. 20.	The Poor Law Authorities (Transfer of Property) Act, 1904.	The whole Act.
4 Edw. 7. c. 32.	The Outdoor Relief (Friendly Societies) Act, 1904.	The whole Act.
7 Edw. 7. c. 14.	The Released Persons (Poor Law Relief) Act, 1907.	The whole Act.
8 Edw. 7. c. 27.	The Married Women's Property Act, 1908.	The whole Act.
8 Edw. 7. c. 67.	The Children Act, 1908	Sections thirty-six, eighty-nine and one hundred and twenty-six.
3 & 4 Geo. 5. c. 28.	The Mental Deficiency Act, 1913.	Section sixty-nine.
12 & 13 Geo. 5. c. 51.	The Allotments Act, 1922 -	Subsection (4) of section twenty-one.
14 & 15 Geo. 5. c. 38.	The National Health Insurance Act, 1924.	Subsection (1) of section one hundred and five.
16 & 17 Geo. 5. c. 20.	The Boards of Guardians (Default) Act, 1926.	The whole Act.